

Jour 101 Journalism 101

Numbered Transcript

JOUR 101 • Gerald Posner

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Lecture 1: Investigative Journalism Foundations

At a glance — Posner on investigative journalism foundations.

- 1.1 I'm very happy today to be talking to you about the first part of an eight-part course in what I call Journalism 101. But it's really more than just Journalism 101, because some of you may be thinking about journalism as a career, but being a good reporter, especially being a good investigative reporter, will help you in almost every aspect of any career you do, because it's going to teach you to look for information. It's going to teach you how to hunt for things that others aren't finding, how to persevere, and at times, to put together data.
- 1.2 Now, you think that's going to be interesting, and it is going to be interesting, but at the end, you may say, "Why would I possibly want to do investigative journalism, given all the risk, the legal hurdles, and the work involved, often for very little payoff?" That's because it can make some real changes. And I, by the way, did not take a journalism course to get to this point in my career for journalism. So it wasn't a traditional career. I went instead—in another life, it seems—like, I was a lawyer.
- 1.3 And when I got out of law school, I went to work for a large Wall Street law firm, and they were defending IBM in litigation by the federal government. The Department of Justice was trying to break IBM up into small companies, saying that they were a monopolist in the computer business. Now, that will tell you how long ago that was, that anybody could think that IBM was monopolizing the computer business, but that was the nature in 1978 when I got out of law school and went to New York.
- 1.4 And that case at that point was nine years old, because it had been filed on the last day of the Lyndon Johnson administration by the attorney general, Ramsey Clark. It was nine years old by the time that I got to the firm. It had a trial transcript of nearly a million pages with all types of exhibits. And as a young associate on that case, you made yourself useful by learning the record and then going ahead and figuring out what could be put together on new documents you were finding and new briefs you were making.
- 1.5 And I found out during that time that I was very good with my memory. I've always had sort of a good memory. And before the day and age where you have AI and the ability to feed information into a computer and have it spit back what you're looking for, you had to make those connections yourself in many cases. You made yourself useful to the rest of the legal team by doing that.
- 1.6 I left that firm after a couple of years because I thought, it's not my cup of tea, big Wall Street practice. I went into a small practice. When I was in that small practice, a friend came to me who was working for the Department of Justice, and he said, "By the way, we had some survivors of the Holocaust, some twin children who had been experimented on at the largest Nazi concentration camp, Auschwitz, by this doctor,

Joseph Mengele," a German officer who earned the name "the angel of death" because he used to experiment on children.

1.7 He took twins, and he was trying to figure out, under the Nazis, their racial idea of racial superiority. He was trying to turn brown eyes blue. He was trying to understand why some women, when they give birth, have twins, and others don't, because he thought that, after the war, he could replenish the German war dead at a faster rate. Every good German mother could have two children at every birth instead of just one, and Germany would come back even faster. And his mad experiments were on children at this camp.

1.8 He said to me, from the DOJ, "They're looking for somebody to sue the Mengele family, because we think he's still alive." He was one of the Nazis who had escaped to South America. People were looking for him at that time. They wanted to know where he was. They wanted to bring him to justice.

1.9 And they wanted to sue the German government, because even though they get some stipend as a reparation from Germany for what was done to them during the Nazi camp, they spend thousands of dollars a year to just cover the pain of the medical experiments that were done to them back in the war. And all they want to have is money for those medical treatments.

1.10 So I said, "You know what? I'm not that busy. I'll take the case. It's a pro bono case." I don't charge them. I went ahead, and what happened is, this is what I call the beginning of reporting. First, I had to find out if there were others, more than just the two surviving children who came to me. We found in the end about 105 children left alive from those experiments. By the way, at his peak in the concentration camp, Mengele had 5,000 children, 2,500 sets of twins. There were 105 left when I was looking at this in 1980, 1981.

1.11 Then the question was, where was he and how to do it? I spent the next three years, what I thought would be a part-time job. My wife, Trisha, was with me. We met in 1980. She knows this became a passion of mine. Passion is one of the things you're going to find out you need to do in investigative journalism and your reporting in general. If something sets you on fire, you're good.

1.12 We went to federal court. We got thrown out of federal court. The federal court said, "Hold on a second. You mean to tell me that you're suing in an American court for children who today are American citizens but weren't at the time the injury was done, and the injury was done by a German officer in occupied Poland? No chance." So they threw that out. At that point, I had this largest archive of documents about this Nazi fugitive of anybody in the world.

1.13 I underestimated what was involved in a book. Many of you may underestimate what's involved in just simple reporting. So I said, "Yeah, I've got all these documents. I can write a biography of Mengele, give some of the profits over to the twins." And Trisha

and I went, on Broadway, we lived in Manhattan at the time, on 43rd Street and Broadway, just around the corner from the New York Times, there was a Barnes and Noble, in the day and age when there were bookstores in cities and places like New York.

- 1.14** We went to the history section—it shows you how little we knew about publishing—we looked up on the wall and the spines of the books about World War II, about history, and we said, "Let's figure out the company that looks like they're putting out books of this type." We figured it was McGraw Hill. This was the most unscientific decision you could possibly imagine, how we decided it was McGraw Hill. We did.
- 1.15** We wrote a letter to the publisher, saying, "By the way, I'm a lawyer. I've got 25,000 pages on this Nazi fugitive, Joseph Mengele, the angel of death, and I'd like to write a book about him." I got a letter back a month later from an assistant editor. Boy, that was a big deal. I remember when I got that letter, snail-mail days, not email. And I thought, "Wow, that's fantastic. I'm in."
- 1.16** I didn't know that assistant editors at New York publishers meant usually a 21- or 22-year-old person who was basically just half a step above an intern, got a little bit more than the minimum pay. They had a great title that they could use if they went to a bar in New York City and met somebody and say, "I'm an assistant editor at a big publisher," but it wasn't really worth anything.
- 1.17** So I wrote back to them, but she was able to get Joan Ackermann, the ear of a real editor, who then met with me, saw what I had that was new, and said, "You've never written a book before, so why don't you write it with somebody?" I said, "No problem." And they brought in somebody who had written a book about the taking of Jerusalem in the Six-Day War, and we just didn't get along. A lot of it is chemistry—if you do ever a joint project with somebody on journalism, you'd better have good chemistry with the person you're working with because it's key.
- 1.18** Instead, I knew this English journalist, a British journalist, who had done a documentary on Mengele, one of the best things that had been out there. He'd gone to South America, he'd gone undercover, John Ware, and he had found Nazis. He had people who were talking about where Mengele was. So I contacted him and said, "Do you want to do this book with me?" He said, "Fine." He said, "But I've never done a book as well."
- 1.19** So we went back to McGraw Hill we said, "You could have two first-time editors for the price of one." They said, "Great." They signed us up, and that was the start of that book. I say all of that in the long lead-up to you because, recently, I put up on Twitter a statement that you'll see there. It says—you look here at this part over, you might be able to see it. It says, "I never went to journalism school. I learned the craft by chasing power, money, and truth for 40 years, uncovering secrets from the Vatican to Big Pharma to 9/11."

- 1.20** Michael Shermer, who happens to be head of the Skeptic Society and did a course here at the Peterson Academy called Skepticism 101, put up an answer to that. "Had you gone to a J school program at a major university now, Gerald Posner, there's a good chance you would not have been the investigative journalist you became through real-world knocks, shoe-leather reporting. Can't wait to take your Peterson Academy course."
- 1.21** Because my unconventional path to journalism shaped my independence, I learned, essentially, sourcing documents, digging, and verification by doing it. There's no replacement for that. Now, you should know that it looks like a very straight line. So this is my series of books, tracking Nazis, exposing money at the Vatican, doing pharma corruptions. In those books and in the articles I do in between, there are a lot of learning errors. You learn along the way the things that are good.
- 1.22** People assume—for instance, the Mengele book comes out in 1986. It's a biography of Joseph Mengele, the Nazi doctor. And we'll talk more later about getting the interviews with that. I came back. Trisha had gone down with me originally to Argentina for the start of some of our research on that. She had to come back because one of us had to pay the bills. She was working at the time, doing work in the fashion business. She went back to work.
- 1.23** I came back to her, and I said to her, after being in Paraguay for a while, "You're not going to believe this," I said, "but I met these Corsicans." They introduced me to Corsicans, who used to be involved in the heroin trade, and they had been involved in a thing, some of you may have seen an old movie back in the day called The French Connection. These French Corsicans had fled from France down to Paraguay because they had a safe haven under the dictator there, Alfredo Stroessner.
- 1.24** I wanted to meet them because I knew that they knew some of the ex-Nazis who were hiding in Paraguay. But they wouldn't talk to me about Nazis because they knew that's what I wanted to talk about, of course. But they regaled me with stories about the heroin trade. What they said is, "Oh, it used to be an honorable business. It was a great trade. It's been ruined now because it's been taken over by the Chinese." I said, "What?" They said, "Oh, yeah, it's all been taken over in Southeast Asia. The triads run the heroin business. It's no longer us and the Europeans."
- 1.25** So I went back to Trisha, and I said to her, "Hey, Trisha, evidently the heroin business has been taken over by triads in Southeast Asia. Would you like to do that as a book? Maybe we can do that, and I won't do law anymore." And she said, "OK." Now, I knew I had found already the right person for the rest of my life, but I knew then that I had really found the right person to be my partner. We went down to Southeast Asia. We wandered around the Golden Triangle and met with heroin traffickers and DEA agents who were blowing up labs inside of Burma—I'll talk about some of that later with you.

- 1.26 Then I said, after that book, when we had death threats against us, and it was a nasty time, and we didn't sell many copies, I said, "You know what? This non-fiction journalism stuff is just crazy. Let's write a novel." So I did a book called *The Bio-Assassins*, and it's a techno-thriller. The good news is, it didn't sell well, so I went back to real journalism. And I did a book on Hitler's children, which is a second generation of Nazi perpetrators. And that was for a new publisher; I left McGraw Hill and went to Random House.
- 1.27 And then a book, *Case Closed*, which we'll talk about later on the Kennedy assassination. Ross Perot, when he was running for President back in the '90s, cooperated with us. And then once the book was published—I must tell you, as a journalist, you are pursuing, you tell the people that you're interviewing, even when they are the primary subject of your book, "If you want to like the book that I'm about to write, 100%, you have to write your own book, because that's the only way a person is going to like the book." I'm going to do the best book I can. I'm going to listen to them. I'm going to try to cover everything, warts and all, because that's life.
- 1.28 But the book that I did on Perot, I thought, was incredibly kind to him. When it was published, he hated it. So it goes to show you, you cannot—you try to do the best you can. If the person you're writing about likes it, that's fantastic, but that's not your job. If you're looking for approval from the people you're writing about, you're in the wrong business. Then did a book on the 30th anniversary of *Killing the Dream*. That was one of the most interesting, detailed investigations we went off and did, with lots of questions about that case.
- 1.29 And then did a book, I said, "I've got to take a break from murders and assassinations. We'll do a book about Motown." We both love Motown. We love the history of Motown. Trisha was right. She said, "You're incapable of doing a book and not having something come up." So there's a chapter there called *Suitcases of Cash*, how Motown used to rip off its artists by bringing back cash and not putting them on the royalties. And unfortunately, it's a great story. They're amazing people. And Berry Gordy built one of the greatest brands around. But at some point, the artists were getting ripped off.
- 1.30 Why *America Slept* was a result of 9/11. We were in New York City in 9/11. We were in Manhattan. We lived there. And in the couple of days after, we went out that day, we were going to give blood, and there was no blood needed at a blood bank. New York was different than the city we knew we had been in. In '78, it had been changed inalterably. We went downtown, and you were able to volunteer to help first responders. You didn't get near Ground Zero, but you were part of this long line of people who were handing out water and sending in supplies and doing things like this. It was great.
- 1.31 One night, around one o'clock in the morning, we were sitting there, and there was a student next to us. It turned out, she was at NYU. And we said, "What do you do?" And

she said, "I'm a student." And we talked to her for a bit, and she said, "What do you two do?" And we said, "We're journalists." And she said, "Well, what are you doing here? Why aren't you going out and finding out why this happened?" It was like a light bulb went off. Somebody needed to say that to us. It wasn't an editor; it wasn't us thinking about it at that moment, because we were wrapped up in the event.

- 1.32** And then, we went off, and the result, two years later, was a story, a damning indictment of the CIA and FBI for having failed to protect 9/11, a story at the end about an interrogation made of an Al-Qaeda suspect and what happened, and we'll talk about that. And then that book, I thought was the end of that, the 9/11 report came out, and they gave a pass to the Saudis. It made me so furious because I knew there was information other than that, so we did a book called *Secrets of the Kingdom*, about Saudi Arabia. That got us banned from Saudi Arabia at the time. We were not welcome to go back.
- 1.33** Took a break, moved to Miami, and did a book about Miami, which the town hated because, again, like Ross Perot, warts and all, you do the good things, you do the bad things. Cocaine built the skyline of Miami in the '80s, and many of the people who were in the drug trade then became real estate developers. Nobody liked hearing that after a while.
- 1.34** *God's Bankers* became an on-and-off nine-year project. I had been doing it before, about what I thought, in the *Mengele* book, I found out that the Catholic Church, the international Red Cross, had given visas and documents and travel papers to wanted Nazis to go to South America, in many cases because they thought they were anti-communists who were going to fight communism.
- 1.35** They were afraid that communism from Russia was the real threat to the Catholic Church. It was going to be equal opportunity atheists. And I thought that's what *God's Bankers* would be about, World War II. It turned out, that's some of the big disclosures, but the book became a 200-year history of the finances of the Vatican, including questions about whether a Pope was murdered in the '80s and ending up with Pope Francis.
- 1.36** And then *Pharma* became a history of the American pharmaceutical industry. And both of those books end up being 800-page books, 150 pages of source notes. They are tough books to do, and one of the reasons that other people don't do it. But all of these books have a consistent follow-through. Follow the evidence, wherever it leads, and no matter who it offends. And that's a tough thing because we all like to be liked. We don't like to leave the room and have people say, "What a jerk," and that's not what you're doing. But that's the lessons of investigative journalism, in some ways.
- 1.37** Now, what do you want is reviews. That's Trisha and me, by the way, at a gathering that we did, where we had our books blown up at one point to be like this. I don't know, OK, this might work occasionally. You'll see down here, on those books, I don't

have Pharma yet. It's not out. There's a little book next to God's Bankers, which is actually The Pharmacist of Auschwitz. That's Trisha's last book that she put out from a small British publisher. And I will tell you that it's very interesting.

- 1.38** Everybody assumes that if you have a book published and you see a lot of publicity about it and the people are talking about it and they're on television, they're on podcasts, they're being covered in the paper, that that book is selling. Not necessarily so. Trisha's book was published by a small publisher that had no money at all. It was put out without any reviews. No one knew about it. And literally, it sold by word of mouth.
- 1.39** A year and a half after publication, it made the bestseller list of the Wall Street Journal. It's been translated into 16 languages. That's what happens with word of mouth. People read a book. How do I buy a book? I buy a book when somebody tells me, most of the time, "Oh, by the way, I just read a great book. You'll love this. It's about XX." Then, that puts it on my radar, and then I buy it. It's word of mouth that makes you do it. That's a perfect example.
- 1.40** There's a little green book in the middle that you may not be able to see. That's No Hormones, No Fear. And a couple over there is Trisha's first book. She works with me on every project. She does every interview with me. I do the first draft, she does the editing. And then occasionally, I convince her to put her own name on the front of a book. And her first book was called, This Is Not Your Mother's Menopause, about traveling through menopause without taking hormone replacements. So that's us.
- 1.41** But what do you want as reviews? Things like this. You want Garry Wills saying, "Superb investigative reporter." LA Times, "A classic-style investigative journalist." "Posner, one of the most successful investigators." "Pharma, a withering and encyclopedic indictment." I'll take that anytime. And this is my favorite review ever, Chicago Tribune, "A merciless pitbull of an investigator."
- 1.42** Now, when I was a kid at grammar school or at high school, if somebody had called me a pitbull, I would have hated it. I would have thought it was really insulting. There was something wrong with that. Oh, am I too stubborn? I'm not giving up enough. I'm relentless. I like that now as a qualifier for this type of business.
- 1.43** Why does it matter? OK, you can uncover truth and share things that others just don't. You bring things to light. That's what you're hoping to do. It doesn't mean you always do. You look at that list of books that I did. There are other books that we've tried to do that end up in a dead end. There are stories that you pursue in those books that you think you're going to be able to find something, and it ends up as a dead end. So, for everything that you get as a revelation, that you're trying to bring to light, there's something else that you thought was a lead, and you can't quite get there.
- 1.44** You do get to hold power accountable, in my view, but you have to do it with documented and verified information. You give the public the ability to make their own

decision, not just by watching TikTok videos and Instagram and everything else, but by giving them real data, so they can go ahead and decide what they want to do. You can sometimes, if you're lucky—I'll give you some examples later—drive reform at the public level in terms of Congress and what they will do because they'll get fired up about investigative reporting.

- 1.45 Occasionally, you strengthen democracy by building a public record that deters abuse in the future. Now, that's all lofty stuff. You say, "Oh, that's great, but does it ever happen?" And it does happen sometimes. There are a number of instances I can give you. The Time magazine cover, person that looks like it's a long time ago. That is a long time ago. That's Upton Sinclair. He wrote a book called The Jungle.
- 1.46 Now, it's a novel, but in that, he has 15 pages of absolutely stomach-wrenching conditions about the meatpacking yards in Chicago. It was so horrendous but accurate that it caused reform. It caused the Chicago politicians and the state legislature to get involved and pass reforms about meatpacking and what would be done, and who could be hired and the hours that you were working. It's still a tough business, but it was that single thing.
- 1.47 His work led to the passage, a couple of years later, of the 1906 Pure Food and Drugs Act, which was the first act in America to regulate drugs and to put on food what was really inside the food. So a major effort, and shows you how it's done. Watergate, we'll talk a little bit about that later in another lecture. The Pentagon papers, I'm going to talk about, but Spotlight, the Boston Sunday Globe.
- 1.48 That's a group of investigative journalists who, in Boston, had the same situation that they had in other Catholic parishes around the country, which were these stories about clergy's sexual abuse. What they did was different. In San Francisco, in Los Angeles, in Chicago, in Dallas, in other places, reporters did what I call reporting, which is all right. They had a story that would break because somebody would sue the church. They would claim that a certain person had abused them.
- 1.49 Then they would follow up on that, then there would be discovery in the courts. They would find out the discovery. They would say, "Oh, my God, a bishop might have moved that priest to another parish instead of reporting to authorities. And that priest has been around for 20 years." Those stories would continue to play out. But in Boston, The Boston Globe did something different. They said, "Let's go out and find it ourselves." They went out, and they went into the field.
- 1.50 They investigated not only the victims, and then they went and followed on the priest, and then they went back to the bishops and the cardinals who were involved. And they broke a series of stories by their Spotlight team that literally was not just a case of sexual abuse for a couple of decades, but set the groundwork for fundamental reforms, finally, in the Catholic Church. It wouldn't have happened as quickly. It took far too long

as it was. And I write about it inside of God's Bankers. But it was that series inside The Boston Globe that really made that happen.

- 1.51** Daniel Ellsberg, for those of you who may not know him, famous at that time in the late '60s and early '70s for having given over to the New York Times a tranche of documents that were at that time viewed as the documents on the Vietnam War, the Vietnam War files. Those Pentagon papers that Ellsberg gave over ended up fundamentally shifting American public opinion. I'm not talking about students. I was a student at Berkeley. At Berkeley, as students, we all thought the Vietnam War was not a great idea.
- 1.52** But the vast majority of Americans had not come to that conclusion yet, that it was a war that could not be won. The Pentagon Papers told Americans for the first time, from inside the government, how government officials and military officials knew it was unwinnable, but would change the spin to try to convince the public that it was worth staying on. And that was 20,000 deaths before the final time that we were able to withdraw. So it made people furious.
- 1.53** By the way, one of the things that Ellsberg did, which I happen to like very much as a journalist, is that he gave his tranche of leaked whistleblower files, as we would call them, to The New York Times. Snowden, as many of you know, Snowden had a big tranche of documents—he's now living in Russia—that he had set out a number of years ago and let them out. There's a big difference for me as a journalist between what Ellsberg did and what Snowden did.
- 1.54** With Ellsberg going to The New York Times, The New York Times then went through those first, and they redacted the names of intelligence officers and others who were alive, whose lives might be put at risk. They made sure that the information in there was verifiable. Long before we worried about fake documents and AI fakes and everything else, they were worried about the fact that he was giving them a set of documents that maybe had been altered already to be against the war, and they were going to be foolish enough to publish it. So they went ahead and did their own independent corroboration.
- 1.55** What Snowden did was just put it out on the Internet. It was essentially just there for everybody to go to. That's, of course, viewed as the most transparent, but it's also the most dangerous. Almost 8,000 intelligence officers or assets for the United States and European countries over a period of time get exposed. It's not the way to do it. So all I'm saying is, you don't need to go to The New York Times, but you do need to work with a group of media partners, if it is.
- 1.56** And you'll see that with the Panama Papers, in which they do the right thing, release the information, get the data out there, let people decide what's happening on the subject, but don't, at the same time, unnecessarily put the lives of people at risk who might be in that document dump. The place at the bottom with the columns that sort

of looks like a Roman temple, the Serpentine Sackler Gallery, the Sacklers are the family that owned Purdue Pharma.

- 1.57** One, you hear about rock bands, you hear about music bands that are one-hit wonders. They had one hit, and that was the end of it. The Sacklers had one hit. Their one hit was OxyContin. They had no other drugs. Purdue Pharma put that out in '96. I write about them extensively in Pharma. That single drug, which they overmarketed, they were allowed to do, there are a lot of dirty hands with OxyContin. The FDA was too lenient. The FDA didn't crack down on them. They had overprescribing doctors. They had doctors who ran pill mills that lost their licenses later.
- 1.58** They had large distributors of pharmaceutical drugs like AmerisourceBergen, who knew that a little town in Kentucky with 5,000 people were getting 8 million pills. Obviously, it wasn't for them. People were coming in and buying them and trafficking them, and they never reported it to anyone. So lots of people to blame. But the Sacklers get the bulk of it, because they are a family who owned that pharmaceutical company. One of them is a doctor.
- 1.59** The three doctors who founded it, as a matter of fact, founded the company, were all psychiatrist brothers. They brought Madison Avenue to the drug business. So every time you turn on your television, if you see an ad, if you're unfortunate to see a drug ad, you'll know that you can blame it on the Sacklers in some way. They made Valium, which was then considered a wonder drug, 15 years the number-one selling drug in the world, by promoting it for Hoffmann-La Roche.
- 1.60** They went from a family with a little bit of money and a hit drug called OxyContin, they entered the Forbes 400 wealthiest families list in 2015 with \$14 billion from one drug. That was it. They ended up, when Purdue finally went bankrupt as a company, just a year and a half ago, they ended up putting \$7 billion of their own money to the settlement, so they could avoid lawsuits themselves, and they still have a few billion dollars left over. So the Sacklers are one of those examples. If journalists, myself and others, had not been chasing them, they would have been able to sell OxyContin for a longer period of time.
- 1.61** The Twitter Files, the last part here. The Twitter Files aren't really an example to me of journalism per se, but they're an example of transparency on what's happening behind the scenes. It's absolutely important. So in the lead-up to the 2020 election, there was a story that broke in the New York Post. The New York Post is a conservative, right-of-center newspaper, owned by the Murdoch family who own Fox News.
- 1.62** They had a story that Hunter Biden had a laptop that had been left for repair and had all of this material on the disk that was sensational. It would normally be news in the lead-up to the election. Twitter made a decision and said, "That story doesn't sound real. We don't know if they've just been fed bad information." And so, what Twitter did was, they blocked the New York Post account. So the New York Post on Twitter, where

they get information out, and they have interplay and millions of interactions, were locked down.

- 1.63** It's a very interesting thing. So now you're a social media site, but you're acting also as the arbiter of decision-making. And one of the things that happened when the old Twitter hands sold to Elon Musk, Elon Musk brought in a group of journalists, like Michael Shellenberger and Bari Weiss and others, and Matt Taibbi, and said, "I'm going to open up all the files of Twitter, and you can decide what was done."
- 1.64** What you saw in there isn't surprising in some ways. There's censorship that goes on at every level. I don't care if it's CBS or New York Times or Fox News. And when I say censorship, it's not censorship in terms of the government coming in and censoring. It's editorial decisions being made, day in and day out. We, the public, maybe you didn't think, but I, as part of the public, thought Twitter was pretty open, and that what was on Twitter, it was a cesspool at times of garbage, but I also thought it was free speech. It wasn't free speech in the sense that people were pulling the levers at the top to decide what would be done.
- 1.65** I think that the exposure of that in terms of transparency is helpful for all of us as a reminder. The Twitter files became a lesson in, be careful of who you trust for your sources of information. It was a reminder at that time. This probably is one of the best examples of impact on social, and it's really a great story.
- 1.66** The Panama Papers, I say that, and if I'm talking to a group of people in the States, nine times out of 10 people will say, "The Panama what?" That's a shame because this is a fantastic story in journalism. It gets all of us, as journalists, excited. Its impact in the public wasn't as widespread. It's not something like Watergate, in that sense. Part of it is, it's never been made into a great movie. It should be made into a movie. If we saw it on Netflix, we liked it, we'd remember it, we'd know the character, somebody should be playing it.
- 1.67** But the International Consortium of Investigative Journalists, they worked with more than 100 media outlets. This is like a major project. They sifted through eleven and a half million pages at times of these leaked files from a law firm. They had been leaked from a law firm in Panama who was doing this offshore work. This investigation literally did expose, it showed world leaders, billionaires, and criminal networks.
- 1.68** Those are three different groups, by the way. Some of you might think that when I said world leaders, billionaires, and criminal networks, they're one and the same. No, they are three different groups. You can't be that cynical. They did expose them for offshore accounts, for hiding money, for not paying taxes, for a whole series of things. Some went to jail, some people resigned, they stepped down. Laws were passed in some countries to change it.
- 1.69** Does it mean—people look at this and they say, "OK, so what? We're still going to have corruption in the future. We're still going to have offshore accounts in the future. We're

still going to have people trying to game the system." Absolutely. But you will catch the next group 10 years down with the new Panama Papers. People always are going—they never learn a lesson. They never stop doing the wrong thing. That's why investigative journalism is great business, because there's always somebody to write about who thinks that they're smarter than the last person who got caught. But the Panama Papers is a great example for that.

- 1.70** Now, what sets apart what I'm talking about is this: investigative journalism from daily news. First of all, and there's no question, the amount of research you're doing. You're doing a lot more research. You're not just reporting what's happening in terms of—a plane crashes; everyone's covering the news of that plane crash and how many died and what happened. The investigative researchers are going beyond that and trying to find out: Is there something fundamental in what was wrong with the equipment? Is there something we need to look at?
- 1.71** Perseverance over weeks, months. You're here this time and time again. You'll hear the perseverance until you're ready to say, "OK, we get the perseverance point," but it's really true. You have to stay at it. Broader societal impact, there's no question about that. Enough time to follow developing leads. I can't tell you the importance of that because—we get a lead in. Trisha and me will get something sent to us. We have a Proton email—I'll talk to you about that later.
- 1.72** Proton is one of these secure sources. It's based out of Switzerland. It's encrypted. It's either the safest email in the world to pass a message on, or it's owned by the CIA, and they're probably looking at all of it. But in any case, it's the best of the messaging apps for email. We get something sent to us by Proton that looks like a promising lead, and you follow up on it. You need to try to corroborate it. You need to find human sources. You need to find documents. You need to find data that can prove some of it. It's hard to do.
- 1.73** Sometimes you can't do that, so you want to have time to develop the leads because sometimes the leads end up as dead ends. My view of it is, you lead, you research, and then the hard part, you're verifying. If you can verify, it's great. Sometimes you can't. It's not tied to breaking news. The great news about this is, you have the freedom to pursue dead ends to find the real story, but you're not tied to—you know we're in a very fast news cycle. Never been faster, 24/7. I get it. News breaking all the time, attention spans ever shorter.
- 1.74** People want to know what's happening now. They want to know what's new. You're not tied to this. You're trying to do a story that has an impact that, when it breaks, will catch attention, even if it's only for a day or two. But you want to be able to do it separate from what the regular news is. The traits that I've discovered over time of what I view as a great investigative journalist: curiosity more than anything. Trisha is blessed with curiosity as a natural DNA trait, and she has passed that on to me. She will ask "why?" more than anyone else, and why again.

- 1.75 It's like what happens for those of you who have children, the point where you say something to your child and they say, "Why?" You never thought about that before, and then they say, "Why?" That's what you're doing as an investigative journalist. It's all right. You can go back to that childhood role. Again, persistence. And remember something—we're doing this often, in this, without knowing for sure that we're going to get published. We're paying our bills by doing this. So you want to have a publisher behind you. You want to have a newspaper that signed up for a piece.
- 1.76 But in the end, you're only going to get published if you come up with the goods, if you deliver a story that they like. So I've had stories before at the New Yorker or Vanity Fair or the Wall Street Journal that end up sitting on the shelf, and the news gets stale, and they just don't get published. So you want to get, not just a fee from the paper or from the publisher—that helps pay the mortgage; it's great. But you want to see your work published, and you don't always know that's going to happen. There's no guarantee of it.
- 1.77 Healthy skepticism. I tell you that's part of the DNA, I think, of being a reporter of any type, especially an investigative journalist. If somebody's giving you a story and it sounds too good to be true, you want to know why they're telling you that story and not somebody else. I've learned to doubt information that comes to me, sometimes even from friends, because they can be well-intentioned, but it doesn't mean they're always going to give me the right information.
- 1.78 My favorite model—everybody has a different one—follow the money. Why? Well, first, following the money is fun. Following the money is fun in the Catholic Church. It's fun inside the pharma industry. It's fun with the Nazis because you're finding out who's supporting them. I mean, it's fun with the triads and the heroin business. But most of all, money leaves a paper trail, or today, a digital trail, with crypto and Ether and everything else. You can find often traces of that money.
- 1.79 Now, people who are using it for bad purposes and are trying to hide it, do a very good job of hiding it. So it's not always easy. You can't just go and ask a bank for information. You can't go to Switzerland and say to one of the big banks, like United Swiss Bank, or you can't go down to Panama or the Bahamas to an offshore bank and say, "By the way, I'm doing a story about this person in Silicon Valley. Can you let me know what transfers they made in the last six months?" It doesn't happen that way.
- 1.80 But there are lawyers that you can talk to. There are financial planners. One of the things on follow the money that's often been helpful, litigation is helpful because the law cases will show you the vestiges of what happened to money. But you can go to competitors. What I mean by that is, if you go to Panama—Trish and I were in Panama on a story about money laundering—there are a number of lawyers that specialize in setting up offshore corporations and making it hard to find out where you're transferring your money.

- 1.81** If you know that the person you're writing about used this law firm, the Fonseca law firm, for instance, then you want to go to a competitor of theirs and say, "By the way, what about that fellow from Silicon Valley?" They don't like the fact that they're with a competitor, and they may give you a couple of hints along the way. You can use competitors to sort of follow the money along the way a little bit.
- 1.82** Triple-check sources. Two corroborations aren't enough, even if the stakes are high. I have a rule: I never publish with one source if it's important. I don't care how valuable and how trustworthy that source seems; I always want to try to get information from another source and get it corroborated. If I can get a triple source, it's great. When I say things like a detective, now you're talking to somebody who never was a detective, but this is, I think, I think like a detective now. You'd have to put me on a serial murder case to find out if I really think like a detective, but I do follow the money and the evidence very well.
- 1.83** I think the one thing to remember is—I say this all the time—breakthroughs or key things happen at odd hours, middle of the night, a weekend, whatever else. People think investigative journalism is a very glamorous thing. You see something on a podcast or on TV, and that's where they spend their career. No. No big story is ever broken while I've been doing an interview. It only breaks when I'm actually trying to do real work. Then you can talk about it at a certain point, and that's the end of it.
- 1.84** Integrity. I am convinced that the only thing you have in this business, in the end, is your personal reputation. What I mean by that is, you do a book, you do an article, you do a story, you go on to the next story, your reputation goes with you. If you've said to somebody, "By the way, I guarantee you that if you talk to me and tell me this story, it will stay as background only. I won't identify you, and I won't in the story give any information in which somebody can identify you." If you don't keep your word on that, you're finished.
- 1.85** Nobody else will ever talk to you, because they'll know you as the person who burnt this source before, and that's the end of you. So time and time again, we have heard things off the record as background—I'll talk about some of them later—in which you're bound by your commitment not to do something, and you have to do it because that is your integrity. You don't have to sign a piece of paper for it, but you need to have the ability to stick to that.
- 1.86** Why don't many journalists do it? There's a story about a media report about daily threats, harassment, and attacks at home. OK, that can be part of it. That means, if you're getting harassed at home, Trisha and I, after a book on the King assassination, had a box of dead fish sent to us, believe it or not. My publisher had the same. We had a rat's tail sent to us in the mail. I didn't know what it was at first, but later found out it was a rat's tail, and got accosted on the street.

- 1.87** You know what? You don't want that to happen, but that means you're doing your job, believe it or not. If nobody's actually mad at you, if nobody's really incensed, you want to sort of keep one side of this side of crazy, meaning that, in a dangerous world, I don't mind somebody yelling at me, but there's a level at which you don't want the harassments all the time. You do your best, you report the news as it is.
- 1.88** That's not in our DNA to be afraid of that. I've gone to Kabul, I've gone to Afghanistan. When we were in Southeast Asia doing the book on the triads, we were with heroin traffickers. Trisha had to move a hotel at one point when I went off with DEA agents on a black bag job into Burma because it turned out that the hotel was owned by a heroin trafficker, and it wasn't safe for her. And a DEA agent's wife had been shot and killed just a couple of months earlier.
- 1.89** Now, that being said, not everybody has to do that type of investigative journalism, but that's not in our DNA to be afraid of that. Now, at the same time, I don't skateboard. I live in Miami Beach. I don't skateboard because I'm afraid I'm going to fall off and break my arm. I don't smoke because I'm afraid I'm going to get lung cancer or that. So I have my own risk evaluation for different things, and being afraid of doing journalism isn't one of them, which allows you to be a good journalist.
- 1.90** Time constraints. You see that little thing that says Insight team? There was a British journalist. He was the editor-in-chief of Random House when I published my books on the Kennedy and King assassination, Harry Evans. Sir Harold Evans, he became later. He was the husband of Tina Brown. Tina Brown was an editor who did Vanity Fair and The New Yorker in the '90s. He was at the London Sunday Times before he went into book publishing. And he created a team called the Insight team.
- 1.91** It was investigative journalists, and they would get a lead, a tip. They would think it was good. They would go to him, and they would say, "What about this?" And he would say, "Go off and find the story." They would go off for two to three months. They came back. They broke the story on thalidomide, the drug that was causing baby deformities back in the '60s. They broke the story of the DC-10s, the planes that had fundamental flaws that the companies were trying to cover up and fly.
- 1.92** They broke the story of Kim Philby, who was a lead British intelligence agent, like the equivalent of third ranking in the CIA, was actually a Soviet counterintelligence agent. They broke some amazing scoops. They don't exist anymore. And the reason they don't exist as a team, there or anybody else, anywhere else, is they often came back with nothing. So they would go off for a month or two and come back without a story. Nobody can afford to do that today.
- 1.93** In this hyper-competitive world, where you're fighting for ratings and you're judged overnight by how many clicks you have and that, imagine somebody sending off a group of their best investigative reporters and say, "Come back in a couple of months

and let me know if you have a story." And once in a while, you'd hit gold, and other times you wouldn't. Those were amazing times, but they don't exist anymore.

- 1.94** Editorial pressure. You're constantly told, I hear it all the time. I'm doing a story. "Where is it? Aren't you done? You have it? We're ready to run. Are you finished? Let's do it." Now, I say, I have just a few more interviews to do. There's always the editorial pressure to try to put it out. Lack of resources. I think that a lot of reporters find it difficult to go off. When we go, and we travel, we have learned—we should write a book one day about how to travel on a budget. We have learned how to manage our budgets very well and how to travel inexpensively and make it last as long as possible, but you do have to worry about resources at a certain point as well.
- 1.95** One of the things that's happened that's good is nonprofits, not all nonprofits are great, but their cross-border collaborations and independent platforms offer investigative journalists, like we saw in the Panama Papers, the ability to collaborate today in a way that commercial media that has to pay its bills really wouldn't do.
- 1.96** What are some common pitfalls and traps? Confirmation bias is the biggest. You go into a story, and you already think you know what happened. So you're going to do a story on the shutdown of the government, and depending on whether you think the Democrats are to blame or you think the Republicans are to blame, you already go in with a bias to the story. And what you do at that point, you don't actually do reporting. You just find quotes and evidence and documents that support your already-formed conclusion.
- 1.97** That's easy enough to do. We can all do that. You come to a conclusion about something, and then you go off, and you find the information that supports it. That's not reporting. It's just confirming that confirmation bias. So you have to try to follow the evidence where it's different.
- 1.98** Premature conclusions. Lookit, I had that on Case Closed. I thought, on Case Closed originally, when I started the work on the Kennedy assassination, that it was likely the Mafia, because Jack Ruby, this nightclub owner in Dallas, had shot the man accused of the assassination a couple of days later in police custody. It looks like an old-time mob silencing to me. It turns out, I lost that as I did the book, found out that wasn't right because I followed the evidence. But that's a difficult thing to do because you get attached.
- 1.99** Look, if I gave you a hot-button topic to look into today, people say, "Oh, I'm completely unbiased. I have no viewpoint on that at all." That's not true. We all have viewpoints on different items. If you ask us, we have some inclination about what we think is right. The tough part as a journalist is to go ahead and have that, but know that you're following the evidence. The evidence may lead you to a different conclusion. And if it does, you do that.

- 1.100** Falling for misinformation. Boy, I'll tell you, it's always been difficult because you're always fed misinformation by people who want to affect the story. It's become more difficult because now misinformation has gotten better. It looks better, it's savvier, packages are put together.
- 1.101** Dead-end leads. I talked about that just a little bit before. Last year, we got a lead from somebody who was well placed at the prison where Epstein committed suicide, as it was. And that person had information that made it sound as though there was possibly foul play. I'm a skeptic on a lot of conspiracy theories, so it's great for me, because if I go ahead and find that it's really counter the story, you're going to have to prove it to me.
- 1.102** We took that lead and went as far as we could with it over a couple of months, and hit dead end after dead end after dead end. In the end, I was left with some questions about what two of the people in the prison did that night and why they may have done it, compared to what had happened earlier. But I was also convinced there was no murder involved. The question as to whether somebody allowed him to kill himself was a different issue.
- 1.103** I went to several different publications with what I had, but it wasn't sensational enough, so it didn't get published. They wanted murder or something else. They didn't want, "Here's the thing." In the end, that was a dead lead for us that looked so promising in the beginning, and I still have a condition of anonymity for that person. One day, I hope to be able to disclose it in a story, and people say, "God, that's really a well-formed source, but why didn't it prove out to be better than that?"
- 1.104** Being used as, serve a purpose as source, that was in Warlords—by the way, one thing when we talk about confirmation bias and everything else, something I find in journalism, the moment you think you're sure is almost the moment you're in danger, meaning, never be too confident about your conclusion. Wait for new evidence to always try to change it. Challenge yourself constantly. It's not easy to do that, but you want to do it.
- 1.105** I'm very lucky because I have this aide. Trisha, my partner, she challenges me constantly and says, "How are you sure of that? Are you sure?" It's good to do that to yourself or have somebody do it to you. Editors will do that to you sometimes. Be sure you're not being used to serve a source's purpose. So in Warlords, the information that we got that was really explosive about the trafficking of Southeast Asian heroin, China white, into New York, came from not just the DEA, but from some drug dealers, triad gang members in Hong Kong.
- 1.106** And you think, why would they tell you that? Is it fake information? No. It's information about a rival gang. So they're telling you the importation of China white into New York for a gang that they're competing with. You always have to know that. You go back to the DEA and say, "Well, what about this? I have this, this, and this, and this." And they

say, "You'll be only getting half the picture." That is correct, but you're missing the picture because—

- 1.107** So you have to know your sources. Why are they giving you the information? Nobody comes to you as an angel. There are very seldom times, even a whistleblower, sometimes a whistleblower has the best of intentions. They're doing it for the right reasons. But sometimes a whistleblower has a lawsuit against the company. Sometimes a whistleblower has made accusations against their boss about some type of a complaint or physical harassment.
- 1.108** So you always just have to know that. It does not mean that the information is not correct. It just means that you have to do a little bit of extra work on making sure that you can validate it in every way possible. When it works—in 1984, believe it or not, that's me. I don't have that suit anymore. I went down to Argentina, and I was doing the Mengele work that we talked about before, about the Nazi. And I went to Casa Rosada, which is the presidential palace.
- 1.109** And I said to the person who signed me in, they had a new government in Argentina. They had fought a war right before this. Sometimes, getting good research as a journalist is the luck of timing. So Argentina had had a war with Britain over the Falkland Islands. They had lost that war, and as a result, the military junta that ran the country was overthrown, and Argentina had its first civilian government in decades. I arrived there a few months after that.
- 1.110** I went to Casa Rosada and said, "I'd like to see the files on Joseph Mengele, the Nazi doctor that you have," because there were rumors that he had been in Argentina, but nobody was able to prove it. I did not know at the time that Israel, the United States, Germany, Nazi hunters, private Nazi hunters, had asked for those files before from the junta and had been told, "Get lost." Sometimes it's good not to know, because you can say to yourself, "Well, what a waste of time."
- 1.111** I've learned over time: never assume anything's a waste of time. Ask it the tenth time; maybe you're the one who gets the break. And they said, "We'll see about it." I stayed there to do research on other matters regarding Mengele. A couple of weeks later, I was staying in a little hotel in downtown Argentina, Buenos Aires, called the Conquistador. It's like \$29 a night. At around 11:00 at night, there's a knock on the door. I opened up, and there were two members of the federal police, and they said, "Come with us."
- 1.112** I was able to make a telephone call to Trisha, who was back in New York, to say, "I'm going with the federal police," because the federal police had a reputation for the disappeared. You'd go with the federal police, you wouldn't be—at least Trisha would know the last person I was with was a federal police. They took me in a blue Falcon, which is the car they used as their unmarked car, to the federal police headquarters in downtown Buenos Aires.

- 1.113** And there was a very grumpy colonel who had obviously been ordered, in this spasm of democracy inside the government, to open up the Mengele files. They took me into a side room and there was a dossier, a file folder, with 10 years of this fugitive's life in front of me—how he entered the country in 1949, under the passport that he used, Helmut Gregor, how he got in with Red Cross papers, how he returned to the use of his own name, how he set up a pharmaceutical business, how he lived the high life.
- 1.114** It was all documented there until he had to flee Argentina when the Israelis came in and kidnapped another Nazi in Argentina: Adolf Eichmann. That scared Mengele, and then he went to Paraguay. But literally, I found a decade of his life. I found the original papers of his travel under the paper, what he was using as his passports, found pictures of him, the Argentine intelligence had taken of him inside. This picture of him is a 1950 Christmas photo of him and his pet cat at his first permanent address in Buenos Aires, in the posh Florida suburb of the Argentine capital, living the good life. For a guy who was known as the angel of death, he had found safe comfort in Juan Perón, who was the dictator at the time's Argentine.
- 1.115** In 1985, after the book was published in 1986, I went on a talk show in America, Phil Donahue. He used to be one of the first talk show people. Oprah Winfrey then came afterwards, and sort of killed off Phil Donahue, and she became the queen of talk shows. Rolf Mengele, Mengele's only son, agreed to go on that program with me after giving me access to his father's papers.
- 1.116** From doing the work with Rolf Mengele, I was able to find out, that's Rolf Mengele with his father, the angel of death. In the postwar period, he met him as a child. The elder Mengele was hiding out in Germany, and he, the son, doesn't have any memory of that. That's him in 1956. His father came back from Argentina under a false name and was introduced to his then 12-year-old son as Uncle Gregor.
- 1.117** The son was told, "Your father died at war here on the Eastern Front." And that's him at 33, the son, visiting his father for the first time as an adult in Brazil, went down there, hoping his father would say, "I hated Auschwitz, but we had to do it. If we didn't do it, we'd be killed. I have nightmares of it every night." Instead, his father said, "You'll never understand what we were doing. We were pioneers in race technology. You'll never understand Auschwitz. Never question me about it." So, a Nazi to his final days.
- 1.118** Sometimes, what you do in journalism is you take a story that you have, and you use it later to make a social impact. So remember when I told you that I was taken inside this room and shown the Mengele file? On another table was a file wrapped around that said Bormann, Martin. If you know Nazi history, that was the deputy leader to Adolf Hitler. He was in the Führer bunker when Hitler killed himself at the end. He was a person. There were rumors— did he get to South America? Did he not get to South America?

- 1.119** That night, I said to the Argentine federal police, "Can I see that folder?" And of course, they said, "No, I had been approved to see the Mengele folder." Today, I wouldn't ask to see it. I would go over there and try to open it up myself, and they would have to stop me. But then I asked them. So I waited. And then what happened is, in 1991, it turns out that Menem, who was then Carlos Menem, the President of Argentina, was visiting the United States to meet with George Bush, the first George Bush.
- 1.120** The New York Times let me run a story that said, "Bormann file. Hey, I saw this file when I was back there in 1984. What about releasing it, to let us know what was happening?" The Argentines went ballistic. They said, "He's a liar. There's no such file. He's never been inside the archives." I, of course, keep good records. I showed them all the times that I was there and how I got access and everything else. Then the foreign minister changed their name and their pace.
- 1.121** And what happens is, a couple of weeks later, you start to get the story. Argentina declassified files on Nazi fugitives. And they released them all. They set up a commission. They released them all over the years. That was a great opportunity to be able to do that. So sometimes you put a story in the back of your mind. I couldn't get the Bormann file. I couldn't find out what was in there. I didn't know if there'd ever be a time to be able to hammer it home, but there was, and then you take advantage of it at that moment.
- 1.122** So, to summarize, tenacity and rigor, that's your impact. A deep skin for rejections. Endurance defines the craft. I can't tell you how many times I've gotten a pitch told no, I don't take it personally, and develop an even thicker skin for criticism. In the next lecture, we're going to move from purpose to process, and we're going to think like an investigator before you make the first call. If you're picking up a book ever, this book, Muckrakers, is not bad. It tells you about those muckrakers and journalists who, over time, had a real impact on the business. It is a business in the end, but one that is a lot of fun to do most of the time.
- 1.123** What precautions do you take to make sure you don't burn your sources?
- 1.124** I have a good part of a lecture coming up about the protections to take, and it's become more challenging in the digital age. It used to be easier not to burn your sources. You'd make a promise to your sources that you're not going to disclose them. You keep the information in a place that only you think is private, that nobody else is going to have access to. But over time, when you see the list of things that I have, you'll think that I've become paranoid about protecting my sources, but it's the extent to which you have to.
- 1.125** So, it's encrypted use of communications on Signal or others. It's using emails that are safe like Proton, to the extent that they are. It is keeping files not on the cloud, but on a physical drive that I keep at home. Then, this will seem really strange, I even have an air-gapped computer. I have a notebook computer that's not connected to the internet,

never been connected to Bluetooth. It's not connected to a device that's connected to Bluetooth. That's where I actually do my work in typing an interview or source that's key.

- 1.126** One of the things, by the way, Trisha and I, often, if there's the bane of our life, one of the banes of our life is transcribing interviews, because it's really slow. People who transcribe things, from courtroom stenographers and others, it's a tough job. So you would tend to think, we can give over an interview with a source that's talking about something that's not controversial to AI, and they can transcribe it.
- 1.127** But I can't give anything over that includes either a confidential source or, in my view, sources that aren't confidential, I'm going to name them in the piece, but they say to me at some point during the conversation, "This is off-the-record. This is background." If I let AI do it, does it get into the ether? Is it available for somebody else to know the off-the-record material? If I give it to somebody to transcribe, maybe—
- 1.128** I was doing a piece recently on an investigation into one of the largest financial firms in terms of stocks and brokerages and everything else in the US. What if I give that—and there was some very dicey material in there—for somebody to transcribe at a professional transcription service, and their cousin or their uncle or their niece works at that financial firm, or they're married to somebody who works at that financial firm, and it ends up there? So, I'm always thinking ahead of what's the worst possible case, and there are plenty of worst possible cases, so you can't take too many protections.
- 1.129** I don't think sources know that. You say to sources, "I'm going to keep you private. I'll make sure that nobody finds out." But you have to really be able to mean that, in every way. I'll talk later about an instance in which, the only interview Trisha never went to—I'll tell you in more detail in a later lecture—is an interview in which I was afraid I'd be called to court and told, "You'll go to jail if you don't disclose your source."
- 1.130** I wanted to make sure that people know that Trisha does interviews with me, so that if she was put on the stand and somebody said to her, "Who's the source?", she could look them in the eyes and say, "I don't know because I wasn't there," without committing perjury. So I was even at that layer down the road.
- 1.131** So when it comes to following leads, especially when you consider someone has an ulterior motive, what do you do to filter out what could be a good lead or something that might be bunk, or is that just part of the process?
- 1.132** It's part of the process. It's a good question because I view the lead as—nobody's coming to you, very rarely, with all the information. One of the things, when we talk about Watergate, why it's to me such a great example of good investigative reporting, is everybody who knows the Watergate story, knows of Deep Throat, the source that they had. But Deep Throat was not evidence. He was just the lead. So all you had to do with that is then follow up. You had to do your own reporting.

- 1.133** So you had the lead from somebody telling you this was going on. But that's not evidence. People think it is because somebody's saying that, they're providing you an insider's account, that all you have to do is then go to the paper the next day and publish this as the account of Deep Throat, and the story will be over. You're just taking that as what puts you on the right direction.
- 1.134** And one of the things—we'll talk about this a little bit when we get to interviews and sources and that—but you don't know, when you start a project, especially a book project, the sources that are going to be your key sources. You develop those over time, often. They don't come to you. What I mean by that is, one of the downsides of the digital age is that you will end up, if you're doing reporting or interviews, you'll do 95% of them or more by Zoom.
- 1.135** Trisha and I, as you could tell, used to go to the places. We'd be in Rome to do the Vatican. We'd be in Southeast Asia. And what would happen is, you'd say, "I'm doing a book on this." And then some commander in the Hong Kong police would say, "I'll meet with you." And they would give you what I call the official version of the events. "We're doing our hardest to fight drugs. We have an increased budget. We're making great leeway," all the stuff that you would expect, the fill-in lines.
- 1.136** Then you'd meet somebody else, and you'd meet somebody else like that. One of those people sometimes would take a liking to you. We're a husband-and-wife team. We're different. Trisha has her Doc Marten boots on all the time. She's British. She's a little quirky. It's great. They start talking to her about different things. And then somebody says, "You know what? I have somebody I think you should talk to, maybe. Or maybe we should meet after work and have a beer." That opens the door.
- 1.137** You can't do that on Zoom. I've never had a breakthrough on a digital interview, where somebody says to me, after talking to me for 30 minutes, "Hey, you sound like a great guy. Why don't we each open up a beer and have it here while we're talking on Zoom? I'll introduce you to somebody else who will be great down the road." You do those in personal connections. I'm not telling you that you have to always go and do an interview in person.
- 1.138** I'm just saying that, if you can make that human connection—lookit, people often, if they tell you something that is going to blow up their world, telling you something that is a scandal or wrongdoing or whatever else, they don't know you for more than maybe a couple of days of meeting you. They're now putting their livelihood or their reputation in your hands, based upon some maybe work you've done before, maybe not, but it's really a personal relationship. They trust you at that moment, that when you say, "I'm going to protect you; I'll get the information in the story, but you will not be the source of it," that you mean that.
- 1.139** I just don't know how you do that in a digital sense. We're going to talk later about data journalism, and there's some great stuff. You could do things today because of digital

journalism you couldn't do back in the day. Like everything, it's pluses and minuses. The minus maybe is on the personal connection, in getting somebody to talk.

- 1.140** How do you know if you're following a lead, and an issue is more systemic or if it's site-specific?
- 1.141** You don't know that. It's a great question. I always start thinking it's site-specific, because if you think it's systemic, you're looking for too big. You can't go into every story thinking, "This is another Watergate," because they aren't. Somebody tells you about wrongdoing, and you find something; I go in, and I think a very narrow focus. I think, "OK, this is a problem in this department. This is a problem that maybe the national level doesn't know about. Maybe it's something that hasn't been brought up to HR. Maybe it hasn't been brought up to legal counsel; maybe it hasn't been—"
- 1.142** Now, if you start to find out that's a pattern that replicates itself in different offices of a large company, has been brought up beforehand and they squelched it, and they have people sign nondisclosure agreements, and they were sued, and they sealed the results, then you're onto a systemic problem, probably.
- 1.143** But I always start off—and people who come to you and say, "I have the next Watergate," I'm always suspect of that because, very seldom, I think, the first person that they're coming to, they've often gone to others trying to get the same story. So I'm wary often of people who oversell the story that they have to say, as well. Thank you very much.

Lecture 2: Investigative Tools & Techniques

At a glance — Investigative tools and techniques.

- 2.1 Thanks for coming to lecture two. We talked a little bit before in lecture one about what you're going to do, the mindset you need, persistence, curiosity, and that. This time, what I want to talk to you about is a little bit about what I call the method, how you start to put together the information that you're going to need when you are going out to do your reporting. And this applies both to just regular reporting and it applies to investigative journalists.
- 2.2 Thinking out of the box still helps a little bit. When I was doing work on the Nazi war criminal in the 1980s, I went to the immigration files. So people were all sending in requests for documents, looking for things that they thought maybe the CIA or the army had. They must have the information about these Nazi war criminals.
- 2.3 I wanted immigration files because the immigration files told you about people who were coming to the United States immediately after the end of the war, who had served often in units for the Nazis when they were killing people in Eastern Europe, and then lied on the immigration papers about who they were, and you were able to actually go back and find out their original details about who they were. Immigration files proved to be wonderful.
- 2.4 But I have this view. I say that—and this will sound corny to you, but sometimes something's corny because it's true; it's said so many times, it's real. For me, at least, a document is like a breadcrumb. It tells me I have more things to follow down the lane. There's very seldom that you get one document that opens up everything, and you say, "Oh my God, that's it." Instead, you find it, and then there's a little trail, and you find some more, and you put together, and then you find some more.
- 2.5 An omission—you go into files expecting to find something, and you don't find them—that's often to me a tell that I've got to look a little bit further. An omission to me is the clue that maybe it's somewhere else. I don't give up and say it doesn't exist, but I'm looking for it somewhere else. Let's start with what I call the gold mine that most reporters still underestimate, and that's public records.
- 2.6 So, public records can be fantastic for you if you use them correctly. If you master public records before you call a source up, you're going to know as much as you can possibly know before you start asking them questions. So, first of all, there's court filings, and these dockets, there's complaints. I don't have a bias just because I'm a non-practicing attorney. Court records are really good to get information out of. Exhibits, sworn statements.
- 2.7 I use a thing called PACER. It's online. PACER is a clunky interface, but it gives you access to all the court system judgments around the country. You don't have to go out

and build it. It lets you build timelines and put together names. When Trish and I were doing our work on Motown, where did we spend nearly two months? You would think, were we hanging out with Smokey Robinson? Did we go and see the Supremes? Were we talking to Michael Jackson?

- 2.8** No. We were in the basement of the Wayne County courthouse in downtown Detroit, going through court records. And why? Because almost every great Motown relationship ended up in litigation. Somebody sued Berry Gordy, saying, "I didn't get enough royalties. I didn't like this. I didn't like the credit." Inside those records was a treasure trove of information about the relationships that happened between the artist and with management. We took all of that material out.
- 2.9** One of the downsides you have of doing research like that in person is, you have to pay for each copy, like 20, 25 cents for that. So you're trying to do the—you're taking pictures with your phone, you're putting it all together afterwards. Then, when you sit down with the source, when you go out and talk to a songwriter from Motown, and you say, "How was everything?"
- 2.10** Now they are 30 years past the event that they were angry about, and so they say, "Everything was fantastic. It was one big happy family." And you say, "Well, that's odd. You said here in 1989 that if you had a baseball bat, you would have hit this guy on the head, because you thought he was stealing so much money from you." And then maybe it opens up the door or not. So you need to know those records. And those type of court filings are fantastic.
- 2.11** SEC filings and corporate registries. You will curse me if you end up doing these because they're so boring. I think that corporations do their SEC filings, their 10-K filings and everything else, these 13D, to make it difficult for the average person to go through them and actually spot what's really going on. But you can find in there the relationships between different entities, related parties, shell entities. It's important.
- 2.12** Now you can take 10-Ks, scan them, or you can get them online and put them into AI, and literally have it look through 20 years of 10-Ks, if you're looking for a specific entity, a specific related party, and save a lot of time. Property and probate records, deeds, mortgages, liens, parcel maps. They trace the assets, you find the transfers, you find heirs, and most of all, the part that I particularly like, you find the hidden ties, you find the relations that tie parties together that you didn't otherwise think were there, so absolutely wonderful in terms of that.
- 2.13** Campaign finance and lobbying disclosures. These are actually pretty good. So the Federal Election Commission and the States have these reports. They do lobbying disclosure acts where people have to disclose if they're being paid to lobby by a company. They do foreign agent registration acts. And in there, if you go through them, and I've done it before, it's this wonderful detective work, we talked about thinking like a detective, you're linking money to meetings.

- 2.14** Then you're linking money to testimony before Congress or the FDA or the FTC, and then you're linking it, most importantly, to votes. So, how do votes get passed on a different drug? How do votes get passed on the FTC? Who was doing the lobbying for them? Are those related? And tie them together, and then you start to get a pattern. So those campaign finance reforms are wonderful.
- 2.15** By the way, that picture there, that is the Milstein Microform Reading Room at the New York Public Library. Trisha and I spent many times there. We lived in New York for many years. Trisha has a reputation. She has broken microfiche machines from New York City to Bangkok. She's running through microfiche as fast as possible, and then at some point it gets tied up and torn up, and it leaves a trail. But the archivists know her.
- 2.16** The last thing is contracts, permits, and licenses. Government procurement, professional licenses, building permits, productions, they're all public records. You're doing something about a developer, and you think that developer has an untoward influence with the city commission on a vote or with an approval panel, you can go through those contracts, permits, and licenses. You can map it together, and you can show who gets paid to do what. Often, again, it's follow the money. You're really looking at these public records in essence to follow the money.
- 2.17** Now, one of the things that you fail to find in a public record, so you're still looking for documents, and you should do this anyway, is a Freedom of Information request. People like to say, "Oh, Freedom of Information request. You get that document. That's right there on that screen." That is a document I got.
- 2.18** You get a document where, essentially, it's a joke. Secret is scratched out, and then all the information you actually want is still blacked out and redacted. My answer on that is, Freedom of Information is a limited tool that can at times be remarkably helpful, but at least we have it. I can't tell you how many journalists I talk to in other countries where it doesn't exist. There's no equivalent. So if you're operating in Hungary, in France, there's no access to public records. Germany, very restrictive. Places like Russia, forget about it.
- 2.19** What I mean is, we can access and apply for release of documents that government agencies have to respond to, and there's a way to do it. I'm not giving you any secret key here because I don't have a secret key, or I would use it all the time myself to get the best possible documents. But I've learned over the years the pitfalls of making too general a request.
- 2.20** First and foremost, request the government records precisely. You have to say, "I'm looking not just for the US Army," but maybe you know it's the Third Army that was dealing with something, if you're looking for this Nazi war criminal. You give date ranges and keywords. It helps them look for documents. When I first started to do it, I would send in a request to the Pentagon and say, "I'm looking for all the files related to

this former Secretary of Defense." They would just laugh because it would be cast—think of the government.

- 2.21 The government is this massive bureaucracy. And inside that bureaucracy, every division in every department has its own files and keeps its own information. And if you ask a generic question of the overall department, you don't get the answer back. You have to know as specifically as possible what you're looking for. Expect delays. No question. Persistence is part of the process here. I put down times to follow up with a query to say, "By the way, anything on my file?" I keep bothering them.
- 2.22 Before I said to you that you don't like to get a reputation as somebody who's not a nice person, but you don't mind getting a reputation as a nudge, as somebody who just is consistently bothering the Freedom of Information people to say, "By the way, any update? Guys, anything new? Are you sending documents my way soon?" The minute I get a rejection or a heavy redaction, like that file on the right, I appeal it.
- 2.23 You don't need a lawyer to appeal it. It's a statutory process. You go inside their own system, and they have the equivalent of a mediation service within each of these departments. You think to yourself, it's rigged, it's gamed, you're never going to get anything. Not true. The mediators often come to and tell the agency, especially intelligence agencies, "You've got to clear more of those files out."
- 2.24 I've found out over the years that narrow stage requests are faster, as I call them, wins. I start with indexes, if I have, and tracking sheets, and then I follow with targeted pulls, specific date ranges. The more specific you can get, the better you are. And once in a while, you're going to get something that's really, truly groundbreaking. And when it is, you have to make that count.
- 2.25 And so, for instance, I had made a request to the US Army to a specific division under Joseph Mengele, to see if they had any records on him, that wanted Nazi. They sent me FOIA records—this is 1984, 1983—that were not heavily redacted. And in those files, for the first time, I discovered that Joseph Mengele, this man now known as the world's most notorious Nazi fugitive on the run in South America, had been arrested by the Americans after the war, six weeks after.
- 2.26 He'd given a fake name. They didn't put him together on a wanted list. He didn't have a tattoo under his arm that said he was a member of the SS. He had refused that when he joined the SS. They didn't know who he was, and they released him. Interesting. Then they picked him up again. He's arrested again a month later and stays in a camp and gives his real name this time, and nobody's comparing him to the wanted list that he's on, and they release him again.
- 2.27 That was big news, that the world's most wanted Nazi war fugitive was caught twice by American forces after the war. But in the chaos of the war, in those displaced persons camps, that what you expect to happen, it wasn't because they got paid off, it wasn't because they were looking for something else or they were sympathetic to him, it was

the chaos of that that allowed him to get released. That was news, and it was available only through Freedom of Information.

- 2.28** Every journalist who had covered Nazi war criminals beforehand and had not asked for those documents from that group in the army wanted to choke themselves because that was a great story to get. It was only a matter of not doing the reporting, but asking for the documents. There's a case in which Freedom of Information would be important.
- 2.29** Remember, before, by the way, we said you have to verify what you get, fake stories, everything else. You get documents from the government. The information may be off-kilter, or that may not always be what you want, but at least you know the document's authentic. The government has not yet been unmasked for releasing its own set of fake documents. It withholds documents. You have to fight forever to get documents. It redacts documents. But the files they eventually send are their files.
- 2.30** Now, here's the real secret to sometimes getting great stuff. Secret allies, for me, they're the most undervalued collaborators in journalism. Because guess what? I go into a big library. I go into 42nd Street in New York City. You go into a main library somewhere, you go into the National Archives. I don't know what's catalogued there. I can look through the catalogue. I'm not sure. I can try to figure it out. The people who live there, who are the archivists, know it.
- 2.31** And it's not just a matter of taking you. They will take you, depending on your subject, into what I call the—they know the gaps in their own files. They can point them out to you and where you should look for them. The backrooms, if you treat them as part of your investigative team, you can really get them to help you. And they also are guides to overlook collections.
- 2.32** So they can point me sometimes to special collections, what they call these vertical files, accession logs, off-catalogue materials that I would never find in a million years if I was looking for them, unless they said, "Oh, by the way, you're looking at this subject on the Vatican? Why don't you come over here, and maybe it'll be helpful to you." You have to build relationships with them.
- 2.33** Again, I do plenty of requests through archives and libraries remotely. I make a request through their system, I fill in a form, and I get an answer from somebody, and I thank them by email, so you don't get this chance. But if you're there, and you're doing work for a while on a project—so on a book project, this was particularly important, we would camp out sometimes and be there for a couple of weeks at the National Archives, up in Washington. You build a relationship with an archivist.
- 2.34** They'll call you when you're back home about new files they got that relate to your subject. They know when they get a new delivery of something on it. There's some material, sometimes it's embargoed, so they can't show it to you at the time. They know when the embargo comes off. So if you're still working on the project, they'll let

you know about it. If something lands with your subject's name on it, they're going to drop you a note and let you know about it. It's fantastic.

- 2.35** Arrive prepared. Don't just show up and say, "By the way, I'm doing an investigative biography of Elon Musk. What do you have?" You're going to have to have more than that. You're going to have to say, "I'm looking at his time when he was at school, or when he was working with Facebook," looking at a specific period. Bring your own ideas of keywords or call numbers. Finding aids are helpful, and they let you get that.
- 2.36** Now, one of the things I always do is, when you're finished with everything, if you can, reciprocate professionally. And what I mean by that is, I've never done a book in which I don't thank at the end, in the acknowledgements, those librarians and archivists, unless somebody says, "Don't thank me," but they never have. They're working and toiling away in there. They're happy that they've been able to assist you on a project that has some meaning.
- 2.37** So it's nice to be able to say, "Here at the University of Pennsylvania, this person went out of their way to be able to assist time and time again." So always do that. It just makes it a little bit easier. I think that one of the things that you find, that not every record, remember, has been catalogued. These people can help you find those records sometimes. So they're a great way of getting information that may not always be available.
- 2.38** In 1994, I did an article called Secrets of the Files about the Berlin Document Center. Went to Berlin, and it was for the New Yorker. At the end of World War II, American troops found in abandoned salt mines literally football fields of boxes of documents that had been stored away by the Nazis. They were the files of the Nazi Party. They were everybody in Germany who joined the Nazi Party from day one, all of the racial profiling, everything else behind them.
- 2.39** They had been put there by this movement at the end of the war, in the hope that, if the Nazis could revitalize, they would still have their paper history. For people who do history or journalism, the Nazis are fantastic because they documented all their crimes and all their material. So it became the Berlin Document Center. This material was moved over to Berlin and was put into the underground bunkers that Hermann Göring, who was one of the big top Nazi leaders, had used during the war as his listening ground. He did all his spying from there.
- 2.40** So all the surveillance, all of the FBI equivalent of wiretaps, everything else, was done from these underground bunkers. Now, they house the Berlin Document Center. In the '90s, early '90s, the Americans hit a deal with the Germans to give them back the files. So we're going to turn them back over. And the question that I had as a journalist when I went out there is, "Hey, these are files that are fantastic. We access them all the time. They're important information about individuals and putting things together. So what's going to happen when they go over to Germany, which has much stricter privacy laws?"

- 2.41 You can't get information on anybody, not even alive. But if you ask for anybody who's been dead within a 50-year period, you don't get it. So the feeling was, these documents were going to go back to Germany, and not be hidden because the current German government was pro-Nazi, but be hidden because German privacy laws said you can't give them to researchers and outsiders. So they started a process based upon this work to microfilm everything that was in the millions of pages of files and have that microfilm available for Americans to use in the National Archives.
- 2.42 Of course, Trisha and I went over there, and two things we did, you talk about the people that cooperated with you. David Marwell was the head of it. He was the American who was head of it at the time. It was very, very helpful. But I ended up publishing an article that said, "By the way, the microfilming has a lot of problems, because you can't read some of the documents. They're not legible. They're really tough to read. The microfilming carries on all of that. You need to see it in person. There are problems about the accountability."
- 2.43 So even that process wasn't good. And Trisha asked a question which was very interesting. When you think about these archives, we're talking about getting into archives and getting access to archives. She said, "What's your biggest problem here at the Berlin Document Center?" We thought they were going to say that people come in and try to steal a document out of the archives that has the signature of a high-ranking Nazi that you could sell it to some Nazi collector or that. That was the thing about theft.
- 2.44 There was so little security there. There's nobody watching you, no cameras in there. They said, "Oh, no, that's not our problem. Our problem is people coming in and trying to insert something into the files that's a fake document." There are some people whose whole purpose on life is to study a battle like the Battle of the Bulge. And they are convinced that the chain of custody of orders went from this general to this general to this general, but they can't prove it.
- 2.45 So, they're so obsessed with that idea—we talked about confirmation bias before. This is confirmation bias that's clinical confirmation bias; it needs a psychiatrist to deal with. They actually come up with a fake document that could pass muster. They insert it into the original files of the Berlin Document Center, so that when historians or researchers or reporters go and study it, you find that file, and you think, "Oh, this is how it happened." And so I thought, there's the danger of changing history in all ways. That was Secrets of the Files.
- 2.46 Now, digital tools. To me, these are great because they are an extension of shoe-leather reporting. You can do more today, but you also have more that you need to do. Excuse me. So data-scraping. Some of you may have already done it. Some of you may wonder, what is it? You're copying, essentially, what's on websites into a spreadsheet.
- 2.47 There are tools, Exif and others, that allow you to do this. You're taking out, you're trying to correct for duplicate names because those exist in dates, and you're noting

where you found each item. You're trying to see if there's a relationship between some of the material that you may be finding in terms of cleaning up these website files.

- 2.48 Mapping and spatial analysis. It turns data into maps. It's very simple. There are a couple of apps that also have to do it. They're mapping tools. You drop pins on it. With clusters, you can sometimes see the relationships between people that you might not have seen otherwise.
- 2.49 If you're picking up emails from four or five different people in, let's say, they're not in Washington, DC, but they're doing lobbying in Washington. And now you do a mapping of where they're doing their social media from, and you find out that three of them live next to each other in Scottsdale, you might have had a little hint about more information than you didn't know before. You don't pick that up necessarily by looking at anything else.
- 2.50 The geo-location techniques. I've had some success with this. I get something, somebody sends me a picture, they send me a document that has a photo, they think that something's happening in this location, and then they tell me where it is. I actually go ahead and try to use Google Earth and Street View to confirm that what they've sent me is really the location they've said they've sent me. That's my own suspicion, double-checking from the beginning.
- 2.51 Remember what I said to you in lecture one—don't trust anyone, even allies? So somebody sends you information, and you think to yourself, is that somebody that got really angry at me four books ago, and now they're feeding me a false story, so I'm just lazy, and I go with it? And then I say, this location here is storing all types of confidential information without any safeguards here in Phoenix. And it turns out that it's actually in Mannheim, Germany. And I didn't do the basic mapping to see if that's the case. So you can check some of that, and it's not that difficult to do.
- 2.52 Open-source intelligence verification. There are a number of free tools on this where, literally, you can tell where something was filmed. The AI is getting a little better at providing it, but not foolproof. You still have to do a lot of the legwork yourself. You search the image online to find its original source, and you can compare details to find out if what they're telling you about what supposedly happened actually happened on that.
- 2.53 Security and audit trail. I do use password managers, and I do have encrypted storage. We talked about that a little bit before. I keep those methods for sources and transforms, transformation changes, and I screenshot sometimes something that I think is important, because what you think is important, you see as a screenshot, and you think to yourself, "I'll come back to that." Then you come back to it a week later, and it's not there anymore because it's been taken down, deleted, or they moved it, or they've redone the website.

- 2.54** If you see something that you think is interesting, screenshot it. The downside is that you end up with 25,000 screenshots at the end, and you have to make some sense of them, but that's an additional problem. Maybe we can deal with it another time. Online sleuthing. Related to this, but getting information. You may well be familiar with this. It may seem old to you, but who is in the domain registry? I check the ownership of domains often, if I'm looking at something to see who owns it. I can see the transfer dates; the DNS records let me know. The historical WHOIS is a website you can track the information.
- 2.55** One of the things I found in Pharma is that there would be patient advocacy groups that would go before the FDA and would say, for a small genetic illness that affects a small patient population—under 100,000 people is considered small patient population—there would be patient advocacy groups that would say, "There's no drug made for us. We want a drug approved that's being made for this."
- 2.56** When you would do the work on the websites and everything else, not always, but sometimes, you would find that that patient advocacy group was created in essence by the drug company who had the drug coming out. So they were very smart. The drug company got the patients who were affected by this small drug to go before Congress, then the FDA, especially the FDA, and say, "By the way, I need a drug for it."
- 2.57** But they were really sponsored, paid for, and wrapped and enveloped inside by the drug company. Now, it doesn't mean that their underlying argument isn't good. Maybe there should be the drug for that, but you should have that in terms of transparency. So the FDA is making that decision. They know it.
- 2.58** Reverse image video search. I love this, even though I have yet to find a major story based upon this. But taking a picture that I'm looking for that I can't find anywhere else and doing a reverse image check, one day, Google is going to finally get it down. But it can sometimes tell you if it's mislabeled media. Occasionally, I've done a reverse image check on a picture that's supposed to be provided to me by a whistleblower, and it turns out there are 16 variations of that in different forms that have already been done, and they just sent me something that was rehashed because they were bored that morning.
- 2.59** Social media mapping. You go to social media accounts, you can chart the followers, mutual connections, the interactions. It doesn't tell you, it's not giving you a disclosure about good or bad behavior. All you're doing at this point is putting together what I call the relationships that exist, because those can sometimes play an event coming up.
- 2.60** Metadata extraction. I talked a little bit about this before, but now I mean it specifically for PDFs and office documents. If I try to send a PDF to somebody or an office document, I strip it of all of its metadata. You get it, and you can read what I want you to read in terms of the document, but you can't see my history of the document—when I created it, you can't see how many times I edited it, or whatever else.

- 2.61** There's nothing wrong in that, but I just don't want to necessarily—if I wanted to provide that, I would send you a PDF and say, "By the way, I created this on September 2nd. I've edited it four times, and here it is." But otherwise, that metadata, it's kept inside the document, and you can strip that out, but you can also look for it, if you're looking for somebody doing it.
- 2.62** Have you used wayback.archive.org? Wayback Archive is the place you go to on the internet when you hear the old line, "Nothing is deleted forever on the internet." It's true, because Wayback Archive is taking essentially the equivalent of snapshots and pictures of the internet, of your websites, of billions of pages that are being put up at all different times. Does it get everything all the time? No, but it's an amazing tool to be able to go back when a company has changed its website, or a person has changed the website, to try to hide bad behavior, and go back and see what they had before. You also get the links off into owners.
- 2.63** Now, off of digital, back for a second to real people. I think that we talked about this in terms of building a relationship, how you never build a relationship on Zoom. Part of it is a slow trust. People have to have faith in you that you're going to keep your promises. When you say off-the-record, you really mean off-the-record. In the beginning of your career, if you are doing journalism, there's going to be the first person that says to you, "I want to stay out of the story."
- 2.64** You're going to make your first promise and assurance to one person, and then you're going to keep your word with that person, and then it's going to build, because you don't yet have the background for them to be able to trust you. They can't look at the rest of your stories. You're their first story. I had that first story with the Nazis, so people had to believe it when I said to them, "I will protect you."
- 2.65** But that's important. They know that you know it. And you can tell. Lookit, one thing I think that people who are in a precarious situation, who are providing information to you like that, they know authenticity. They know if you're just giving them a line, I do believe that. There's a difference between that. You either own it or you don't.
- 2.66** Protect identities at all costs. It goes to the question before we had, what to do about sources. Strip metadata, avoid naming them in notes. I have initials. I have initials that aren't related to their initials. I think it's so clever, but I'm sure that a 14-year-old superhacker could figure it out probably in about 30 seconds, but at least I'm going to make it difficult for them. I keep my files separate, and I do try to minimize exposure in personal meetings for surveillance, if I think it's somebody who could be fired or prosecuted.
- 2.67** Encryption by default. End-to-end encryption, no doubt. I use Signal for messaging. I find that it's pretty good. There's some questions recently about Signal. There's no perfect app, but people feel more secure on Signal. Proton is a Swiss-based email. You can get it for free. You don't have to pay for the upgraded version. You can get a free

email on Proton.Mail. It's a Swiss-based company that promises full encryption. A ton of journalists use it, and it's good.

- 2.68** I try to sometimes, I say here to you: enable disappearing messages. But I say that with a caveat. Disappearing messages can make a nervous source feel better, because they think they sent you something, and it's not going to sit there forever on your phone. You're going to have your phone open when you go to dinner that night, and somebody's going to see it.
- 2.69** The terrible thing about disappearing messages, and this is my bias, my DNA from being a lawyer, is that I love a written record. I love a record of what we talked about. I may come back. Sometimes, it's not a straight line on research. So you get something from a source. They've sent you a message in Signal or that, that's interesting. And guess what? It doesn't mean a lot then, because that message hasn't related to anything else you've uncovered.
- 2.70** Then, in two months, you've made a breakthrough on another area of reporting, and now their message seems important. You go back to it as a disappeared message, and I'm saying to Trisha, "What was it? I think they said it was seven times." She'll say, "No, it's—" Disappearing messages have a mixed bag on that. So it can make a source feel better.
- 2.71** Operational security. 2FA. You want to have a format where you don't get into anything. I try to avoid cloud auto-backups of recordings, and I try to log access to sensitive files as much as possible. All I'm saying to you, everybody has their own comfort level. You'll feel comfortable. Sometimes a source will say to me, not often, but sometimes they'll say, "What are you doing to protect me?" Then you can tell them.
- 2.72** Most of the time, they feel comfortable just based upon the assurance that you're going to do it. But sometimes they want to know, and then you can let them know. If you lose a source's identity—I never lost a source's identity—but if you lose a source's identity, you lose your credibility. That's what it comes down to, unfortunately.
- 2.73** Now, let's see how these methods converge in a real investigation. That's what happens when you have a blank wall in your apartment. I have a blank wall in my apartment. I turn it into a whiteboard to follow things on different books. That is particularly for Pharma and the Sacklers. Be relentless with details, build the case files. I get to do it all the way up to the ceiling on this. What happens is, essentially, you're putting together—
- 2.74** I run off sometimes on a computer. I'm taking, for instance, you'll see something that's Mundipharma, 1955, on the left. It has a little location. That's a company that's founded by the Sackler family in 1955 in London. And one of the things that then happens is, you can start to put out from that company locations of other Mundipharmas by following the track of them, by going through corporate records in England and other countries.

- 2.75** Now, there's something on the right in all those scribbles that may be hard to see. So I will end up taking something like this foundation, and then I'll end up finding an address for it, on this address in New York, 17 East 62nd. Then I will go, and when I'm looking at different companies over a period of time that have been formed, I look at their corporate records and I say, "What are the addresses?" And they're at that same address. So they're at the very same suite, at that very same address.
- 2.76** And then you find over time, there's a different address, 15 East 62nd. That's next door. It's part of a dual townhouse. And that has a whole series of companies. And then you find to yourself, there's a lawyer who's working for the Sacklers. And what's he doing? He's operating out of the very same set of addresses. You start to put it together, as I say, through this method.
- 2.77** And let me tell you, it goes like this. So what does it look like when you finally get to a book? These are all footnotes. They aren't part of the main part of the story. So, as I said to you before, an 800-page book has 150 pages of source notes. Not everybody's going to go to the source note, but the source note is there for reporters to let them know how it is that you end up doing something.
- 2.78** For instance, this is a case in which you have, again— maybe if I can get this on here—you'll see the address, the telephone number. I find this telephone number, 212-832-7900, and that ties into 15 East 62nd Street. That's the Manhattan business number, that same number, for a number of Sackler companies, including TerraMar Research, Angiology Research. It was the Beverly and Raymond Sackler Foundation.
- 2.79** Listed next door at 17 East 62nd was the Mortimer Sackler Foundation, the Sackler Lefcourt Center for Child Development, the Sackler Family Foundation, and the US office at the Sackler School of Medicine in Tel Aviv. You go over here, you get the street address, 17 East 62nd, and you find out that these two street addresses were the same ones that were investigated by a Senate committee investigations when they were looking into the Sackler Empire, but they didn't put together the addresses as being the key.
- 2.80** They knew where they were. They were looking into the Sacklers. The key was something as simple. People who are sometimes very, very clever, they do things that are pretty simply stupid, like putting all of your businesses you want to keep off the grid and offshore at the same street address. You would think they would at least do them at different addresses.
- 2.81** One of the reasons that I believe other investigators hadn't done that is because I literally have a file folder, a lateral file drawer, filled with old paper files of these documents pulled from New York state, from the incorporation records, from the state records, from London, from the Swiss records. The Swiss, by the way, big on secrecy, but they are open in terms of their company files. They'll let you see company files and when they were formed.

- 2.82** The key wasn't just knowing the names of the companies. It was because some of them have the name Sackler in them, and some don't. TerraMar Research, Angiology Research—you wouldn't know that was a Sackler front unless you mapped it to the address. You match it to the address, it has the same telephone number. It has the same number as his attorney. I'm starting to think that this is the same company run by the same group of people.
- 2.83** Now, that's not the final evidence. That's what I call evidence that they are the same. You then need to prove it. You then need to go into the court files or ask the people or do the confirmation. But I'm able to do that. There is another footnote in the book. You saw it before, that in 1955, the Sacklers, and it's known—so if you went out to somebody who was investigating the Sacklers 10 years ago and said, "Mundipharma," they would say, "Oh, that's a Sackler company that they founded in the 1950s, and it has nothing really to do with OxyContin. It's to do with some herbal drugs that they put out in Europe."
- 2.84** Not quite true. That firm, founded in 1955 in Basel, Switzerland, says" the author discovered that, as was typical of their American operations, the two London companies shared the same address." Now, if you're investigating somebody, and you find that they have a way of doing business, once you find that way of doing business, you've got their tell; you know how they operate, and you start to look for that.
- 2.85** So, for the Sacklers, they thought it was clever enough to form all these different corporate entities, but just keep them at the same address. So they did it abroad as well, but nobody was looking for that. So Mundipharma was there. As for the first Swiss firm, its address would be the same for 15 future Sackler-connected, Mundipharma-branded companies that opened in Switzerland through 2019, 12 of them still active. Now, that gets a footnote to a footnote.
- 2.86** Unfortunately, I cannot tell you how much time that number 75 took to compile. And it means nothing, because people reading the book will look at it and basically go past it. But that's where you earn your bona fides. That's where you're earning your quality as a reporter, to say, "By the way, I'm not just assuming they did the same thing. Now I'm going to give you each and every one of these, when they were formed, what their address is, and that's it."
- 2.87** That is something, by the way, that I've tried to replicate with AI, and I've tried to use with digital tools, and it's difficult to do, because you cannot say, "I want every company that was incorporated in Switzerland from 1995 to 2019 at this particular address." Because it will provide you a list of some companies, but what it will do, and I've tested it against this, it will leave out two-thirds of them. It doesn't get them.
- 2.88** AI is—we know it's not bulletproof. We know that it can give hallucinations and false information at times—we'll talk about using it as a tool later. But it's also dangerous, that if you do that search, you think to yourself, "Oh, I've got it. That's fantastic. Oh,

they did six companies," they actually did 19 companies, and 15 of them, you'll miss some things along the way. So the bad news is, there's no shortcut yet to be able just to feed it in, ask for it, and get it. Some of this just takes what I call a series of repetitive steps.

- 2.89** Now, one of the things that happened was that we look sometimes for people that we're trying to find to interview. I learned a long time ago that, when it comes to human sources, you never end up writing anybody off your interview list, because you don't know when somebody will say yes. I have talked to journalist after journalist, who say, "I'm not going to ask them for an interview because I know they'll say no. I'm too small. I'm nobody. I'm not writing for a big paper or whatever else. There's no chance."
- 2.90** You send off the right email, it lands on the desk of the person who's handling public relations for a big company executive, or you're doing something for a politician, or you're doing something for somebody in a private business, and you don't know when—that email is your pitch. It can't just say, "I want to interview you for this or that." You've got to tell them why it's a bit different, why it's worth their time, in a paragraph. Nobody's going to read more than a short paragraph. That's it. You don't have the time. That pitch is your effort.
- 2.91** Sometimes you still get a no. For instance, when I was doing the book on the Kennedy assassination, I decided to approach Jacqueline Kennedy, JFK's wife, who was then an editor at Doubleday. She had never given an interview. She had given an interview to William Manchester, a historian, after the assassination. Those files of her interviews, very personal interviews after the assassination, are still locked up in the Kennedy files, believe it or not.
- 2.92** Almost all the JFK files have been released, except for one-tenth of one-tenth of a percent. Some of them are Jackie's interviews with that original historian. So everybody said to me, "She'll, not going to say yes." I still sent a great letter off to her, and I did get no answer at all. The point of that is, at least I had tried. I never had to think afterwards, "I wonder if I had tried, if I would have been able to get that. That door is open." Because sometimes you'll surprise yourself on getting information.
- 2.93** In the process of doing that, the Sacklers, I tried to talk to the Sacklers. Of course, at that point, they had lawsuits against them, so they didn't talk. But a lawyer who had worked with them before, who had been in business with them before, this fellow Sonnenschein opened up a world of treasure for us in terms of material sources and real follow-up that we were able to nail them on. Not because he had a bad relationship with them, but because he knew the ravages of OxyContin had become so great that, over time, he thought there should be some balance for its early days of over-promoting it. So some days you're able to get to that.
- 2.94** Now, one of the things that happened on Mundipharma and the Sacklers and all these searches is, Trish and I use an application. Everybody has something different called

TruthFinder. It's just a people-finder. You can use anyone you want. People take their names off of it. They're harder to find, but you'll be surprised often. You use an app like TruthFinder.

- 2.95** You put somebody in, you have their general name and their age, a rough thing, and the state that they're living in. If you don't know the state, you put down the entire country, and it'll come up with 10 people that might fit the bill. Then you have somebody you might be able to contact. The email addresses and the telephone numbers given are almost always wrong, but you have at least a physical mail address often, a snail mail address that you can write to.
- 2.96** So we're doing the Sackler work. We're trying to find people inside to talk to in that. We do a TruthFinder at one point, one evening, and up comes this notice. On TruthFinder, it gives you a red box if it has somebody, and it says, "Oh, Marietta Sackler, who is the wife of the original founder of Purdue, Arthur Sackler, she lives just two blocks away from you." We thought, "That is a con. That is TruthFinder trying to get us to go to a higher subscription level by saying that a key source that we want lives two blocks away from us."
- 2.97** How is it possible that the wife, and she was involved in the business, of this senior Sackler, who created the campaign that made Valium the number-one drug in the world for 15 years, and whose brothers then created OxyContin, is retired a block and a half from us, and we don't know it? It's a very small town where we live in Miami Beach. You end up knowing everybody. So it has to be fake.
- 2.98** But we did a little bit of extra research, and it turned out she was in her 90s, and she was, in fact. I ended up contacting somebody in the building where she lived, and they said, "The bad news is that she's physically very frail. The good news is, her mind is sharp as ever." We then began a process of trying to get her to talk to us. She always just said no, through the people that were around her. She didn't want to do it.
- 2.99** A couple of months after we started that process, she did a renovation on her apartment. She ended up moving into our building, our condominium where we live two blocks away, and living almost the apartment underneath us. Now, that is torturous to know that a source that you want to talk to is still alive, is mentally sharp, and is literally 30 feet away from you. But there's also a point, and I value persistence, and I love it, but there is a point at which you have to know, no means no.
- 2.100** What I mean is, you don't want to get to the point where you are the harassing person. You're the person that they say, "That person keeps me up at night." We were very polite, made a couple more requests. In the end, she did not cooperate. I think it may have opened up a door to somebody else who decided to talk to us, so that we weren't going after her. But you do at some point have to say, fate tempts you to think that there's more there than there might be, but it's not always the case.

- 2.101** One of the things I find, when you talk about this investigative mindset, human sources, online sleuthing—we're going to have an upcoming lecture about data journalism, and I think it's fantastic. You can do stories just from data, and it's not spreadsheets, it's real data. But I think that a lot of people do just the online sleuthing. They do the metadata extraction. They pull the material from PDFs. They find out, they go to WHOIS, and they see what the websites are and who owns them and when the editing was done and what the relationships are. They think, then, they've done their work.
- 2.102** The human element is what ties them together in some ways. You've got to go out. People are reluctant to do the actual interviews based off of that. Think of the intelligence that you're getting in terms of the data, what you're pulling from the files, what you're getting digitally, what you know from mapping. It gives you an advantage. If you're doing mapping geolocation, and you know that three people who are lobbying the FDA happen to live within a half-mile radius of each other in the same city, you have a bit of information that may mean nothing.
- 2.103** It just might be a coincidence. Sometimes there are, as opposed to the movies, where they say there are no coincidences; there are, in fact, coincidences in life, and sometimes they don't mean anything. But you have something that you then need to pursue. You can ask them if they know each other, if you interview one of them; you can ask other people who deal with them, when they go before the FDA, if they know they happen to work together on the same project, and then you can follow the money backwards to see if you can put together whether they have the same funding.
- 2.104** The digital data is what I call an extension of doing real reporting. It lets you use the tools that are available to you to get information that you might not otherwise have. But you're still going to have to do the patchwork of tying it together and finding the glue that puts it together by going to people. Now, I think that Investigative Reporter's Handbook is not bad, as a matter of fact. It's put out by the Investigative Reporters and Editors, the IRE, a toolbox that tells what we did today. Or you could just say that I gave you the outline of it today, and you can skip the first five chapters or something, probably so. But it's what I call the basic outline book. Investigative success begins with mastering open sources, and every clue is a stepping stone.
- 2.105** In the next lecture, we're actually going to take the information we gathered and turn it into a coherent story. You decide on a project you're going to do. You're on fire about it. I stumbled into the Nazi file, but on other books or other subjects, I've chosen those subjects. You're on fire about it. It's great. You don't have the passion, you're in trouble. But now you've got to put it together, so you start off with the work of going to the librarians, necessary. You're doing the work in the libraries, doing the public work. You're using tools to get your data. You're getting some information.
- 2.106** Now the question is, how do you take that—we're going to talk about interviewing subjects—and how do you turn all of that into a real story? That's the next phase of what I call Journalism 101, because I can't tell you how many fellow journalists I know

who are really good at doing what we talked about in this lecture. They could sit down with you, and they've got the tools, and they'll scrape the metadata off, and they'll tell you how they're related and everything else, and they cannot put a story together from it. They can't tell the story. If you can't tell the story, the public is never going to read it. You have to be able to master this. But coming up is interviews, and coming beyond that is the art of storytelling.

- 2.107** I'm wondering, how is investigative journalism possible in a third-world country where there is mostly a predominant authoritarian government? How can someone practice this kind of journalism in that sense?
- 2.108** It's a great question. How do investigative journalists practice journalism in a third-world country, authoritarian, where you can't do it? The answer is, you really can't. That's why journalists who do it often, who have left a country, are doing it from abroad. They're doing it essentially in exile. They're trying to talk to people that they know and sources inside about what's happening in corruption in the government, or what's happening inside an NGO that's taking money and not doing the right thing, or a charity that's gone off. It's very difficult to do because you're not on the ground.
- 2.109** One of the things is that we are lucky. When I mean we, journalists like myself are lucky. We're operating here in the United States, and my complaint to you is that the government redacted too much of a FOIA file. Sometimes, yes, somebody gets heated, and you're worried about your personal security. But for the most part, we're worried about litigation. We're worried about being sued for libel. We're worried about those types of things. We're not worried for the most part about losing our lives.
- 2.110** And that's a real threat for people, not just in societies in a third-world country that's a failed government; you're in trouble. But in Mexico, our biggest neighbor, the highest death toll for journalists is in Mexico. It used to be Colombia and Bolivia. The reason is because of the drug trade, because the people who are running the cartels, with billions of dollars in profits, if somebody is asking the wrong questions or getting too close, their answer is not to sue them in court.
- 2.111** No Mexican journalist who's covering the drug trade really hard and really doing it the correct way is worried about being sued for libel. They're worried about whether they're going to get killed or not. And they do. And there's a list, the International Committee to Protect Journalists, which I'm a member of, they put out every year an annual report of the journalists who have been killed, who have been intimidated, physically assaulted.
- 2.112** And let me tell you, there is bravery out there in terms of what's being done that often isn't recognized, because we recognize it inside the business. But think of this. For most people, you read about it. If you read it at all, it's on page 32 of the paper that a journalist who worked for the national Mexican daily newspaper was killed yesterday in a shooting in Guadalajara. There's no follow-up. You never hear about whether

anything happens. It becomes just another page of news. It's like another line that comes across our desk in terms of news.

- 2.113** Most lay people who don't do journalism, who aren't on fire, when I've talked to them about this, their response is, "Well, why were they doing it? They knew there had to be a risk. They had families or whatever else. Why would they do it?" You can't answer that. There's no rational answer to that. You're doing it because you're on fire about it, because you really think that your reporting is going to make a difference, and you never think that you're going to end up dead. Nobody has a death wish here.
- 2.114** It's not as though they do this and they think to themselves, "Oh, I want to go out in a blaze of glory." No, they think they're going to be doing this for the next 20, 30, 40 years, and they're going to really uncover something. Danny Pearl, a reporter for the Wall Street Journal that some of you might know, was in Pakistan over 20 years ago. He had excellent sources and was reporting on, and he was a Jewish-American reporter, but taking that risk, reporting on Al-Qaeda.
- 2.115** He had made excellent inroads into these Pakistani military sources and radicals that had loose alliances with Al-Qaeda. The person who was his go-to had arranged a meeting for him with a key terror source. He felt safe. We all feel safe. We wouldn't take that move if we didn't. But that was his last move. He was taken, held hostage, put on video, and beheaded. My point is that— we talked about it before, I don't skateboard because I'm afraid of breaking an arm or whatever else, but I'm not afraid of going to Afghanistan during the war.
- 2.116** We have a quotient that maybe underestimates the extent of the danger in some instances, but there's no question that if you look at it, third-world countries in which you're writing about a government that's receiving a billion dollars in foreign aid, and a lot of it's going into private pockets of individuals who are government officials, and they have a family who's living in a palatial compound in Paris, as opposed to living in the country, and you're writing about that, you're at risk. There's no question. I think that's why there's no doubt that some reporting doesn't get done.
- 2.117** So for you personally, how have you made the leap or adapted to going from this more, what we'd say, analog nature of investigative journalism to this more digital sense? What has that leap been like for you? I know there are trade-offs, but what has that been like for you, personally?
- 2.118** It's been great in that I find the digital tools—and we'll talk a little bit about this later—a great help. They can be used as a help all the time. I sometimes say to Trisha, "I regret the fact that we're not going to live another 50 years because it's going to be fantastic." It'll be fraught. AI will be fraught with dangers, and we will be writing stories about it, but there are also going to be parts of it that are going to be amazing.
- 2.119** The type of research here, when I say to you, a lateral file drawer filled with paper files, boy, that's going to seem like the 1800s or something. So when I say to you now that AI

can only give you five of those addresses as opposed to all 19, maybe it'll give them to you and break down who owned them and everything else. So the databases and the online information is definitely an assistance.

- 2.120** One of the things that takes up more time for me personally is protecting sources because I know that it's easier for corporations with a lot of money to hire private investigators who are good at electronic surveillance, even if it's at the edge of breaking the law, or governments that want to know, or a hacker that just wants to find out who the source was on a story, for the fun of it. So, I spend a lot more time protecting the sources in terms of data protection.
- 2.121** Because I started off in the analog world, I may spend more time doing that than somebody who grew up in the digital world. There may be more cursing taking place at a certain time about the inability to get this key password just right, this triple-sourced, verified password, and what am I missing here? Because I do it basically myself. I'm not having somebody else do it. It's Trisha and me, and that's the team. We're not outsourcing it, so that I don't call up; there's no IT department.
- 2.122** There's nobody for me to call up and say, "By the way, is there another layer of protection of security here that I should add in, that isn't going to have me put in a 26-letter password every time that I do it on a machine that's not connected to the internet?" There may be, but I'm not asking somebody for that. The transfer has been good. It allows me to protect information, allows me to find information sometimes. It's a great complement, but I don't yet find it an irreplaceable tool.
- 2.123** The worst thing that happened for us as journalists, in my view—somebody else will disagree with you—isn't digital. It's COVID, because COVID shut down the interview process. It meant that, from that point—I mean, I published *Pharma*. Publishers, by the way, just so you know this, you get a book signed up by a publisher and they say, "Oh, that's great. If you meet this deadline for your manuscript, then we're going to edit it and we'll go through copy-editing, we're going to go through legal review, and then we'll get galleys made up and we'll send them out for reviews, and we'll publish it a year later."
- 2.124** It's a long lag time on publishing a book, because it's not tied to news event. The date for the publication of *Pharma* was March 2020, which turned out to be the month that COVID finally broke out everywhere. I had a book tour planned, Bill Maher, things like that. Those were canceled. He went on hiatus. All the appearances at bookstores, bookstores closed nationwide a week later. I can assure you, if you're ever thinking of writing a book, do not publish when bookstores are closed around the country; it's not a very good idea.
- 2.125** Sometimes you have no control over that. But COVID did something else for us. We like to continue on other stories. There's always four or five things in the fire. You don't have everything just on one story. You're chasing other things. Like I told you, Epstein

last year or things like that. Some of them don't go anywhere. Some do. It closed off the interviewing. No longer could we go up to Washington and go through the National Archives. They're closed. No longer could we go to the stacks of the New York Public Library. They were closed.

- 2.126** The places that I go to for author archives—I have all of my files that I've done in all of my books sitting in a place in Boston, Boston University. I didn't go to Boston University. I went to UC Berkeley. But they ended up there because, early in my career, when I was doing the Nazis, I found out that an author I needed, to get into his files, his archives were at this place called the Gotlieb Archival Center. It's a public access. All the files are there from all the research. You go up there, you can look through their notes, the interviews they've done, the tapes of interviews, everything else.
- 2.127** So I thought, "I'm going to give all my files there one day," and that's where we have them all. People can get access to all the work on all the different books. They were closed. Sometimes I need something from one of my previous investigations on a new investigation because, believe it or not, it relates. I couldn't even call them up to get it because they were closed.
- 2.128** So COVID closed down what I call the sources that we talked about before, those librarians, everything went online to the extent that you were searching. And once you're searching online, I'm looking for something on the National Archives, let's say, and I want to do a search for it. I'm no different than anyone in this room, no different than any other reporter. We all go on to the same website, we type in a request for whatever we're looking for, for information, and then we see what the system gets us.
- 2.129** So my point is, you have no competitive advantage. The competitive advantage in reporting is going out and working harder than anyone else. It's going out into the field. It's doing the things that people don't want to do. They want to just do digital research. They want to sit there behind a keyboard. Maybe the benefit of being analog is that I know you can't just do that. You can; it's just not going to be as good.
- 2.130** What I like, I love it when files are not digitized. Why? Because it means I have to go there. It means that if you're chasing the same story, you have to go there. You have to work through those same files. Maybe I'll have a better relationship with the librarian who I'm schmoozing and saying, "By the way, I'll give you a thank you in the book." She'll point me to some document that's key. That's great.
- 2.131** If everybody has a level playing field, which is just you can do it from the computer, one day everything will be digitized, I'm sure, just like those Berlin document files that I talked about in 1995. Then it's a matter of finding the material you're looking for. But I will also tell you, and this is probably a result of having grown up in the analog world, and Trisha is the same, that we get a particular charge and enthusiasm from being in the paper records and finding something.

- 2.132** I will tell you, it's fantastic. You're going through—on old records, sometimes they make you put on gloves, because they don't want you to put acid on the paper, and you're going to ruin the paper, and you're going through these boxes of documents that people haven't looked at in years. Then she'll look at something, or I'll look at something, and I'll say, "Hey, look at this. This is great." It's a document that people haven't looked at that opens up a file that leads you to something else, and you know you've got a bit of gold because it's not available everywhere.
- 2.133** When we did the work on the King assassination, of James Earl Ray, the King family was calling for a reinvestigation of the case. This is 1996-97. I published that book in 1998 on the 30th anniversary. We went to Memphis, where we spent a lot of time. Because the King family was asking for a reinvestigation, all of the original evidence from the case, James Earl Ray's clothes, rifles, his travel papers, all his documents, were sealed in the county courthouse, at the bottom of the courthouse, because it might be used in a retrial, if something was coming up at that time.
- 2.134** We had to apply to the judge who was overseeing the case to get a court order to let us in. And they let us in, and we spent a week down there in those dungeon archives of the Memphis courthouse, looking at the original history, looking at everything from the cigarette butts that were found in his Mustang when he had fled after the King assassination, and dumped the Mustang and wiped it down of fingerprints in a public housing project in Atlanta, before he jumped on a bus and started to head out of the country. Everything was there.
- 2.135** I will tell you that if you're working on a subject and you're into the subject and you're writing about it, there is something about the history of being in real paper or real materials like those exhibits that you can't replace. I can look at a picture of it all day long. But being there gives you a different sense and a different feel for it. I'm not telling you, you have to do that. You can still be a great journalist as a keyboard journalist and not do anything else. It's possible. But there is another element that I like, when you ask that question about the non-digital part of me that knows that you can also do a lot by what I call old footwork on the ground.
- 2.136** What would you say your true source of passion comes from? How would you advise future students to be able to tap into this passion that I see is evident?
- 2.137** It's a great question. Boy, if I could patent, put in a bottle the passion part, it would be fantastic. You can tell something from the line of books I put up before. They don't follow one subject. They jump around. You're doing the drug industry, then you're doing the Vatican, then you're doing Pharma, then you're doing Nazis. I like that. There are some people who stay in one field, and they build up a reputation in that. They know the sources. They're doing financial reporting, and they're doing reporting on intelligence.

- 2.138** And there's a benefit to staying in one subject because you know the people involved. When those people retire, they introduce you to the new people. You're always well-sourced. You always know who to call. The story is at your fingertips, and you know the field. We like picking a subject that we know almost nothing about, and then finding out about it, and becoming an expert and following the evidence. That part is the part that's fantastic.
- 2.139** The subject has to grip you. There's no question. But sometimes, for instance, you also have to get somebody to commit to pay enough to pay your bills. So the Vatican, when I said it was on and off for nine years, that's because it had been turned down twice before by publishers. Wanted to do the Vatican. I didn't know what the Vatican story was. I just said, Vatican, follow the money. Now I have to find a publisher who's willing to say, "Oh, yeah, Posner, follow the money, Vatican. That's got to be a good story. Let him do it."
- 2.140** But don't know what they're going to get back. I may come back in a year, year and a half, with a terrible story. That never happened, but maybe I come back and say, "I can't find anything." They're all above board and they behave like accountants, and everyone will be yawning, and that's the end of it. So they have to do that. They give you a little bit of money up front.
- 2.141** The way it works in publishing is, if you're doing a book, you get a traditional publisher, they give you an advance, not an enormous advance, but they give you some of that money up front on the signing of the contract. That's the money we live on. We sort of parse on and make sure that we're paying our mortgage, and we're doing our stuff. You have to know that, but at least you have the publisher there behind you, on doing that.
- 2.142** So I love going to a subject that I know almost nothing about, and then finding out what the story is and doing that. And we're very lucky that we've been able to have publishers over time do that. People will then say, "What's your favorite book?" I kid you not, my favorite book or project is the one I'm working on at the time. It should be like that, because that's the one you're on fire on.
- 2.143** When I was in the files on Motown and finding out about how they were doing suitcases of cash, I was as enthusiastic about getting information as I was about finding that Nazi in South America, in an odd way. The impact is different. It's not to say there's not different impact in terms of what's important in your social impact, but you've got to have that fire.
- 2.144** Now, that also does not mean that there aren't plenty of moments at which I curse the project I'm on, because it's proved more difficult than expected. I can't tell you how many times, in the middle of the Vatican, with offshore companies and things like that in the '70s and '80s, I would say to Trisha, "It can't be done. They've made it too difficult in this labyrinth. It's too complex." Then finally, there was a breakthrough after a long time, but it took a long time to get it. But there are those moments like that.

- 2.145** Then what happens is, by the time you're, let's say with a book, by the time your book comes out, remember, the book has been sitting there at the publisher for, say, nine months to a year before it's published, but you've finished it. Well, what do you think you're doing? You're doing the next project. You're already thinking, "Oh, they're going to publish this. So what is my next project deep-dive that a publisher might?" So by the time a book comes out, you often have the other book two, three, four, five months into research. You haven't yet sold it, but your mind's on your new project.
- 2.146** Now you have to go back all of a sudden, because your book is published, and talk about the last book, which you do with enthusiasm, because you're trying to get people interested in your book. That's the only time, I'm not kidding you on this, that, at least for me, when I think of, "Oh, I wonder if anyone's going to like it. I wonder if anyone's going to buy it." Because it's not just a matter of putting together a book that says, "By the way, here are the finances of the Vatican. Here's what happened with this Nazi war criminal. Here's what happened inside the JFK assassination." It's making people not just read an article about it, not just listen to a podcast about it, but now they have to part with \$20 or \$25 to read a book about it.
- 2.147** Now they have to look at a book like *Pharma* or *God's Bankers*, and it's 800 pages, and they barely have enough time when they come home from work to get dinner done and take care of their children. And you're asking them to read an 800-page book on a subject they might be interested in and spend money on top of it? I always think, "Oh, my God, it's going to be published, and no one's going to buy it." And that means no publisher will ever put me out again with another book because they made no money on it. And they'll say, "We're never doing those topics."
- 2.148** That's that moment of anxiety, if that makes sense, that you have when you actually suddenly for the first time, because I don't choose a project based upon what I think is commercial. I think that's a dead end. If you're choosing a project that you think, even an article, you think, "This is going to be great because it's going to get me a lot of followers on Twitter, or it's going to go ahead and make a lot of money when I publish it, or it'll get me a big reputation," it's the wrong reason for getting involved.
- 2.149** You get involved in the project because you happen to have some fire about it. That fire lets you do it, and then you worry about all the rest afterwards. The rest of it is sort of residual. You have no control over it. That doesn't mean you don't fret about it. It doesn't mean you don't want to get the word out about it. But still, and there are some things that are out of your control.
- 2.150** So, for instance, when people in the film industry buy your project, they go ahead and they will take an option on it. You'll get a book out, and they'll say, "I'll buy an option on it." Options really are like chump change. They give you a little bit of money, but they tie up the rights for a year, a year and a half, for them to try to go out and sell a TV movie, a Netflix, whatever else.

- 2.151** In *Why America Slept*, the book about 9/11, that was bought by Showtime, who we went out and met with the president of Showtime, who had done a series before that had been very successful. They made it into a six-part mini-series. It was on the paperback of the book, soon to be on Showtime. They spent millions of dollars on it, which we didn't see because we're still waiting for the—you get paid when they actually air it. And then it stayed on Showtime's shelf. It stayed on their shelf and stayed on their shelf. And then finally, they said, "You know what? It seems a little stale. We're going to give it over to our sister company." They were owned by Viacom then, to CBS. "They'll do it as a three-hour movie of the week, after 60 Minutes." And it sat there and it's never been on.
- 2.152** In *Pharma*, we had a fantastic documentarian, R.J. Cutler, who has done *The War Room* and other documentaries, buy the rights to *Pharma*. He sold it again to Showtime. There's something about Showtime I should be careful of. And Showtime did a six-part documentary, which we filmed, as a matter of fact, kept going back and forth to New York during COVID, and they put together a great series, and it's never aired.
- 2.153** So, what I'm saying to you is, you do the work you can. If you get accolades for it, fantastic. They help you get your next project, and they build up your reputation so you can deal with sources. If you get a good company to put out your work, and they help you pay your bills, that's fantastic. But you can't worry about the commercial success of it. It is what it is. Thank you very much.

Lecture 3: Interviewing Skills

At a glance — Interviewing skills.

- 3.1 I'm glad to see you decided to return to go on to the next part of interviewing. Interviewing, for me, is tying the data together. It's the most critical part of what can sometimes make a good journalist or a great journalist, the difference between them. Now, there's no magic in this. There are things you can try to do, but you can't get somebody who's recalcitrant, who's not willing to talk, who is evasive.
- 3.2 You can try every which way to get them to talk. But if they eventually don't, there's no magic to get them to do it. You can do your best. Sometimes a person that you end up interviewing that you don't think is important, turns out to be key. So it's wonderful. You have to be sort of open to that all the time.
- 3.3 One of the things I always try to ask myself when I go into a project is, take a project, I pull up the public information available on it. Sometimes that's a lot, so you can't get everything, but you're getting a lot of public information. You will see that other journalists have been there beforehand. And what they've done is, they've gone ahead, and they have interviewed key sources within that industry or on that subject.
- 3.4 I think the mistake that a lot of journalists make is that they take those names, which I take as well, and I mark them down, because I want to go back to them and maybe ask them a question they haven't been asked before, if they're willing to do an interview or whatever else. But a lot of journalists stay just with those people. They don't go out. You have to think outside that. It's a hackneyed phrase to say "think outside the box," but it's true. If all the other journalists have covered the story, what you have to ask yourself when you get into the story is, what are you going to do that's different?
- 3.5 You're not just going to get a little bit of a difference on a quote or that. That's not going to make a difference for a real story. You've got to find new information. So if you're going back to interview people, you don't want to interview them just to have a checklist, to say, "By the way, I interviewed these six people over here as well." You want to be able to show that you advanced your reporting by doing it.
- 3.6 So, the purpose of an interview is—oh, by the way, that's a picture, as you can tell, a little bit a while ago. That's 1987 in Thailand, up in Chiang Mai, when Trisha and I were hunting China white and the heroin syndicates. That was a very brave police officer on the anti-narcotics task force in Chiang Mai, where literally every spring there would be an opium crop. That area of the Golden Triangle is one of the prime areas for opium growing in the world, together with the Golden Crescent in Afghanistan and Pakistan, and some sections in Mexico. But really, it's the Golden Crescent, the Golden Triangle are the greatest.

- 3.7** At this point, in the late '80s, what would happen is, every spring, it would be amazing in northern Thailand. There would just be, as long as you could see, fields of poppies. They're beautiful. Sort of like being in the Netherlands and looking at tulips when there are tulip farms, but here there are poppies. And then, there would be a harvesting, which were basically the poorest people in the region, who were harvesting at just a dollar or \$2 a day, pulling the poppies off and extracting, with a little small piece of metal, the opium sap from it.
- 3.8** And then, there would be jungle refineries that would essentially make it into the equivalent of heroin. And at that point, you literally had, at the end of the spring, tons and tons of pure heroin that were able to make their way down the two-lane road, one lane down to Bangkok, before they would leave by boat for Hong Kong or other areas around the world.
- 3.9** The Thais knew it, the DEA knew it, and they also knew that the Thai government was not going to allow them to stop every truck moving from northern Thailand down to Bangkok. So it became a game of which trucks they were stopping, how the material was hidden, how it was done. Guys like this put their lives on the line all the time. And he did not have, back then, a lot of American journalists who were wandering over—we were living in New York at the time—and saying, "Tell us about this fight you have against heroin." He was fantastic.
- 3.10** At one point, a partner of his brought us over in an investigation to a policeman who had been killed, and the body was charred. I remember that. And we were there during that part. You don't have to be through something that graphic, but you build up a camaraderie with them, and they do their best to help you. These guys were amazing in terms of providing information.
- 3.11** I think you find, even if you're doing an interview on a regular business project, that you can find out missing fields, what's missing in the data. Sometimes it gets filled in by somebody who's doing an interview, the outliers. The data can be misinterpreted. Interviews aren't necessarily bulletproof, but they can help you interpret the data in a different way. Sources reveal what I call off-ledger facts, things you wouldn't get otherwise—emails, memos, private contracts, timelines, that do not exist in public databases.
- 3.12** You go back to that lecture before, when I said the key to good interviewing is getting in a public database and getting somebody, an archivist or a librarian, to help you. Guess what? Sometimes it's not in there. It's only by the person who's available who can give it to you.
- 3.13** There's also something that I think—and we'll get to some of this in the subjects—that there is an accountability and an impact from interviewing people and having their voices in on a project. You can have all the data sets, you can talk about the numbers, and they make a persuasive case. So if I talk to you about OxyContin, tell you the

numbers of overdose deaths, 100,000, 110,000 a year, over a million people from 1996 and through 2020, the mixture that led to fentanyl and heroin, the numbers are staggering, and they can get us outraged.

- 3.14** But if I give you the story of one or two sets of parents who we've dealt with consistently, who've lost their children to OxyContin or that, the impact is different. It's not that it's better or worse. It's a visceral impact. It hits you in a different way. So we're foolish as journalists to tell the overall story and not tell the human story. Only by interviewing do you get this.
- 3.15** And I also think that a key thing is network mapping, as I call it. Interviews reveal the relationship. Before, I told you that somebody might want to have a beer with you after work, and they'll lead you to other sources. But not only that, in the middle of telling you the story about what they are doing, they are talking about other people. Those are the people you're putting in the back of your head that you're ready to go off and then to try to interview yourself.
- 3.16** And I must say, one of the great things that you have to master, and you may be good at this from the get-go, and it'll be fine, is that you have to have what I call a great poker face. Now, I'm not a card player, so I use this term to mean just that somebody who you can't tell by your face. So sometimes in an interview, we are told something that to us is jaw-dropping. "Wow, didn't know it, out of the blue. Wow, we're really going to have to follow up on that." But you listen to it like they're telling you the temperature outside is 84 degrees.
- 3.17** And you say, "That's very interesting. So after that happened, what did you do then?" Because if they realize that they just dropped a bomb, they close up. If you say to them, "Oh, my God, you're kidding. When did that happen? Wow," then they think, "Oh, my God, I shouldn't have said that," and they start to close up. So instead, you keep the interview moving by essentially never looking as though you were surprised at anything, even though inside, it's like a pinball machine. Your brain is going off with what's just transpired and what you think you have to do next.
- 3.18** Preparing for the interview. Now, that is Wolf Hess. That's the only son of, named after his father, of Rudolf Hess, who was Hitler's Deputy Führer. He flew to England in the beginning of World War II to try to get the British to withdraw from the war. The British said, "You've got to be kidding. You're a top Nazi." They locked him in prison, and he stayed in prison for the rest of his life. His only son, Wolf, became an unrepentant second-generation Nazi, trying to free his father. He was one of the dozen children I interviewed for the book *Hitler's Children*.
- 3.19** Now, one of the things you learn in journalism is, if you're reporting on the—let's say you're going out and you want to talk to people who have two different reactions to their fathers who were war criminals. One set are ashamed of them, and they can't do enough to repent for them. The others have found a way—denial is a very strong thing

—to somehow convince themselves their fathers weren't that bad, and they defend them.

- 3.20** What you want to do as a journalist, you want to give the space for both of them to express that, even though you may only agree with one of them. You don't want to sit there and argue and debate the person who says, "By the way, I'm proud of my father," because you're not going to get anything else out of the rest of the interview. The proof that that was the case was that I was able to put a chapter down on him that I thought was absolutely terrible about what he said about society, history, and his father.
- 3.21** And he was so pleased that I didn't alter or change or turn his text around, which I never would do—his text is his text; it is what it is—that he agreed to go on Geraldo Rivera with me to talk about the book, *Hitler's Children*. Now, Geraldo, who had that crazy talk show where they were throwing chairs at one point, I think, actually named this *Children of Infamy*. That's very Geraldo.
- 3.22** He, by the way, Wolf Hess, I'm Catholic, raised Catholic, and Trisha is Jewish. Wolf Hess was not only a neo-Nazi, but anti-Churchill, anti-British. He thought the British were the real villains in the war. When he first met Trisha, because we're a team, he came up to her on a street on 55th Street in New York, this big 6'3 guy, and grabbed her and picked her up. I thought for a second he was going to crush her, but he was giving her a bear hug of affection, by his standards. So you know what? In journalism, you never know. And he was an unusual person.
- 3.23** So, define the mission and the facts to nail down. If you make for yourself what I call a one-page brief, what do you expect from the interview? What facts would you like to verify? Are there gaps in the timeline you want the person to fill in? It's great. Now, I'll tell you, I can't remember how many times I have followed that rule, made a one-page brief, and then five minutes in the interview, it's on the side, because the interview goes off on its own. So don't be locked into that one page. You've got your idea of where you want to go in the interview, but if the interview goes off in a different direction, take the one page and put it aside. You can come back to it anytime in the future.
- 3.24** So when I say targeted dossier, number two, read the prior statements. Sometimes you'll have emails that they might have sent, what they do. There's filings, there's the material inside of court records, there's news. What's the person's incentives? What are the risk for them to talk to you? Get an idea of that. Then you can, sometimes, as they're giving the interview to you, you can spot inconsistencies in the record in real time. Now, that doesn't always mean they're lying to you. Sometimes, look, we all forget things. We say things differently. We remember events differently.
- 3.25** One of the greatest lessons for me, in terms of journalism, was after the spaceship, the Challenger, had blown up years ago when it was launched in the U.S., the university, a university in Wisconsin, went ahead and they grabbed a group of students within three

days of that actual event, and they asked them three questions. Where were you when you heard about the Challenger discovery? Who told you?—Where were you? What time was it? And who told you? They went back to them two years later, found the same students, asked them again.

- 3.26** Now, it's not surprising to me that people remember it a little differently. "I think I heard it this way or that way." This is the part that's fantastic, is when presented with—about 45% to 50% had a different answer on one or three of the things—when presented with their original statements, two-thirds of them said, "What I told you originally has to be wrong because I'm sure what I'm telling you now is right." So not only does our memory change, but what happens on what they call snapshot, these flashbulb events, something happens that we're not expecting at all. So it's a major event.
- 3.27** The attempted assassination on Donald Trump in Butler: a flashbulb event. All of a sudden, you hear about it. You might remember where you were, who told you about it. But over time, you read things about it. You hear things. You might watch a podcast on it. You might read a book. You might see a documentary. And our memories, as they change, get filled in—and you converse with other people, you talk to other people about it—get filled in with the information and all of that. Then later, you could pass a lie detector test, that this is your recollection of what happened on the event.
- 3.28** So I'm always very suspect, first of all, of oral histories that are very late. I'm suspect always of people telling me stories with great recall of something that happened 20 years ago, 30 years ago, unless they've told the same story 20 times to journalists, and then it's not a very interesting story. That happens. When I see the inconsistencies, when I say, "Spot the inconsistencies in real time," you don't want to do it; you're not trying to embarrass someone.
- 3.29** You're not trying to make them look as though they're misleading you. You're trying to say it in a way of saying, "Well, I thought maybe you had once told a reporter for the San Francisco Chronicle that there were only three of you in that office, and now you're telling me that there were only two." And they may say, "Oh, no, that's right. I forgot." So you can nudge them into sometimes the right story, sometimes not. But it's worth pointing those out and getting it on the record.
- 3.30** Engineer your question flow. Absolutely key. Start with the—I think you will all know this. You probably don't need this. Start with the easy stuff, meaning the warm, easy, "How's your day? How's your life? Thank you very much for sitting down with me." Don't start drilling them from the get-go. Move to specifics. If you have to, you have documents with you. You can refer to a document and say, "What about this?" And that helps jog their memory as well.
- 3.31** When I say finish with accountability, what I mean by that is why and how questions. Why did that happen? Or how did that happen? It helps you understand in a different

way. The key is, if they've told you a story that looks like it's newsworthy, and they are recounting it as from their personal knowledge, then it's good for you to know who else knows it. Are there other people inside the company or other people who were involved in this, who might have some idea that this was happening? You want to get them to expand what I call the accountability, so you're able to go out and independently verify it with others.

- 3.32** Ground rules. Confirm on and off the record status and attribution. So two things. People often get confused with this. Lay people often get confused with it, especially. And I think even some reporters get confused, because I see them breaking the rules all the time. Off the record means that what they've given you, you can't use. You, as a reporter, have to go out and independently find it. So somebody tells me something off the record, they don't want to be sourced on it; they don't want that information used.
- 3.33** I can't then go out and say, "By the way, X happened at this company, and they have a slush fund to hide public money." I can take that information they've now given me—we talked about this before, the difference between evidence and a lead. They've given me the lead. I wouldn't have had the lead unless they told me. So, sometimes that off-the-record becomes the information that's the lead.
- 3.34** Many times, Trisha and I know this, the lead never—you can't get the verification for it. And we are publishing a book, an article, in which the off-the-record information was more explosive than the final published piece. That's very frustrating. You know that people say, "Wow, that's really a good story." And you know that there was even a bigger story, potentially, if the off-the-record was right. We said one day we'd like to write a book called Off the Record, everything that we were told off the record. But then, of course, we'd never be publishing again. But you have to do that.
- 3.35** Also, pick a quiet location, test your recorder, primary backup, batteries and timestamps. Now, anybody who says to you, "Test your recorder, primary backup," is somebody who used only one recorder on a big interview, and then it didn't work. That was me. I've done that any number of times. It's like having your computer crashing. You don't have a backup. So you have your recorder in hand. It used to be microcassettes. I think I had it on. Instead, it was held on hold. I'm taking notes. I later go to play it. There's nothing. You want to strangle yourself. You can't go back to the source and say, "Let's do it again." So it's nice to have a backup.
- 3.36** Quiet location. I say that with a smile because you don't have control over it. It depends on where the person is going to meet you. If they meet you, let me tell you, it's bad enough if they meet you in a Starbucks, because you have the recorder on, or you have your phone recording, and there's a lot of ambient noise. There's all types of pickup. If you have somebody at the table next to you who has a loud voice, and they're telling a story or they're on the phone, you listen to your recorder, and you're getting all of them and not the softly spoken interview across the table from you.

- 3.37** One of the biggest interviews we had was with a triad, a gang member in Hong Kong, who, for the book's name, in Warlords of Crime, was named Benny. He was fantastic. He met us in a nightclub in Hong Kong that was frequented by gang members. I will tell you: that was a totally useless tape. That was completely and utterly, you might as well have thrown it out. You can get some music, you can get some sounds, and you know that's going to happen. So what you're trying to do is then take notes. You obviously can't take notes in the nightclub. It looks a little bit odd. You're trying to remember as much as possible, you're going back to them. So when I say quiet location, if possible.
- 3.38** Plan for pushback and safety. Anticipate, if you have somebody who is what we used to call in law a hostile witness, but they've agreed to talk to you, they're going to give you some deflection. They're going to try to answer and not answer. They're going to do a politician's answer. And I always say, you're not there. If you're doing an interview, you're not— OK, TV reporters have a different task. They want to be on camera, often grilling somebody.
- 3.39** You watch 60 Minutes, or you watch a crime show. They want the camera to focus on them, and then they ask the question, and then it goes back to the person who's being interviewed, who now looks nervous. And that's great television. But for print reporters, there's none of that that takes place. It's not what we do. And you don't report it that way, at least I don't, in the book, of what happened. So therefore, you're not making any points by being aggressive. You're not making any points by being belligerent, by pummeling them, by making them feel as though they were lying.
- 3.40** You need pushback. You need to be firm. I do go after people, but I'm not there for the purpose of what I call a cross-examination. So that's a withering cross-examination, so they stand up, and walk off, and don't want to talk to me anymore. How many times have you seen some clip that's gone viral in terms of an interview, where some politician gets up from the seat while being quizzed by a hard interrogation by a reporter, and says, "This interview is over"? They take off their mic, and they slam it down, and they walk out. That's great if you're on television, but it serves no purpose if you're doing a print interview. The fact that they walked off just means you didn't get the rest of your material down.
- 3.41** Building rapport without compromise. You get your best information often from the people that you have the best relationships with. There's no surprise to that. It's going to be the case. So you want to try to build up a rapport with people. With somebody like Wolf Hess, who I spoke about before, the neo-Nazi, I'm never going to have a rapport with him. That's just what it is. You're going to get information from him, and that's going to be the end of it.
- 3.42** But with other people, this person in between Trisha and me is Eva Kor. She was one of the twins that ended up being found when we were doing the hunt for Joseph Mengele, the "angel of death." She was one of the surviving twins, together with her sister. Eva, it turns out, who died just a couple of years ago, was a force of nature. You

can understand how she was a survivor. She set up CANDLES, which you see down there, which is in Terre Haute, Indiana. It's a Holocaust center.

- 3.43** But what CANDLES is is "Children of Auschwitz Nazi Deadly Lab Experiment Survivors." That's her and the other hundred children who survived. And she is a tribute to it. So with her, it was easy to build up rapport, because I like to think that what I'm trying to do at its best is put a spotlight on something that hasn't been exposed, build up some truth, and have some accountability. That's what she's doing through her work, so it's easy to understand that.
- 3.44** So, clear ground rules from the beginning on anybody. I'm very transparent about what I want to interview them on. I'm clear about, "You tell me if it's off the record attribution." By the way, before I said off the record, they don't want to have it published at all; you have to do on your own. There's something else you may have seen any number of times in an interview; it's called background.
- 3.45** If somebody says, "By the way, this is on background," that you are allowed— not that there's an official rulebook, but to the extent there is in journalism—that you're allowed to say. You can describe what they said, because if they're a first person, they were in on a meeting, but you can't attribute it to them. So you'll see an article that sometimes says, "A person in the administration, well-placed high source in the administration, said on background only that the administration is going to do this if China doesn't do something on tariffs." Background information is given from a source that is known to be trustworthy. They're inside the information, but they don't want to have it attributed to them. So that's the difference. You set those rules right away and find common ground.
- 3.46** So the interview is in some ways a collaborative truth-seeking exercise. I know that may sound corny, but it's true. But it's more important for you to think of it as a truth-seeking exercise. The person being interviewed thinks of it as just relating their story. They may have some experience, they may have some history, they may have a viewpoint. They don't necessarily see the whole picture.
- 3.47** Show respect and empathy. That's why I always avoid what I call the "gotcha" tone. People do open up, more likely, not all the time, some people just stay closed all the time, but they open up more if they aren't judged. So if you're able to listen to it and not necessarily judge them as they're going through it, you'll have an easier time.
- 3.48** For instance, Eva Kor went to the trials of Nazis who were put on trial in the last decade in Germany, the last of the aging Nazis, and said sort of to them, "I forgive you," meaning, I think that it's time to move on. A lot of other survivors didn't like that. I thought it was remarkable to watch. I didn't judge her one way or the other on that, but I wrote about it. But I didn't have to necessarily say, "Eva, I think you're right." You're not.

- 3.49** You always have a viewpoint. It's not to say that you don't feel. You're doing a story, you know how you feel about it. The hard part is to remove yourself, so you're reporting the story. You're reporting the facts. Like I said before, don't have a confirmation bias. Don't go in there with your mind already made up. It's the same thing here. Don't report it, shouting what the advocacy is on it. Your readers, in an article, in a Substack, in a book, will be smart enough to pick up your reporting and what it means.
- 3.50** When I say listen actively, I try to— sometimes, some people are very direct. They say, boom, boom, boom. I love that. I get that, like the lawyer's way of laying it out. "Here's why I did this, and this is why." And then you have follow-up questions. But some people talk in a more lyrical and poetic way, and they're talking about something important. You need to say, "Are you saying X?" Make sure you understand exactly what they're saying before you assume that you understand it.
- 3.51** When they tell you that this is what a department was doing, or this is how money was being siphoned off, "How do you know that? Are you confident in that? Tell me why." You can't go with that one source. So you're looking for them. And now, it's not that you're challenging them. You're asking them for corroboration. They will often do that.
- 3.52** Be patient. Silence is a tool, and I've learned that from Trisha. That last phrase is really hers. Unhurried pauses and second passes produce breakthroughs, sometimes. I had a tendency where I was raised on debate in high school and in college, and so I'm used to coming in on top of somebody, and then they come back on top of me, so somebody's giving me an answer. Now, some people take their time in answering. The pause at the end of a sentence is not because they're finished, but because they're thinking about what they want to say next.
- 3.53** I remember early on, I would use that pause to come in with another question, and Trisha would say, "I don't think they were finished. You're not getting the best out of them." And she was absolutely right. So, I've trained myself to be patient. I trained myself to let that pause sit there and to let the person pick up. Now, sometimes, guess what? Pause is just the end of what they have to say. So there's this unusual moment in which you're waiting for something else, and then they're looking at you, and then you do realize, or you need another question. But that's fine, so don't rush it.
- 3.54** And in line with that, I think it's important to know that there is no question that you should ever assume, no matter how much preparation you've done in terms of data work and digital work, that you know the answer to, because you just don't. There are a lot of examples. One of the best examples, when we were doing the work on Ross Perot, the presidential candidate in the '90s, one of the people that we interviewed in Dallas had been a former executive of his, in Electronic Data Systems, his company.
- 3.55** This guy had been savaged by Perot. They had a very bad breakup. Perot had people doing surveillance on him. He was spying on him. He had personal information on him.

He turned his life upside down. It was a very tough interview in that it was very emotional and very heart-rending. At the end of that interview, a couple of hours, I'm often asking the questions, and Trisha, who's listening through the whole part, will follow up with anything at the end that she thinks I've missed or that.

- 3.56** She said to this guy, "So, would you vote for Perot for President?" I thought to myself, "What a ridiculous question. The guy has just told us for the last two hours how Perot ruined his life." I didn't say that, but I'm thinking that. He thought for a moment, and he said, "Yeah, I would. He's a real son of a bitch, but that's what we need to lead the country." I was, wow. So that was the lesson. Never assume you know the answer because people sometimes might surprise you.
- 3.57** Questioning techniques. Some of you may recognize Al Franken there, former Senator from Minnesota. That's when he was on his Comedy Central days. He had a show. This was at Perot's convention for his independence party, and he was actually interviewing me at that point. But Al Franken was a pretty good questioner.
- 3.58** Questioning techniques. Open and close. Start broad. Generalities. Go to narratives. Walk me through your decision. Then, tie it in with yes or no facts. Drill with follow-ups. How do you know? Who else can confirm that? Where's that in writing? All the things you would think of. Sometimes you get blanks to all of those. There may be no answers that are satisfactory, but at least you've asked all the time.
- 3.59** Fix a time and place. I can't tell you why this is important because it turns out to be critical on your follow-up work. Who was in the room, if they can tell you? What time was it? If you know that, you can look through documents looking around that time period to see what else was going on. Sometimes emails will come up and other things will tell you particular things are happening in that time.
- 3.60** Surface alternatives, or what I call contradictions. You have to test for completeness. What would your critics say? That's always a great way for a public figure of getting them to say, "All the people who think that you are a liar, how do you respond to that?" Instead, you say, "What do your critics say?" That doesn't sound quite as bad. Then they will tell you. They know what you're asking. "What else could explain that? What changed after the meeting?" You have to do the commonsense follow-ups. Now, you can't do that on a document. You find a document, you find an email that exposes something, those are the questions you have. You can do it sometimes with a source, if they are well placed.
- 3.61** This gives you a chance in questioning to reconcile contradictions. This is where I say somebody had said something before, now they're saying this. Ask them to reconcile it. Don't say, "By the way, they both can't be true. You're forgetting what you're saying, or you're lying about it." Say, "How do you explain this?" And then re-ask it later. Sometimes, with the document, you can show them something. They don't feel

pressured by it. They feel as though you are assisting them. And if they feel, again, it's a collaborative process, that will help.

3.62 Dealing with evasive sources. That is me in 1984. The person in the military uniform is Colonel Alejandro von Eckstein. He was the co-sponsor, he was a Paraguayan colonel, was a close friend of the dictator Alfredo Stroessner. He was the co-sponsor in 1960 of Joseph Mengele, the "angel of death's" citizenship into Paraguay. So Mengele, living the high life for 10 years in Argentina on the run, had felt so safe he'd gone back to the use of his own name. The man that was thought of as the most wanted Nazi was in the Buenos Aires telephone book in 1958. No one was looking in the telephone book.

3.63 Then all of a sudden, in 1960, '59, '60, Adolf Eichmann, another Nazi fugitive, is kidnapped by the Israelis who bring him back to Israel to put him on trial. Mengele is now scared for the first time, so he has to go underground. He goes to Paraguay, just to the north of Argentina, and he gets these what I call aides of the dictator to sponsor him for Paraguayan citizenship. And he throws off all the Nazi hunters by taking the name, it's hard to believe, Jose Mengele. True. He kept his last name and just changed Joseph to Jose, and still, they weren't finding him.

3.64 I know the real question is sometimes, how was it possible? This man in the uniform was one of his co-sponsors for citizenship. So I went to him all these years later and wanted to talk to him. He introduced me to this doctor who lived in downtown Asunción, a German doctor, Otto Biss. Otto Biss claimed to have done surgery on Martin Bormann, the fellow who, later, I'm talking about the Bormann file, one of the missing Nazis, and described this long detail. I don't know if it was true or not, but it was a great tale. It was one of those things you couldn't pin down.

3.65 So von Eckstein was one of these sources who was always extremely evasive. You had to pin him down time and time again. First of all, I'm not so sure of the look that von Eckstein is giving me there, but I'm glad I didn't see it, but it turned out to be fine. There was no danger in Paraguay that I was aware of. Keep a neutral tone, slow down your pace. And I do think that if you're composed, they are composed, for the most part. "I hear you, but did you approve this contact? I hear you, but how did Mengele come to you?" And then they'll be evasive, and they'll try to get around it.

3.66 You're trying to get information out of them that you know that they're not going to be that willing to give up. I would note down on my notes every time I thought they were evasive. I'd have a timestamp on that. And I now say, do it by email, but I would write a letter to these people afterwards, to try to get some further information on the record. I'd give them every opportunity to come forward and say something.

3.67 Lock down specifics. They give you generalities, you want to create them into facts—who, what, where, when. Documents, names, witnesses. So you think to yourself, "Why would this guy, who had co-sponsored one of the most notorious Nazi fugitives, agree to talk to me?" Because one of the things in print journalism, by the way, absolutely

critical, is that you never pay for a source. You don't offer them a dime. So nobody's talking to you for that.

3.68 It's not like the tabloids who will do that. So, some of the British tabloids and others will pay somebody for information. You're never doing that. So they're not talking to you for that. In part, it's to see what you have. So they want to see. At the time, we, journalists, thought Mengele was in Paraguay, that he had already left there. We didn't know it at that point. So I thought that he was talking to me to make sure that I didn't get close to Mengele. He was just interested to see also what I had, about what I called the days when Mengele was there in Paraguay.

3.69 So you're exchanging information with each other. At a certain point, you tell them that if they aren't really being fulsome and they aren't giving you information, that you're going to come back and say in the book, say in the article, say in the reporting that you have, how un-useful they were. Now, he said, von Eckstein, "I'm not a Nazi. I didn't even know what he was accused of," type of thing. "It's all news to me, what you're telling me," type of thing.

3.70 Then, while I'm going around and getting archives in Paraguay and everything else, I end up coming across a photograph. This is very interesting. This is a photograph from the 1950s. That's von Eckstein on the left in the lighter trunks. There's a Paraguayan boat driver in the middle. They've gone jet skiing, water skiing. And there on the right, in the dark trunks, I don't know if you can really see it, but there's a dark part on his right leg all the way down. That's because it's a false leg.

3.71 That's Hans Rudel, who was Hitler's most decorated pilot in World War II. He was one of the Nazis, never charged for war crimes because he was a pilot, but he was a hero among the Nazis. He helped form the networks after the war that raised the money to get the war criminals down to South America. Here he is, enjoying a day going out water skiing with von Eckstein, who says he doesn't know anything about Nazis. All these stories are new to him.

3.72 I went back to him with that picture, and his answer to that was, "Oh, well, Rudel, but he wasn't a war criminal." So you push them back bit by bit. You do it within a confine in which it's safe for you to be able to do it, and then you see what their reaction is. But I was aware, always that I was on their territory, on their ground. They had the ability. We went to a little hotel called the Hotel Tirol, run by Germans in southern Paraguay, in the middle of a rainforest that had been a refuge for Nazi war criminals over time.

3.73 You realize all the time that there's a limit to how hard you can press them because, at a certain moment, you're in their confines. That's the benefit. You've opened them up. They feel very comfortable as a result of you being there, because not many journalists end up doing that. But in this case, it turned out to be very productive, because eventually I was able to fill in, as with Argentina, what happened to him then.

- 3.74** The ethics of interviewing. This guy here, Rohullah Khan, he is still— I met him when I went to Afghanistan in 2011, during the middle of the war. He was the equivalent of a warlord, but he came from nothing. He came from a small village in Afghanistan, started with nothing, and was basically illiterate. But he was extremely brave, and he saw an opportunity with the Americans and the allied forces that were in Afghanistan.
- 3.75** Because the Americans and the allies and everybody who were there, they would fly their military goods into Bagram Air Force Base, and then they would bring it down to Kandahar, to southern Afghanistan. There's one highway, called Highway One, in which you transport everything down from Bagram Air Force Base down to Kandahar. It's a two-lane road, and it's pretty open most of the stretches.
- 3.76** The American military, the French, the British, everyone else, they said, "We're not going to drive that stuff down to Kandahar because it's open season for the Taliban." They come in from every direction with RPGs and everything else. They're trying to blow up the mission as it goes along. So we'll give a contract out for somebody to be able to do the private security.
- 3.77** And Rohullah Khan stood up, got the attention of somebody and said, "I can put together a group of fighters who will accompany those mission after mission after mission, truckload after truckload, down to Kandahar." The American military paid him a good amount of money for that. He lost more than half of his workforce in the first six months of doing it, from attacks from the Taliban, as they would know it was coming down. But he would be on those convoys himself.
- 3.78** I met him because the American military, there was another company that wanted the business, another Afghan company. It's cutthroat. It's war. Everybody's looking to make a profit from those types of things. The other Afghan company reported to the American military that Rohullah Khan had signed a contract that said, on all those missions going south, to guard the equipment that's being sent, my men can use nothing larger than an AK-47. No gun bigger than that.
- 3.79** And Rohullah Khan's men were using .50-caliber machine guns. They had these big guns mounted on top of the trucks to keep the Taliban away. So the American military said, "You violated the contract. You can't use anything bigger than an AK-47. You're using .50-caliber guns. We're taking the contract away from you and giving it to somebody else."
- 3.80** Now, that's a case in which I went against what I told you before, is, never become an advocate, because I became an advocate for him, because it turned out he didn't speak English. And the contract that he signed, he didn't have any idea what he was agreeing to. And he said to me, "That's insanity." He said, "If my men only have AK-47s and the equivalent of it, they're going to get slaughtered." He said, "We're having RPGs sent at us. I can't do that."

- 3.81** But I said, "You need to talk to the military. We'll set up a Zoom from Afghanistan"—this turned out to actually be in Dubai, where I met him once. You can tell: where did we go in Dubai? To a place that he chose, KFC. It's true. I don't know how that food settles with him, but it did. "And you tell the American military that you'll abide by the rules, even though you think it's insanity." That's what he did, and they let him keep the contract.
- 3.82** He is still there in Afghanistan. He's not able to come over on a special visa waiver. We've tried to get him to get that, but he helped the American military more than almost anybody else. I met him during this time, and it's one of those situations in which, when you first meet him, as with other Afghans, they're in the middle of a war. They're doing operational things. You don't want to say or do anything in your reporting that's going to get them into more trouble than they're already in, in terms of the risk.
- 3.83** So set and honor ground rules. Define on the record, off the record, background. Confirm it in writing if you have to beforehand. You didn't have to confirm in writing with him. He took your word for it. Get informed consent, how the material is used, recording status, the limits of confidentiality. For most people, you're going to tell them that. Protect vulnerable sources. When I say minimize harm, I will let somebody be anonymous if it's important to protect their safety. But I'm like every other journalist, and like you will be, if you're going out to do it, you don't want anonymous sources. You want names. I hate using anonymous sources, but sometimes you have no choice.
- 3.84** Strip the identifying details out in reports that you're using and plan for any retaliation if you can. It's sort of that extra work. Be fair and accurate. Give a right of reply to them if it's something that you think puts them in a bad light. Keep the context and document as much as you can, exactly what was said. Doing this at a KFC in Dubai in terms of noise was impossible on a tape recorder. So you're trying to document as much as you can afterwards. You go back to the hotel and you're writing down everything that you can. But if you have doubts about what was said, you have to get back to them, to question them again.
- 3.85** And secure your materials. What I mean by that is, use encrypted comms, safeguard your notes and files, don't let them just sitting around inside the hotel room or inside your place, and practice metadata hygiene in that sense, so that you're trying to limit as much as you can information.
- 3.86** While I was there, at one point in Afghanistan, he came one time and said to me that he had been picked up by the allied forces, put into the back of a large van, and driven around Afghanistan for a few days. They took his phone away from him, and they questioned him, all types of questions. No hard interrogation, no beating him, no waterboarding, things like this that you later heard about. But they kept him locked up for this time. It was actually a British officer, a woman, who was doing the questioning. I believe that they were worried, on the allied forces, that he was selling information or

somebody on his staff was selling information to the Taliban, and that the attacks were picking up.

- 3.87** So they were vetting him for that. He passed the vetting stage, and they let him out. And I said to him, "Do you still have your telephone from that?" And he said, "Yes." And I said, "You have to throw that out," because I guarantee you, the telephone they took away from him was now tracking him and probably listening to him and everything else. So the last thing you want to do, and he wasn't thinking like that, "Unless you want to be talking to the allied forces all the time, you should get rid of your telephone and start fresh and have them trust you."
- 3.88** Using technology in interviews. I will tell you, I'm not embarrassed to say, but I'll tell you how old-world I am. I've got boxes of those tapes. Those microcassettes were, I thought, a miracle when they first came in, because I didn't have to do real cassettes. Microcassettes were fantastic. Recording devices, confirm one- or two-party consent laws. Announce your recording. Use two recorders—I talked about that. Check your mic.
- 3.89** Now, why confirm one- or two-party consent laws? In the States, that matters, because some states require only one party to consent, like New York. If you're having a conversation in New York, if you telephone me and you're recording that conversation, you don't tell me you're recording, I think that's pretty low. I think you should tell somebody you're recording, but you don't, for whatever reason. And I don't ask you, "Are you recording it?" I don't check on it. That's not illegal. That's fine.
- 3.90** One-party consent, which basically means that the person wanting to record it can go ahead record it with no downside at all. Other states like Florida are two-party consent. I live in Florida. Even if I'm interviewing somebody in a one-party consent state like New York, I'm required, if I want to cross every T and dot every I, to get their consent, to say, "I'm going to record this conversation and I'm going to use it." I think that that always makes it much easier.
- 3.91** Now, that being said, live note capture, that's just a different thing. It's time-coded notes. It's a small app. You can mark down claims you're going to verify later. I say to use that, but I also just use a yellow pad and sometimes jot down, "At 45 minutes into the interview, check," and then I go back and listen to it later. By the way, all of this is being said with the assumption that somebody that you're interviewing is allowing you to record, because there are some people that say no.
- 3.92** Now, I hate that, because I say to them, "It's worse for you and worse for me. I don't have the exact copy of what you're saying, so I'm taking it down from notes. I can follow up with you, but actually, it's more accurate if I can record it." They don't like that, and especially if they're talking to you off the record, they think somehow, they don't know how good your security is. It's going to end up on the internet, and it's going to be on YouTube in the next day. So they don't want any recording.

- 3.93** Then when we interviewed Ross Perot, Perot said to us— by the way, I said, "Can I interview? Can I record?" He said, "Absolutely, and I'm recording as well." So I said, "Oh, that's fantastic. So if I lose my recording, I can use yours." He said, "I don't think so." But during the process of that, we had something that was very interesting, that if we didn't have on tape, maybe we wouldn't have been able to use it.
- 3.94** At one point, we asked Perot about a debate that he had with Al Gore, the Vice President of the United States, about NAFTA, the North American Free Trade Agreement. When NAFTA was first in, Perot was against it. Clinton and Gore had helped push it through. So Gore and Perot had a debate. And I thought, Trisha thought, most people who watched it, thought that Gore absolutely demolished Perot. Perot is very quirky, and he's got these great sayings, but they didn't hold up under Gore's withering display of facts.
- 3.95** So we asked Perot, "Hey, what about that NAFTA debate?" Just to see. And he says, "Hey, Trish," because he was talking to her, he said, "You've seen that debate?" And she said, "Yeah." He said, "Didn't you see something on Gore's ear? It looked like an earpiece. He was being fed the answers." Now, that's pretty amazing. So first of all, national television, live interview, Gore had an earpiece on that's feeding him the answers, and no one noticed but Ross? Possible.
- 3.96** Maybe we all missed it. Maybe he's got some blowup that's going to show it to us, or it'll be different. But it also tells you about denial. People can't admit sometimes when they do something that's not good. So instead of saying, "Yeah, it wasn't my best night. NAFTA is still a terrible deal, but I didn't make my best case that day," he has to feel the only way that Al Gore could best him would be if he was being fed the answers.
- 3.97** So he set up the tape for us to watch in a boardroom, and Trish and I were watching it. One of Perot's secretaries came in, like, halfway through, looked up and saw we were watching, and said, "Not a pretty sight," and walked out, because that debate was not great for the Perot people. And at the end of that debate, Perot came back to us and said, "Hey, Trish"—he was a real Anglophile, so he liked the fact that she was British—he said, "Hey, Trish, what did you think?"
- 3.98** And I love this, because this is where you have to be—she's a straight-shooter, anyway. I am. You can't BS, you can't lie, you can't deflect, and later have somebody come back and say, "Oh, they were saying this." Trish said, "I didn't see it, Mr. Perot. I just didn't see it. I didn't think." And he went, "OK." Well, when we published that in the book, that became the news item. Ross Perot thinks Gore fed answers in the debate. It became part of his quirky side. You never know what you're going to find. It goes back to Perot recording the conversations with us. He was one of the few who did that.
- 3.99** Transcription tools. Run auto-transcription. Do I do that? Not always, not if it's off the record. I try to use speaker time codes for easy citation. You should know that, if you do this, you will be following better rules than I follow myself sometimes, because you

get into the interview. If you get into the interview, you're having a conversation. If the person is really telling you something fantastic, you sort of forget, "Oh, yeah, I should mark that time code," or things like that. If you do it, you actually throw the flow of the interview off.

- 3.100** People forget the fact that the phone is running, it's recording it, that you're taping it. Then once they forget about that, it's fantastic. Then it goes into the background, and you only remind them that it's a formal interview and what they're saying is going to have some impact, when you do something like, "Oh, wait a minute. Let me timestamp that." Then they're thinking of what they said and everything else. You can do it occasionally, but not too often.
- 3.101** AI-assisted analysis. I know reporter friends of mine use it. They summarize themes, they extract data, they build timelines. I don't use it as much because I use AI for a lot of things, but I don't trust it for transcript analysis, because I'm going to end up doing my own transcriptions, as you know. Security and chain of custody. Encrypt the files, back up immediately, use clear visioning and strip the metadata out.
- 3.102** So even if you're working for a newspaper, you're working for a magazine, you're doing it for somebody's Substack, whatever, when you turn, if they ask at the legal department for a copy of that interview, and sometimes they do, you strip the metadata out of it, so that a clean copy ends up there.
- 3.103** What happens if all these things we're talking about, you do an interview with an explosive source, you follow the right rules, you don't back up online to the cloud, you strip the metadata out so that nobody can see it on a PDF, and you have it clearly encrypted in terms of the interview itself, and then you send over to your editor or legal counsel an unencrypted file that they're going to put up on Random House website or on The New York Times website for somebody else to check, and they're going to pass it around by email, and all the security that you've done for your source goes out the window?
- 3.104** So you still have to try. You can't stop others from looking at the material because they're publishing you. They're the editors. You've got to be open to constructive criticism. Sometimes they see something you didn't see. I know that may be hard to believe. Editors do sometimes see things we don't see, and they ask us to go back and push on something else, and we try to do that.
- 3.105** Very quickly, a case study with Rolf Mengele, the son of Mengele, that we talked about before. I told you that, before I was doing a book, I was trying to do a lawsuit on Joseph Mengele, the "angel of death," and I collected these 25,000 pages of documents. We all thought, people looking for him, that he was alive and well and living in South America. And then it turns out, one night—I had never spoken; I tried to talk to the family beforehand, you just get the door shut in your face. And they knew that I was

somebody who had tried to sue them in German court, to try to get additional funding, so nobody wanted anything to do with me.

3.106 One night, like, at 4:00 in the morning, we get a telephone call, landline, real old-world. Trisha picks up, and somebody says, it's a German reporter calling in and says, "I want to know what your husband thinks about these bones that they found at a grave site, an unmarked grave site in Embu, Brazil, that they're saying are the bones of Joseph Mengele." And like, Trisha said, "They think they found Mengele's bones." And I remember waving her off and saying, "It's like the 10th time they found him. They're just doing that to throw the hunters off."

3.107 Well, it turned out this time, they'd actually found his bones, and he had been dead since 1979. At the time that his bones were being examined, I flew down to Embu. His bones were being examined by a dozen different medical examiners from the United States, from Germany, from Israel, from the Simon Wiesenthal Center, Nazi. You can't get 12 medical examiners to agree on a single murder case, to agree that these are the bones of Joseph Mengele. It was really remarkable.

3.108 But the Nazis were fantastic because they had everybody fill in their entire medical history, and he had some unusual things like a bone disease, osteomyelitis, all of this. They found the dental X-rays from a Japanese doctor who was treating him in Brazil, and they were able to confirm it was his bones.

3.109 When that happened, his son, Rolf Mengele, popped up in Germany, went to a German magazine, Bunte, like People magazine or something, and said, "Here are 5,000 pages of my father's postwar diaries and letters and everything else. I don't want any money for them. You can publish them. If you have extra circulation, give some of the proceeds from that circulation to the survivors." Bunte, the magazine, said, "Thanks very much," but they were afraid they were fakes.

3.110 Because a few years earlier, there had been a thing called the Hitler diaries, where Stern magazine, like a Time magazine or Newsweek of Germany, had been sold the Hitler diaries, diaries of Adolf Hitler before he died, that had never been found before. And they turned out to be fantastic forgeries. They got embarrassed. It was big. Books have been written about it. It was a great story. Not if you're an editor at Stern, but a good story otherwise.

3.111 So Bunte says, "Oh, Mengele diaries. We could end up in the same embarrassing situation. We're going to publish this guy's diaries about what it was like being a Nazi, and then they're going to be found to be fakes." So they took together a consortium of historians on the Third Reich from Germany and England. They took in the German FBI to test the paper, look at the handwriting, see if it was a 1960 paper. It was really 1960 paper.

3.112 They called me in Brazil, where I was for the medical examination and said, "Hey, why don't you come to Germany and you'll be part of this process?" I said, "I have a lot of

files on Mengele, but I didn't know he was dead, and I don't have anything on the family." They said, "You still know more than anybody else, so come over here." So for two weeks, I sat in Munich, and across the table was Rolf Mengele.

- 3.113** That meant that, when he first met me, he didn't meet me as a journalist coming in to say, "I'm doing a book about your father. I'd like you to interview with me." He met me as part of the team that this magazine had assembled to determine the authenticity of his father's papers. And so, it was a sort of a serious, when did you go there? I found out everything because he had to confirm how he got the papers, how they were sent to him, the money trail that had supported his father when he was on the road. It was all laid out, but I could use none of it, of course.
- 3.114** Now I know I'm doing this biography with a British journalist about Mengele, and the real story is here, and I can't use it. So when it was all done, I went to him, and I said—and I say: persistent approach, the showing intent without pressure. It took a long time. I said, "I'm writing this book, and I'd like to have access to the same papers that you gave Bunte." He thought about it for a while, and then he agreed. We were able to use those papers in our book. We were the first ones to have those documents that were included, and include the testimony from him.
- 3.115** I would take opportunities. It's very interesting. Somebody—this is a bit more informal, but he says no. If he had said no to me, I would have tried to work to get a maybe. If I got a maybe, then I would have worked to try to get a yes. It's a slow process, but you're not going to take the first no. Remember that. You're going to be told a lot of times no. I have a small drawer of rejection slips on ideas that I still think were wonderful. You get told no often. You're seeing the published results of the things they said yes to. We should have another session once on the things they said no to.
- 3.116** Set the tone: fair, not sensational. That was very, very clear. I knew a lot about his father. I knew a lot about the history of it. I knew about Argentina; I knew about Paraguay. It was clear that, although I wasn't a historian who had a PhD like the others from Oxford and from German universities, I was a serious researcher. That was important to him. He was not wild about the idea of having it, as you saw with Wolf Hess, children of infamy. So it wasn't that I was going to talk to him for an interview on Geraldo.
- 3.117** Define boundaries earlier. Be very, very clear, and with Rolf Mengele, but it's with anybody you talk to, you have to decide what you're going to include and what you're not going to include, what somebody tells you, and that rests entirely with you. This is something, I don't know how to tell you, but it will make sense to you. One of the downfalls of reporting—not downfalls, it's just the way it is; I'm describing it incorrectly when I say downfalls— is early on in a project, especially if you're doing a long project, you're anxious to get as much information as possible.

- 3.118** We talked about it. You want people, places, you want other names, everything else. There are people that you talk to for hours. There are people you talk to for a couple of days. In the JFK work, we met with a father and son whose only focus, their life obsession, was J. D. Tippit, the Dallas police officer who had been shot by Oswald after the assassination. That was their only focus. We talked to them for literally a couple of days. I remember that.
- 3.119** Well, in the end, as your research moves along and you narrow down the outlines of your story, the early interviews may or may not be as important as you thought they were. You have to decide as the reporter what you're going to put in and what you're going to leave out. I always hate it when I leave out 95 or 98% of what somebody had the patience to sit down and help me with in the beginning.
- 3.120** And they often feel left out. People wait to see a book come out, and then they say, "Oh, my God, I'm a footnote on page 438. You've got to be kidding. I spent two days with you." But it's because the story had shifted from where you were. So you always start out with the best intention. You're doing what I call your vacuum-cleaning. You're picking up information. If you're doing it well, you're picking up as much as you can.
- 3.121** The first interviews are critical because they set your basis, but they often change over time. You're the only one that knows what to include and exclude. And it has to remain with you. You can never put somebody in because you feel like they were really nice and they deserve a little bit more space. It will never work out for your reporting in the end.
- 3.122** I think that those are the rules. In the end, Rolf Mengele talked to me. I don't think I ever would have had a chance to get to him, if it hadn't been for the serendipity. It goes back to one last thing for this lecture.
- 3.123** As much as we plan, as much as I plan, I try to set it out, I'm thinking of who I'm going to talk to, what I want to do, what are the documents, how do I get to this? There is that little bit of serendipity. There's that a little bit of good luck, good fortune you can't quite put your finger on. Me, arriving in Argentina shortly after a civilian government had come in and the military government was out, the military government would have told me to get lost to look at Mengele's files. The civilian government was willing to do it.
- 3.124** If it hadn't been that Bunte magazine asked me to go over and sit across the table from Rolf Mengele and interview him about his father's papers, maybe I would never have gotten through the front door with my first request for an interview. So some of it is the way that it falls. You make your own luck by doing your own research. But in the end, you hope for a little bit of good fortune as well.
- 3.125** How do you feel about undercover interviews?

- 3.126** They're great for TV. So television loves them. God, this is stuff that's made, and they're fantastic. I enjoy watching them. It's great. Somebody goes in, and the tape is running underneath the table, and they ask a question, and the person says something absolutely inflammatory, insane. And you can't believe they said it, the opposite of everything that they're saying to the public. And then it's that "gotcha" moment. That's made for television.
- 3.127** For print journalists, it just holds no—it's not something that's on my radar, if that makes sense. I don't like the idea of surprising somebody, even in person, even in print. There's no benefit for it. Television is a different medium. I get it. I'm not talking about just podcasts or things like this, but television likes that type of "gotcha" moment. I do think we see it also clearly on social media. There are plenty of organizations going out for the "gotcha" moments.
- 3.128** Those are all in two-party consent states, by the way, where the people doing that would end up with, technically, a Class E felony in Florida or misdemeanor in other states and have something brought against them. So if you are in a single-consent state, and somebody is sitting down to talk to you, and you're a public figure and you're involved in an organization, and they are asking you outrageous questions and you're giving them outrageous answers, there's a part of me that thinks, "Well, you should know better." But I don't like—I mean, it's not that I don't like it. It's just not on my radar of what I think of doing.
- 3.129** I wish I could say to you that there was a moment at which I had somebody and then presented a set of facts to them, and they broke down and admitted that everything that they had said for the 20 years as a public figure was a lie and this and that. But it's not the way, unfortunately, real journalism works. There are a few of those "gotcha" moments in print journalism, unless you're going for them, if that makes sense. Thank you.

Lecture 4: Storytelling in Journalism

At a glance — Storytelling in journalism.

- 4.1 So you know, probably, if you're thinking of doing reporting or that, that when I say storytelling, building narratives, you can have the facts, you can get the story, and then, I don't care if you're doing your own Substack or you're doing it for The New York Times or whatever, if you don't tell the story well, it's just not going to have an impact. People don't read it. So you can show off all of the facts and data you have, but if you lose people in that, you don't get them back. So it's a process of telling the story with impact, and there is a talent to that.
- 4.2 Sometimes I have an editor that comes back, and they think—with books, they suggest, "I don't really understand the nature of this chapter; you've got to cut it down." That's the advice. Then you look at it, and your first reaction is, "I don't think so." But then maybe it wasn't really advancing the story.
- 4.3 On newspapers and on magazines, what you get all the time is that you have to publish to a word count. So they're very, very tight on those word counts. I do op-eds, opinion pieces, for The Wall Street Journal, New York Times, I've had them across the board, LA Times, Washington Post, and they are 600 words, 800 words—1,000 words is a lot. Now, you've given a story in 1,200 or 1,400 words that tells the story, that tells you the little bit of the narrative, and they come back and say, "Hey, that's fantastic. We love it, but you've got to cut a third of it out." And you still got to figure out how you're going to do that and keep—they don't do it for you. The editors aren't there. They've got too many assignments coming across their desk to sit down and actually suggest how you do it. You have to do it; give them back the story.
- 4.4 What happens always is you hate to lose any part that you first put in because you think that that's the key part of the story. Often, you work to get something. You've done the interviews, you've gotten something on the record for the first time, but it's not that important for the overall story that you're telling in the end. And so what I call a little bit of ego, where you want to say, "Hey, by the way, for the first time I received this bit of information," you have to cut yourself because it's just not germane to the actual story you tell. That's always difficult.
- 4.5 In a book format—and we'll talk about this—you get the chance to build a scene often, to catch somebody in the beginning of the book with a vivid scene that's great. So you have to have an eye for detail. It's fantastic. So this is the first solid shirt I wore, right? The other three, I was wearing check shirts. But you remember, if you had to mark it down now, which one was the first one? Was it red and blue? Or was the second one—did it have green in it? Or maybe the third one had, I think the third one had green or purple. So everybody would give a different answer. And then you're trying to recall what it was, and then your mind thinks of it or whatever else because you weren't

really paying attention, but you were paying attention. You were paying attention for an hour, but you still don't remember the color because somehow that faded into something else.

- 4.6 You don't have to remember everything, I assure you. But I'm better at leaving a scene where I'm interviewing somebody, trying to recall as much color as possible about that scene. Sometimes it doesn't matter because it's not going to get into the final work, but it's nice to have if you eventually have the room to set the tone a little bit.
- 4.7 Why it matters? I think a great investigation that fails to hold attention changes nothing. That may be a little harsh, but changes very little, maybe I should say. You have to keep readers engaged. And there is this clear arc: you do stakes, you set out the stakes—even in an article of 1,000 or 1,500 words, you build up a little bit of the tension about what the conflict is and what's happening, and then hopefully you have a resolution. If you do that on a longer project, like a book, you will pull the reader through the complex material.
- 4.8 What I mean by that is there's no doubt, books about the finance of the Vatican or the pharmaceutical industry, they're dense at times. And you have to get the reader when they're on page 200 in a section that's particularly dense about what the FDA was doing to want to go on to the next section because they know you're giving them a payoff on something that's important. That's part of that storytelling, that arc that takes place.
- 4.9 I think also that scenes, characters, dialogue, they take the somewhat abstract ideas of what your reporting is about, and it humanizes it. We were talking before about a million deaths of overdoses, 100,000 a year from Oxy. And then you talk to some families, as we have before, who have lost relatives to OxyContin, and it becomes much more personal. I even found this in terms of the Holocaust, when we were talking about Eva Kor before, the child survivor. You listen to one survivor recount their story, it has a different type of impact than when you use the numbers: 6 million dead. There's a difference between what we hear as numbers and what you hear as the actual human story of it.
- 4.10 The reach. I think that a really good narrative, something that has a story behind it, travels far, farther and faster than it does if it doesn't. I'll give you an example. Before, I was telling you about Trisha's little book—little because it's only a couple of hundred pages; it's remarkable: *The Pharmacist of Auschwitz*. It is about this ethnic German from Romania. He was born to German parents, but he was Romanian, and he happened to be a salesman at Bayer Aspirin in the country of Romania. He sold to people around Romania before the war. And many of the pharmacists and the doctors that he sold Bayer drugs to happened to be Jewish in Romania before the war.
- 4.11 Then he gets drafted into the SS by the Germans when they take over Romania, and they know he's a pharmacist, and they send him to Auschwitz, the largest extermination camp. There, the chief pharmacist ends up getting executed because he

thinks that the war is lost and they're going to be defeated. The Nazis say, "Oh, you, you have defeatism." They execute him, and they point to this guy Capesius, whom Trisha wrote this book about, that nobody has done. And they said, "You, you're going to be the pharmacist of Auschwitz."

- 4.12 Now, you think to yourself, when Trisha first heard, she heard about that when she met Rolf Mengele, the Mengele's son. When he came to New York to do that show you saw on Donahue, he wanted to meet Trisha because he knows we work together. Trisha felt odd about meeting him because Trisha, being Jewish, was meeting the son of the "angel of death." She knows that you are not responsible for what your father did. You can't blame a child for the sins of the father. But it still felt odd to her.
- 4.13 She kept thinking, "What would my mother think?" Her mother was still alive then in London. So we met him at the back of a place called Trader Vic's in New York City, which was a Polynesian-style restaurant in the Plaza Hotel. It was a real tourist trap. Nobody that you know would go there. So we figured it was safe. We'd meet him in the back of this spot. No one we would ever know would be there. And he was talking about his father and saying that after the war, his father found safe haven for a while in Munich from these two pharmacists, and one of them were friends with the pharmacist of Auschwitz who knew his father.
- 4.14 When we left that night before Google, 1985, Trish said to me, "That Auschwitz, that concentration camp, had a pharmacy? What for? They were killing people there." Well, of course, it turns out they had a pharmacy because they had 7,000 to 8,000 soldiers who worked there. Those soldiers got sick. They got typhus sometimes. They came down with things. So there was medicine to treat the soldiers. And in addition, they were running a slave labor camp just down the road at Monowitz, which they were building German machinery for. They wanted the patients to live on the inmates and live on as few calories a day without dying, so they would keep them alive. They also gave out the gas from the pharmacy that was used in the exterminations.
- 4.15 This guy, whom Trisha's writing about, ends up stealing gold from the mouths of corpses. After the war, he opens up a pharmacy, again, in postwar Germany, and it takes two people to track him down: a single survivor from the camp who was not Jewish, who worked in the chief doctor's office, who kept relentlessly pursuing to find the Nazis who had done it—he was a survivor—and the first German Jewish postwar judge who became his mission.
- 4.16 Now, what does Trisha do with that story? Why did it become a story that was memorable in storytelling? She turned it into a story of the people who were hunting for this criminal. So it became an inspirational story of the single camp survivor and the judge looking to bring people to justice, how they find him, how they bring him to trial 20 years after the end of the war.

- 4.17 When I wrote the biography on Joseph Mengele, the "angel of death," there are 20 chapters. Only one is about the concentration camp; the other 19 are about his life on the run. That's the part. So you're telling a story. You're telling a story that people will engage with and hold on to more. It becomes, if I say to you, "You're partly the detective. You're partly telling the detective story, a story that is inspirational, even if you're telling it about a dark subject."
- 4.18 To me, structure organizes timelines and data, and it makes it easier to grasp complex facts. If you tell the story well, people are going to understand it. There are times when I will run something past Trisha that's particularly dense, and she will give it a thumbs down. "You still don't have it. I'm totally confused by what you just said. Go back and try it again." So I try to streamline it a little bit without losing the essence of what it is.
- 4.19 Trust. Transparent sourcing. I have a lot of source notes at the end of this book. Most people aren't going to check it. But for those who want to check it, that's your credibility. "Why did you say that? What's it from? Is it from a primary source or a secondary source?" I must tell you that everybody in journalism at some point has to cite a secondary source, meaning that you're going to cite another newspaper article that's been published on a subject. You're going to cite somebody who's done a podcast. You're going to cite somebody who's written a paper about something. That's fine.
- 4.20 Primary, though, reporting is what really makes the difference and polishes up your effort, which means that you end up going out and you're doing research beyond that. When you go to those source notes, you want to see that a lot of them were interviewed. You want to see that there were materials you picked up yourself from the archives, and it helps bring the story along.
- 4.21 Now, the elements of what I call compelling narrative, not difficult. You would know this yourself if I asked you the general ideas. You're watching a Netflix series, you're watching something that gets you, as a movie that holds you. You know what good storytelling is. There are things you turn off. We've all turned off a show because we don't like it very [much]. They just lost the plot. They don't have us very well.
- 4.22 It's people, places, and purpose. I get that. You hope that your characters are interesting enough. You have no control over that in nonfiction. You're writing about people, writing about places, you're writing about purpose. That's out of your control. It's the subject that you've chosen. You can't change those people. So it's not like fiction, where you can create a more interesting character. Plot—you know the story, and you're pretty much following it.
- 4.23 Conflict and resolution—there is no resolution in Pharma. There's nothing at the end that suddenly wraps up the whole story and says, "By the way, this is how everything goes forward in America with real health care for everybody and affordable drug prices, and here's the solution." So I don't mean resolution in terms of—you're not required to

solve a difficult problem, but you are required at least to let the reader know that they have finished the book, finished the article, and they feel there was a payoff for it.

- 4.24 The payoff in Pharma was that there was going to be, hopefully, some justice for the Sacklers, which there was. The payoff in God's Bankers was that there's finally going to be some transparency on these arcane hidden finances of the Vatican, in which they've done business for decades with the Mafia and everybody else, and it was finally going to be in the open. So you knew that things were getting better, even if you didn't have the full resolution.
- 4.25 You know what type of review. Before I showed you in the first lecture, reviews where people would say, "Oh, great investigative reporter." Those are nice. But what you want in a denser book, a book that's a biography, *Killing the Dream* is about the assassination of Martin Luther King, in *Case Closed*, the assassination of John Kennedy. I created a narrative spine in those. You need to do that because you're essentially putting a character in the center of the book, and you keep coming back to them, even though the book is going to many different places.
- 4.26 In Pharma, it turned out to be the Sacklers. We followed them pretty much. They kept popping up through the time. Even in chapters in which they didn't appear at all, the next chapter, you'd come back to the Sacklers on something else.
- 4.27 In God's Bankers, how do you have a 200-year history of the Vatican and have anybody as a narrative spine? The narrative spine turned out to be the popes. So it was pretty well able to go from Pope to Pope, and they had different periods in different ways, and the finances under them would change a little bit, and they became the narrative spine.
- 4.28 In *Killing the Dream* and *Case Closed*, the narrative spine became Lee Harvey Oswald in JFK and James Earl Ray in Martin Luther King. With all of the questions and controversy and conspiracies around, you're able to follow an individual, build a story around them, and there's something very important about that. It's not just a process. It's not that I sit down and say, "Okay, let me find somebody that I can keep coming back to in the story." The key is to have somebody in the story who, at the end, is very important to what happens. And you, as a reader, not as the reporter, have created a full enough picture of those people—the popes, the Sacklers, Oswald, Ray— that the reader gets their mind into how those people were thinking. They understand it. They can finish the process, the book, and say, "I understand what happened here because I understand that person."
- 4.29 It's very hard to do as a reporter, but in the end, that's what you're trying to do. When somebody gives you a review, this New York Times review by Anthony Lewis, where he says, with *Killing the Dream*, "a model of investigation," that's great. "Meticulous in discovery and presentation of evidence." I don't mean to minimize that. I like that.

"Unbiased." But the line that I like, what's the line that I like? "It's a wonderfully readable book, as gripping as a first-class detective story."

- 4.30 That's about as good as it gets, because normally somebody will say—before, I showed you a review from The New York Times about Pharma; they sent an encyclopedic indictment. I liked that. My publisher didn't like it because they said, "Nobody buys encyclopedias. You've got to be kidding. An encyclopedia indictment is the worst thing." I said, "I thought it was pretty good. It means a lot of good reporting and research." They prefer "as gripping as a first-class detective story."
- 4.31 You can tell that without losing any credibility. It's still as well-sourced as anything else. You're not cutting any corners to tell that. The hard part of this, by the way, is that people know what the end is. They know there's an assassination in each case. So you're not giving them a story in which the ending is a surprise. You're building up the conflict to that ending with all the variables and possibilities. Steven Ambrose, on *Case Closed*: "the historian beyond the job of research, a dramatic storyteller." Now, I will tell you that it comes, and you need a thick skin in this sense.
- 4.32 I told you before that editors don't rewrite your material. That's true. But that doesn't mean they don't tell you to rewrite it a dozen times. You have to have a thick skin. They will come back time and time again, and they'll say, "No, I think this needs to be reworked. I don't think it flows as smooth." One of the main things I think a good reporter has is you take it as constructive criticism. You don't take it as personal criticism, because if you take it as personal criticism, you're never going to survive in the business. You have to take it as constructive. Sometimes you negotiate with your editor, sometimes you say, "No,—you push back—"I don't think it is."
- 4.33 Motown, by the way, Motown was easy to tell because you think that Motown is easy to tell because you tell it by the acts from the Supremes to—no, instead, the spine of the book was Berry Gordy, the founder of Motown. Gordy, somebody who came from rags to riches, who had an ear for music, who made the most popular, iconic music label in America in the '60s, who was the first person to cross over to say, "I'm not a black record producer who's making music for black listeners in America," because that's what was existing. "I'm making music that's going to sell to blacks and whites." And he did, and he crossed over, and he changed the music industry with acts that we still talk about today.
- 4.34 Gordy was the through line on that. Gordy has this rise to tremendous success with all of this talent around him. And then he has this slow, steady, bumpy, not decline, because he sold his business for a lot of money to Universal, but it doesn't stay at the peak. You never stay at the hottest spot, and that leads to frustrations along the road. The reader feels that. They follow it. So that takes you inside Motown in a personal sense.

- 4.35 And then, in God's Bankers and Pharma, we talked about a little bit, you must have—the bottom line of all of this is I don't care what subject you're writing about, you have to humanize it to the extent that you have characters that even if they aren't characters that you like, somebody can at least follow them and find them interesting.
- 4.36 Facts and storytelling balance. That's actually Trisha's line: "Truth is the spine; narrative is the muscle." I have to give her credit. Sometimes she comes up with good ones. I liked it. Accuracy comes first. No question. Before you were asking about "got you" interviews. You could tell— I don't like "got you" interviews. I don't like anything that strays from the facts. That is a discipline that I can't emphasize enough that either you cultivate that or you're in trouble as a journalist, because I guarantee you that on every story, almost every story, maybe that's an overgeneralization that you end up doing, there's some point at which you've seen too many movies or whatever else, and you think to yourself after you finish an interview, "Oh, too bad, that's all." "Too bad they really didn't do X, Y, and Z, or they weren't throwing people off of mountaintops to cover up the truth," or whatever else.
- 4.37 You know what? It's not the story. You're stuck with the story that is the real set of facts, and you have to make those as interesting as you can. So when I went back to my publisher, I went to Random House with an idea to do a book about the Kennedy assassination. And they said in 1988 or '89, "What type of book do you want to do?" I said, "I want a book that"—I said, "I went to law school when the House Select Committee on Assassinations was re-investigating the case. I've always been interested. I know it can't all be true.
- 4.38 It can't be that the Mafia killed him, if the KGB killed him, if the Cubans killed him, if the CIA killed him, if there were two shooters and three shooters. It can't all be right. Let me, as a lawyer, investigator and reporter, go through all of the evidence, and I will debunk the things that are not true, and then at the end, say, 'Here are the five or six issues that you can't resolve.' You can buy this book as a primer on the JFK assassination to say, 'Oh, I don't have to read the other 300 books out there'"—there are actually 2,000 published. I found out later. "I can read this and find the five or six issues that still need to be covered." And Random House said, "Nobody's interested in that. Do another book." So I did Hitler's Children: Sons and Daughters of the Nazi War Criminals. That's how that came about. Sometimes you go to another book.
- 4.39 Then, Oliver Stone did the only favor he did for me his entire life, unintentionally. He did JFK, which is a fantastic movie, but terrible history, and it energized the JFK assassination for the American public, which was fantastic. Everybody was interested. And Random House said, "Hey, how about that Kennedy book you were going to do?" Now, down like the five or six issues is what we talk about with having good timing. So I said, "Okay, I can do that." And they said—this is 1991—they said, "By the way, maybe we should publish it for the 30th anniversary of the assassination, '93."

- 4.40 Now, I'm thinking to myself—that's November of '93—"They take a year. I'm supposed to finish this book in a year. No way." But we did. At that point, we had to go out. I'll tell you how old-school this is. Talk about sticking to accuracy first and find a copy of the Warren Commission, which we found in a used bookstore in San Francisco. It was only missing volume 8. We took it and I made three by five cards to index the entire thing.
- 4.41 Today, we talked before about digital versus analog—today, you can go on and do a search on any number of sites with the Warren Commission and find exactly what you're looking for and pull it together in 16 seconds. Back then, it took a month to be able to have an index because there was none that the government put out with the original book. So there was all this work.
- 4.42 And then, halfway through, I was coming to the conclusion that I was wrong about the Mafia. I was accumulating new ballistics evidence that could not have been done in 1963 and 1964 by the FBI, as well as new digital analysis of the so-called Zapruder film, the home movie of the assassination, and that Oswald was, in fact, the shooter that day. The question of whether he was doing it for himself or for somebody else was a tougher plot, but the question was who was doing the shooting.
- 4.43 I went at that point to my publisher. I sat down with Harry Evans, the person I told you about before, who had been head of the Insight team at The Times of London, and my editor, Bob Loomis, who was a legendary editor in New York, and I said, "By the way, this book you're putting out"—they had not paid much money for it. They didn't have high expectations for it because it was going to be the study guide to the Kennedy assassination. I said, "I think you can actually put a book instead that says, 'Here's who killed Kennedy.'" And they said, "Who?" And I said, "Oswald." And Harry Evans said, "And who?" And I said, "And Oswald."
- 4.44 There was a moment in which they looked at each other and thought, "Oh, my God, he's lost his mind. He went off and read the Warren Commission and he thinks it's Oswald. What are we going to do? We have this book signed up by him." Then, when they saw what was new, what was different, and how I criticized the government and the Warren Commission, how the sequence of shots were different, there was a lot in there, then they got excited by it.
- 4.45 What we didn't know was that on the 30th anniversary of the assassination, when we published, to be a serious reporter and to say, "By the way, I think Lee Oswald shot the President," there were 14 or 15 books published that year. They were all conspiracy theories. The people were most amazed—we didn't think anybody would buy the book because the few people who thought it was Oswald, they would say, "Well, why would I want to spend \$25 to buy a book about that?" And 95% of the people who thought it was a conspiracy would say, "I'll never buy a book that says it's Oswald because that is a waste of time." But saying it was Oswald and having serious information about it was like saying that I just landed from Mars, and I'd like to talk to you about your planet

Earth. People would say, "You've got to be kidding. You're serious about this?" "Yes." And then you would talk to them about what was different.

- 4.46 Luckily, I had a publisher that was willing to put it out. That's the first time that Trish and I, we had already written the book about China White and the Chinese Triads. We didn't have to open up a police file, an FBI file on us until that time because we found out, I did not expect—I knew people would disagree with me. I expected a rigorous debate. That's the nature of journalism. You stand by and you tell your facts and you say why you think it's true. I did not think that people would think that I had to be part of the conspiracy.
- 4.47 That if, in fact, after all these years, you thought that Oswald had killed Kennedy, the only way that could be, is because the deep state had obviously decided to put me out to say that. And then, The New York Times and everybody else embraced the theory because they were still covering up the truth. It was one of three finalists for the Pulitzer, so that was further evidence. It was the deep state working at it. So it was a raucous time. I was assaulted on the street. We had a problem on an airplane once. It was an unusual time.
- 4.48 But my point is, I had somebody say to me once, "You wanted to write a book that said Oswald killed Kennedy." I said, "I'm sorry, you know zilch about journalism." If you write a book about the Kennedy assassination, what you want to do is come back with the incontrovertible proof of a conspiracy, that I could take it to The New York Times and CBS and ABC and everybody else and say, "Guess what? You've had all these years of speculation."—Oliver Stone has done a movie and everything else. "This is the actual proof of who put who up to the murder." If you deliver that, you are the Watergate reporters rolled into one overnight. That's the story that makes your career.
- 4.49 The biggest story is to say, "Yes, I'm the person who found the truth and the evidence of the conspiracy on the Kennedy assassination." To come back after a year and a half of doing research and say, "By the way, I want to tell you there's some new information here, but as Oswald," is not the story you want as a reporter. You always want the biggest story, but you end up settling for the story you think is accurate. That's absolutely critical.
- 4.50 I could have cut corners at the end and said at the end of that book, "Oh, by the way, I'm really not sure." I say at the end of that book, "This is what I believe happened in history. This is how it played out. If there's new evidence that comes forward that will change my mind, then do it." Of course, you're always open to evidence changing your mind. All you can do as a reporter is report on the snapshot of what you've done for your reporting and research. It's honest reporting, but accuracy comes first.
- 4.51 Narrative serves the facts. Boy, there's no doubt about that. Facts drive it. The narrative is there to serve it. Never sacrifice truth. Boy, no composite scenes, no embellishment, no "got you" moments. I think that no matter how much you want to do it, you have to

keep it absolutely straight to what you saw and how it plays out. When I watch a movie, we turn something on, it's a movie, or it's a program on Netflix or Prime or whatever else, you'll see in the beginning of the movie, how many times do you see something that says "based on a true story," "inspired by a true story."

- 4.52** I guarantee you, the only thing they've kept to is the fact that if there was a murder, there was a murder. They've changed everything. Even on great stories, they still put in, in Hollywood, composite characters. They feel compelled to build somebody in to explain things to the viewer that they wouldn't otherwise get. I always find that. It drives me crazy.
- 4.53** Show your receipts. What I mean by show your receipts is weave in the story, your data and your documents. I then have a number next to the sentence. Somebody, if they really want to, and that's an important issue for them, they can go back to chapter 3 at the end of the book and look at that number and see what the source is and get more information. Sometimes I have extensive discussions in those notes, but it's saved for the back there, but you have to be able to do that.
- 4.54** Label any uncertainty. Sometimes things are allegations and opinions, and sometimes it's confirmed facts. I personally dislike it when I'm reading a reporter, and they mix in. That's why on my website, I have a thing under articles. So under articles, I list articles that I've done. Then next to that, I have a thing for opinion pieces. Opinion pieces are the op-eds I've written. And guess what? They're different. I hate when people pass them along as the same.
- 4.55** I believe in an op-ed, in an opinion piece I write for the paper, where you will find sometimes more about what I really feel than you can from one of my books, because here I'm very much of the belief that you take yourself out of the story. You let the reader draw their conclusions. I don't do first-person journalism. I'm not there as a character inside of it. In *Warlords of Crime*, there were a few scenes in which I was there so that you understood where it was happening, but I don't really like that. I like to stay low-key. In an op-ed, I'm giving you an opinion about what I think, and so there you will pick up an idea of what I do, but they should be separated. I don't like them mixed together where you can't really tell.
- 4.56** Techniques for structure. Somebody said structure, so the invisible scaffolding, the reader should never see it, but without it, the story is not going to be there, and it will collapse. There's a couple of ways to do it. So there's what we call in the business, the inverted pyramid. If you're doing an article, you're going to want to start with that because an article, a Substack, something like that, a blog post, you want to get to the news first. So you start with the quick hits of the news. That tells your reader right off the top what this is about, why they should be interested, why they should read the next 1,000 or 1,500 words. You almost have to give it to them that way.

- 4.57 In a longer project, like a long magazine piece or a book, you're starting with what I call the narrative arc. You set the scene, then you've got the complication, then you reveal, and you do the resolution. So it's a longer layout. People don't want to start reading a book on the first page and get the delivery of what the last line is of the book. They want to start, usually, with a story being told to them, and that's why they're reading the book in the first place.
- 4.58 Start with stakes, not throat-clearing. I love opening with a vivid scene. If we have a couple of minutes to the end, I'll read you half a page from *God's Bankers* and half a page from *Pharma* to show you what I think of as vivid scenes to get somebody from the beginning. You'll see if you agree or not.
- 4.59 Control, pacing, and flow. There's nothing—nothing worse. There are a few things worse than a writer who—fiction writers, their strength is that they build an audience by people who like their style. You go back to them because they have that style.
- 4.60 In non-fiction, there are some sentences that I have that are run-on sentences or really complex, and some sentences that are short and declarative. I don't do it intentionally. It's just my style of writing after a while, and I think it's important for the reader. The reader gets tired after a while if everything you're doing is long, dense, and filled, and also gets tired if everything you do is just a simple declarative sentence. You've got to vary it a little bit because that's the interest of—think when you're reading a book, you're reading an article, if it's varied, it keeps your attention a little bit better.
- 4.61 I love this idea of ending beats with a question like cliffhangers, pull the readers to the next section. Every time I end a chapter, I'm trying to end it, "not on a cliffhanger again." We know what the end of the Kennedy assassination, the King assassination, is like, but there are cliffhangers in terms that people don't know the entire story inside and out. And so you can build it. The same with the Sacklers, getting them over to the next section because that's really what you want them to be able to do.
- 4.62 And I find that, you'll understand this, I think, very well. There's nothing better, and I don't care if it's writing or it's journalism or whatever you're doing, than doing it and doing it repeatedly and doing it a lot. So you get better as you go along. I call my Substack just the facts. It's a misnomer, actually, because it's not just the facts. I'm telling you here today, if it's just the facts, nobody will read it. So I like to think of it as an analog *Dragnet*, Joe Friday, going up to somebody, a cop who used to be on a detective show and say, "Just the facts, ma'am." That would be it. And they would get just the facts. You need the facts, but then you need to build around them this scaffolding that helps to make it into a real story.
- 4.63 Signpost relentlessly. On a complex story, if you're covering a 200-year history of the finance of the Vatican, I'm into the subject. I understand when I'm talking about what this Pope did with creating the Vatican Bank, where you're at. But you've got to remind the reader where you are at because they can sometimes get lost in the story. If you

lose the reader in terms of the story, if you don't tell them where they are, if you don't have a mini little recap, if the reader gets lost in the story, it's your fault as the storyteller to be able to do it.

- 4.64 So, for instance, I refer a lot in the book on God's Bankers to the Vatican Bank because the Vatican Bank is unique. As a Catholic, I know this: you have the religion, the church, and then the same men—and they're all men, no women—who are priests, cardinals, bishops, they go ahead, and they also cross over the aisle and wear a secular hat because they're running a government. The church is also a secular government that has a flag of the United Nations, and operates as a real independent country. The same people are doing it.
- 4.65 They never had a bank like a central bank until they designed the Vatican Bank, which is a cross between our Federal Reserve and a bit like Goldman Sachs. When did they do it? Oh, interesting. 1800? No. When they had the Papal States and a big empire? No. 1970s? No. They did it in 1942 in the middle of World War II. Why would they do it in the middle of World War II? Because the Vatican was investing in both sides of World War II, because they didn't know who would win. They were investing in the Americans and the British. They were buying property in London. They were investing in American stocks. It turns out, in the information I was able to find, they were investing heavily in Italian and German insurance companies, the fascist Italian dictatorship of Benito Mussolini and the Nazi government.
- 4.66 The U.S. government and the British had a thing they called the blacklist. They were looking for neutral countries that were investing in the enemy, so they would then have sanctions against them and blacklist them. Over a period of a couple of years in World War II, every neutral country in Europe, from Switzerland to little tiny postage stamp properties like the Vatican, San Marino, Lichtenstein, Monaco, they all got blacklisted because they were all doing business on both sides.
- 4.67 The Vatican said, "Oh, wow, we could get blacklisted." There was a debate inside the U.S. administration under Franklin Roosevelt, "Should the Vatican be blacklisted?" And Roosevelt said, "Are you crazy? You know how many Catholic voters there are in America? We're not going to blacklist the Pope yet." But they were thinking about it. And then the Vatican said, "Let's create our own bank." So they create the Vatican Bank in the middle of the war, and they go dark. They're off the radar. Nobody can follow them anymore because they're doing their own transactions as this bank. They're not sending them in through correspondence banks, and you literally can't follow them.
- 4.68 As a result, what happened is that they had an unusual charter. The only shareholder of the bank was the Pope. It had no other branch in the world but inside what had been a Renaissance castle inside Vatican City. That was its only branch. It had no real depositors at that point, but it didn't need them. And it accepted physical deposits, which meant that you could put gold—there was a lot of looted gold in World War II—you could put cash into the Vatican Bank, and the minute you did, it went off the radar.

- 4.69 So what I mean by that is: think of the Vatican. It's sitting inside the heart of Rome. It's technically a sovereign country. Mussolini gave them their sovereign status back in a deal in which the Vatican then supported Mussolini. So it is a different country. You're standing on one corner in Rome with a suitcase full of cash that you have either stolen from a company, or it's narcotics laundering, or it's stolen from a country in World War II. The Italian government will obviously do something about that. They should do something about that if they're aware you have that cash.
- 4.70 You cross the street into Vatican City, and the Italians lose complete sight of what happens. You give it to a bishop or a monsignor or a priest who's able to open an account for you at the Vatican Bank, and that money disappears in the Vatican. The Vatican will take a small commission for it. Well, after the war, it became a major haven for, as you could imagine, Mafia and drug runners and everything else. It was the Wild West cocaine cowboy days, as I call it, of the Vatican Bank. But in World War II, it was used essentially to hide its investments in the enemy.
- 4.71 At the end of World War II, the Vatican said, "Oh, by the way, we just want everybody to know we only invested in one side. We only invested in the Americans and the British. We never invested in the Germans or Italians," even though—and I have to ask you just a common sense question—97%, almost 98% of all of the cardinals during the war, the World War II, were Italian. I'm half Italian. They often came, the cardinals at that time, from prominent Italian families. So in their families, they would have a brother on the other side of the wall who was the head of a bank, or maybe was an admiral, or maybe was a general. It's almost impossible to imagine that those Italian men who were senior clerks in the church would not feel some affinity for their brothers and brethren and the people they knew fighting on the other side of the wall for Italy. It would make sense that they would. But they said, "Not us. We didn't invest in them."
- 4.72 It took literally for Trisha and me to find out through an archivist who told us, they said, by the way, they think that the insurance files—the Vatican's always claimed that the insurance files that they invested in were destroyed. Allianz, the German company, had their files bombed out at the end of World War II in Frankfurt by the Americans. And Generali, which was the Italian company, their files were destroyed at the end of the war. Guess what? Generali's files were actually in a warehouse in Trieste, Italy. We were led to be able to find those by somebody who tipped us off on them, and it blew open the story of the Vatican's investments back in the day through the Vatican Bank into this material.
- 4.73 Now, where's the reader on all of this? They forget they're in World War II. You have to remind them occasionally that you're still talking about World War II. You're going to get up to talk about the days in the '70s and '80s and the offshore accounts. But it's a long and complicated story. And so the heart of it starts here in World War II, but they're reading in the newspaper, they're reading online, they see something on TikTok

about the Vatican Bank, they don't realize the origin. You have to signpost for them. That's my long way of saying, remind readers of where they are in the story.

- 4.74 Using dialogue in quotes. Giving voice without surrendering control. This, I think, will make sense to you, but one of the things that happens is you want to get an interview that you think is important, like "a get," I call it. You've been hammering at this person to get the interview, and then you finally get it, and you get it. It's okay. It's not explosive, but it's good. There's a part of you that wants to do some show off. You want to show off to other journalists when you publish the piece to say, "Hey, I got this interview with somebody that never gives interviews, and they're saying, 'X, Y, X, Y, X, Y, X, Y.'"
- 4.75 Guess what? If it's not interesting, you're not doing yourself a service. So let people speak in quotes, but sparingly. And I mean, you quote their voice admissions and disputes, otherwise, summarize. I would have times in books where Bob Loomis, my editor at Random House, would come back to me and say, "Why are you quoting this person?" I would say, "Because they've never said that to anyone before on the record." But he would say, "It's really not very consequential. You could summarize it better. What do you think they're saying?" I would tell him. He said, "What you just said in a sentence is better than the entire paragraph you gave them." You've got to do it.
- 4.76 There's a part of you that hates doing that because the little source note at the end of that sentence is going to say to the person, in the back: "based on an in-person interview with the author, July ninth, 2008, in New York City." But you have to look back there to find it. There's a way to do it, but always putting things in quotes doesn't work as well as you think. I do think short, vivid lines that show attitude and stakes, not rambling exchanges, are very, very helpful.
- 4.77 Paraphrase for clarity. I don't want you to think you have an ego that you can say it better, but people don't always say things succinctly, so you need to be able to narrow it down to say correctly. If they're talking about numbers or items like that, it might be different. You want to put it in their words, but not always.
- 4.78 Avoid transcript dumps. Well, I'll tell you. This lesson was taught to me back in the '80s by a fellow colleague, Ralph Blumenthal, who worked as an investigative reporter at The New York Times. Ralph did a number of books, and one of the books he did was The Pizza Connection on the Heroin Trade. I did a book on the Chinese end. He was doing it on the old-fashioned Italian families—theColombo, Genovese, and the groups that were broken up in New York City.
- 4.79 Ralph got access, together with his co-writers, to the FBI transcripts that were done of the Mafia guys who were doing the deals. He used those extensively in the book, and he said afterwards to me that the book should have been used as a cure for insomnia because those transcripts are deadly. And they are deadly because people are talking about everything under the sun. They don't get right to the heart of what you're talking

about. So you could be much more concise. You can quote from the transcripts occasionally, but if you just do a dump into it, you are killing your own narrative as you push it along.

- 4.80** Frame and verify every line. What I mean by that is, don't take things out of context. There's nothing worse when I'm always worried when I use a quote—I have quotes, and then we have this process where you ellipsis at the end, three dots that show they said something else in the sentence. Sometimes the first letter of my sentence starts with a bracket and then a small letter for the beginning of that word. That means I'm starting in the middle of a sentence. If I start in the middle of a sentence and I've got ellipses at the end, that means I've cut somebody's quote down to just this section.
- 4.81** You read that quote, and you think, "Wow, that's really a good quote." But make sure that they haven't said something else on either end of that quote or in the interview that weakens that. Don't take something for the impact because you're going to be the victim of it, because that person will come out and say, "That's not at all—" How many times have you heard somebody say, "They quoted me out of context." And then you have to see what they said. So if somebody charges you, quoting you out of context, that fault is on you. That doesn't mean that they're always telling the truth, but I do think that the fault lays with the reporter.
- 4.82** Avoiding pitfalls, restraint. That's my approach to it; it's the hallmark of authority. I look for pictures sometimes to put on these slides. I have to find royalty-free pictures because I don't want somebody coming in later and being litigious. I don't want to pay for the pictures, of course. I'm using Unsplash, or I've got a subscription to iStock Photo or that. I particularly liked this one because not only do I know reporters—
- 4.83** Sometimes, it's been me who keeps crashing at a thing like a brick wall, thinking, "I'm going to get through. They've said no to me 10 times. They're going to say yes on the 11th time." But I particularly like this one because it says, "Caution. Anti-climb paint." I love the idea that sometimes those of us who are stubborn, we keep trying to crash through the wall. Then I think, you know what? It's the wall that's the problem. Not me. I'll go over the wall. I'll go around the wall. I like the idea that sometimes you can't get there, no matter how many times you try.
- 4.84** Don't overdramatize. Avoid cinematic embellishments. You know that's why I'm talking to you about journalism 101 and not screenwriting 101, because I would not be necessarily a good screenwriter because I don't have the embellishment DNA. Maybe I could adapt to it if I was in Hollywood long enough, but as of now, I don't have it.
- 4.85** No speculation without evidence. Sorry, if you have to analyze, lay it out and say you don't know. There are some times in these books, in the book, for instance, on James Earl Ray, where he uses an alias when he goes and flees to Canada. I go through a number of possibilities about where he could have got that alias from: a newspaper from his brother. The same thing about a bounty that I think he was trying to collect

when he went to kill King. But in the end, you can't be sure. So all you can lay out for the reader is what the possibilities are, and then say, "No one knows where he took them to the grave." That's the reasoned speculation. You're not obligated to answer everything. You're obligated to present the evidence and say, "This is each of the possibilities."

- 4.86** Maintain objectivity. Don't report from advocacy. Do an opinion piece if you want to, and include any relevant counter-evidence. So. For instance, when I told you there was new ballistic information on the Kennedy assassination in 1992, it was by a firm called Failure Analysis. It does work for courtrooms. They were able to analyze the film and determine where the first shot was—forget who did it, forget if it was Oswald, forget how many assassins there were and everything else—that the first shot that hit Kennedy and Conley came from behind them.
- 4.87** They know that because they freeze the frames at 2:23 and 2:24 of the Zapruder film, which is the home movie, The Assassination. Each frame is an 18th of a second, and Kennedy is coming out from behind a road sign. You can see him; his arm is going up into this position because it has not hit any bone, but the shot, as you can tell from the autopsy later, has caused neurologic damage. Connally is then reacting, and what they see on the digitized film is really amazing. Connally, as he's starting to turn around because the first shot had missed a few seconds earlier, so he heard the sound. He's starting to turn around in his seat. The bullet that goes through Kennedy now lifts his right lapel up. It's the first time it has ever been seen, 29 years after the assassination. The lapel flies up.
- 4.88** Now that's interesting, but you have to go back and look at the physical evidence. So you go to the National Archives, where Connally's jacket is. There's the suit. You bring medical examiners with you to take a look at it. That's where the bullet is on the frame that goes through the film. Now the question is: were they hit by two different bullets fired from two different shooters, or were they hit by the same bullet? Now you know the moment they were hit by those bullets in the car. You put them in the frame, you recreate that frame with men, the size and weight of Connally and the governor. You recreate the shots, you do it again, and you see if it's a straight line, which it was.
- 4.89** The reason I mention all of that is that Failure Analysis did a presentation for an American Bar Association presentation on the Kennedy assassination. They presented for the defense, which said Oswald was innocent, and for the prosecution that said Oswald was guilty. The only breakthrough they had was on their analysis of the film on the "Oswald is guilty" part. That was truly revolutionary. But when I put the information into the book, you had to say in full relevant counter-evidence that they presented the position on both sides. It wasn't as though they had come in for one. Otherwise, if you cherry-pick and just take something from one side, and that's what you're going to use, somebody says, "Well, what about the other side? What did they present on that?" You

can answer that, you can talk about it, but you have to present the relevant countervailing evidence on it.

- 4.90** Limit anonymity or single sources. I have a couple of stories right now that are single-source stories that I haven't published. If I can't get a second source, I'm not going to.
- 4.91** Don't cherry-pick or distort for context. We talked about that before. Now, case study. I know Watergate is old news. You hear about it, but I have to tell you how good it is because they really did something interesting here. Deep Throat was a lead—we talked about that before—not evidence. So Deep Throat, they get this guy who's giving them information about what's happening inside the administration. Those two reporters, Woodward and Bernstein, had to take it. He was a deep background source. They used them as a generator for leads, and then they went out to corroborate it.
- 4.92** Now, they had an advantage. I agree. I've got my Substack. They had The Washington Post. So they're able to publish on the front page of The Washington Post every day in a serial format. That makes it exciting because you're left with a cliffhanger at the end of every day. That was very good. They put it up there, they advanced the plot, they went into the money trail right in the beginning of following the money, went to the campaign. Now the question is: did it go to the White House? So you're left with that question all the time.
- 4.93** They did follow the money. They mapped the checks, the slush funds, the committee ties to show that there was a causality between this money going into the burglars and not just a coincidence. And they converted complex financial information into a very readable, clear narrative. They were very lucky on something— I told you before: Trisha made a book in which two people are hunting for justice after all these years, you get invested in those people. They, Woodward and Bernstein, made the characters very, very vivid. They had good characters, but the burglars, the Watergate burglars, Haldeman, Nixon, the inner circle. The midnight garage, the door knocks—they humanized, and they made it into a bit of a mystery as you're reading it along.
- 4.94** Relentless refinement. Let me tell you, they kept narrowing all the time the scope of their story. They kept the sourcing rule: two sources for every rule. It was difficult to do. And one of the things we forget about often: they were in a race with The New York Times. The New York Times is trying to do Watergate, and The Washington Post is trying to do Watergate. No one thinks about The New York Times because The Washington Post beat them square down in every way possible. They had the source, but they had the lead, and they went ahead, and they did the reporting in a way that they controlled that story.
- 4.95** Now, very quickly, one of the best things I thought I had on God's Bankers was a story that one of God's Banker is considered the chief outside banker, late banker for the Pope. So there's a banker in the '70s and '60s, and the story is he was well-connected to the Mafia, and he was bringing in all the Mafia business. I must have spent three

months on that story. There's tales in other books about how this banker for the popes in the '60s and '70s was essentially like a capo inside the Italian families.

- 4.96 I went inside the Rome Court files, looked at them, we got them, we translated them, we went through them when we were in Rome. The things that were said about this particular banker—and he was dirty. He was dirty all the way. He ends up getting poisoned in a jail cell. But he wasn't the Mafia chieftain that he had been made out to be in book after book that had lazily repeated. So I debunked that in terms of the legal files from the court.
- 4.97 Then, there was a matter of an underworld connection that he supposedly had. I had to go to Parliamentary Records inside of Italy to be able to find those. Again, they debunked what had been said about him before. And finally, he, the guy, Michele Sindona, had given an interview to another journalist in which he bragged about his Mafia ties, and it turns out that I talked to his lawyers, and they debunked that through the whole thing. In the end, the story of him being a bad guy who misled the Church and the Pope and all this—absolutely true. But being a top Mafia chieftain—not true.
- 4.98 So what I thought was going to be a separate chapter ends up as a long footnote in the back of *God's Bankers*. Nobody even knows it's there. It's there if you have to go to it. You have to sometimes bite the bullet on it. What I mean by that is you have an inkling, you have a thought, you have an intuition that that story is going to be great. I'm going to make it even bigger. Then instead of making it bigger, you make it smaller because you find out that other reporters have just repeated the same thing. You've got to follow the facts to be able to do that.
- 4.99 Now, very quickly—don't worry, I'm not going to start reading you an 800-page book, I promise, or not much of it. What we talked about before, if you have a section of a book, you put at the end all of your source notes. I will tell you that what the publisher does is they shrink these in size to the smallest font possible for the human eye to read because they're worried about having too many pages, because too many pages means the book is more expensive, and if somebody can read a 6 font type, that will be fine. They can do it.
- 4.100 But the question is: how do you get somebody into a 200-year history of the Vatican? That's what I talk about when I say you've got to set a scene that's vivid. So this is just the beginning part, called murder in London.
- 4.101 "London, June 18th, 1982, 07:30 AM. Anthony Huntley, a young postal clerk at the Daily Express, was walking to work along the footpath under Blackfriars Bridge. His daily commute had become so routine that he paid little attention to the bridge's distinctive pale [blue] and white wrought iron arches. But a yellowish orange rope tied to a pipe at the far end of the arch caught his attention.
- 4.102 Curious, he leaned over the parapet and froze. A body hung from the rope, a thick knot tied around the neck. The dead man's eyes were partially open. The river lapped at his

feet. Huntley rubbed his eyes in disbelief and then walked to a nearby terrace with an unobstructed view of the Thames. He wanted to confirm what he had seen. The shock of his grisly discovery sank in. By the time Huntley made his way to the newspaper office, he was pale and felt ill. He was so distressed that a colleague had to make the emergency call to Scotland Yard.

- 4.103** In thirty minutes, the Thames River Police anchored one of their boats beneath Blackfriars Number One arch. There, they caught a close-up of the dead man. He appeared to be about sixty, average height, slightly overweight, and his receding hairline was dyed jet black. His expensive gray suit was lumpy and distorted. After cutting him down, they laid the body on the boat deck. It was soon discovered the reason his suit was so misshapen. He had stones stuffed into his trouser pockets, and half a brick inside his jacket and another half crammed into his pants. The River police thought it was likely a suicide. They took no crime scene photos before moving the body to nearby Waterloo Pier, where the murder squad detectives were waiting.
- 4.104** Now, that man turns out to be Roberto Calvi, who was God's Banker, the banker for the Pope in the 1980s, who probably was more influential with the Vatican than everything else. You then find out the money that he had on him, what was being hidden, how the police tried to cover this up. But you hook the reader essentially by creating a scene. How did we create that scene? We weren't there. There's no video of it. We created it by going back and reading the original police reports, by reading the report filed originally by Huntley when he reported to Scotland Yard.
- 4.105** Then, we read the newspaper accounts. Then, there were inquests that were done subsequently by Calvi's family who had to fight the British coroner to say, "By the way, he didn't kill himself. It had to be murder." Those involved witnesses who came forward, including the original police who arrived at the scene, are on the record. To create the scene that is quote, "cinematic" in a sense—you're opening with that scene, but not doing it by just reading a newspaper article about it, not doing it so somebody can come back to you later and say, "By the way, you over-dramatize that. That wasn't true at all. He didn't get back to his newspaper office and he was sick."
- 4.106** If you started on the wrong note, there are going to be people reading this book who have covered this story before. They've written about the Vatican Bank. They know Vatican finances. There are people who have written about Calvi. There are Italian journalists who have written books about him. So if something comes off in the first chapter, and this goes on for a small bit, where you've made what I call a fundamental and silly error, it casts in and out everything else that you're doing in the rest of the book that's serious. So the amount of work that sometimes goes into something like that would be surprising.
- 4.107** A lot goes into sometimes debunking a story in footnotes. A lot goes into a simple beginning like that because we were too late. By the time we did this story, Huntley was already dead; the others were dead. But, I think you will know this by now: I would

not have trusted their memory all this time afterwards, literally almost 40 years later or 35 years later when I was doing this book, to say, "Tell me what happened on that day," because they might tell me in good faith what happened. It might be completely different. I want to go back to the contemporaneous accounts. That's the most likely way to be able to find something.

- 4.108** On Pharma, it starts with something called patient zero. A woman admitted to a hospital in California with an infectious disease that doctors give her—literally, they're looking for everything in 2014 to try to cure her. After every antibiotic that is known, she still dies. And they believe they have a pathogen, a bacterial pathogen, that if it spreads, it could be the next pandemic. This is before COVID. It starts on that edge of fear that—guess what—as much as you think medicine has under control, they don't have everything under control. So that's patient zero. That's what I mean. You have a long story to tell. Try to tell it in a way that at least the readers are invested in it from the very start.
- 4.109** So when you spend a good amount of time on a story, you get your book published. When do you ever know it might be right to add an epilogue, like you did with Case Closed? What is something that will say, "There's going to be a little more I should add to this?"
- 4.110** The worst person to ask about when they should update a book is the writer of the book, because the writer of the book always wants to update the book. Oh, my goodness. If the publisher allowed it, I'd update the book every year; there'd be something new. "Oh, how about this? Oh, what about the new assassination files release? What about this? Oh, the Russians just released some files." It would be great to be able to do that.
- 4.111** Publishers are like, "Whoa, we'll call you back at some point." To tell you how frustrating that is. In the Kennedy assassination, in particular, there's a release of all these files. They keep coming out over time. There's new information. There's an account by a Secret Service agent that changes. It has three afterwards now. It has an afterword that was done the year after publication 94. It has one that was done on the 40th anniversary of the assassination. Now it has one that was done on the 60th anniversary of the assassination: the afterword, afterword. That one came out in 2023.
- 4.112** However, only the digital publishers of the Kindle, Nook, Kobo, iBook, the digital publications were willing to publish the update on the 60th anniversary. But the paperback publisher—there's no hardcover anymore, so it's only paperback—the paperback publisher said, "It's not worth it for us." I said, "Oh, my God, it's like an important update." Of course, I believe that. They said, "But we're not going to sell any more copies." I said, "But it's the 60th anniversary. It's got all this stuff that wasn't in there before, including my take on this Secret Service agent, and it's really good."

- 4.113** The bottom line: you're dealing with a business in the end. No matter how much you argue, they look at it in terms of dollars and cents. The book has been out for 30 years. They're going to add, and they're going to change all their plates and do everything else to put this in; that's a good public service, but they're in the business of pleasing shareholders and getting a bottom line. They probably won't sell an additional paperback as a result of it because most people don't even know it's updated. As a result, I have people that say to me sometimes, they'll drop me a note, say something online, and say, "When are you going to update the book about what's happened with the Secret Service agent?" I said, "I did, but it's only in the digital version." Now, that absolutely drives you crazy.
- 4.114** If you're self-publishing, if you're doing your own book, so you don't go through traditional publishing, then you have no problem. You can update your book all the time if you want to. There has to be a reason that you want to do it. There has to be some news that's come out or something that's different. But I do think that that's important because, to me, if the whole purpose of doing this is the accuracy of the record, it would be nice to have the record updated occasionally.
- 4.115** Sir, how do you handle language barriers while maintaining security and anonymity?
- 4.116** The language barrier sometimes is security because it's so difficult to figure out what we were actually saying to each other that nobody, even a hacker, could figure it out. I have rudimentary German, menu German, but many Germans I dealt with speak English, and so it wasn't as much of a problem. My Spanish is not bad. Trisha's Spanish is pretty good. Portuguese, we were lacking on.
- 4.117** But still, there are those moments in which you're conversing, and you can't ask the level of the question with the nuance that you would like to ask in English because you can't quite capture the nuance to it. So I often think that those language-restricted interviews are more—rudimentary is the wrong word, but they're constrained by the fact that neither side is fluent enough to have an easy conversation.
- 4.118** The reason that happens—I mean, sometimes I would have a translator, but the reason—and that's usually a friend of a friend of a friend, but somebody who's fluent, because you never can actually pay for real translators. They're too expensive. But the reason that no translator is there is when that the source doesn't want somebody else there. They're talking to you in another language, and you're doing your best.
- 4.119** Now, today, analog versus digital, oh, my God, it's a piece of cake. My earbuds will do real-time translation as I'm talking to somebody. I would just have to sit in the interview. I can't tell you how many times I think back to old torturous interviews in which we're going back and forth with each other. Today would be a piece of cake because we would each have the easy translation of what was going on.
- 4.120** Would you trust it? Would you be sure that what you're saying on the cloud isn't being picked up? There are still a few instances, but they were in English, in which I would not

do that because the sources were government sources, and they could have been picked up. Somebody has to be listening to try to get it, but there is that question on a sensitive enough conversation, would you do autotranslate? I haven't gotten there yet. Thank you very much. Thank you. Thank you.

Lecture 5: Data Journalism

At a glance — Data journalism.

- 5.1 Data journalism. Now, you think data journalism, you read articles all the time, you'll see something, you go on to Twitter, you see something that's in a newspaper, and it's filled with stats. They'll give you figures and that, and you think that's data journalism. No, that's just what I call regular reporting. There's a way to do journalism and reporting and to break stories against everything that I told you in the first four lectures, which is, you have to tell a story, you have to tell a narrative, you have to tell a good tale, you have to have a hook to get people into it and that.
- 5.2 It also turns out that you can tell a pretty good piece of journalism and do a public service, sometimes, by what I just call getting into the numbers. The numbers can tell a story, and there's an art to doing it. So you're really trying to match what I call statistics with the art of journalism. We've explored open sources, documents, interviews. Now we're turning to what the numbers can tell us. So let's see how the numbers become stories in a general sense.
- 5.3 If you're looking for numbers, and when I say that, you're going into a database, you're searching for something, you're looking for campaign finances, you're looking for contributions to local politicians, you're looking for how much money doctors may take from pharmaceutical companies. You're looking for patterns in the information, first of all, in a general sense. You start with the wider picture. Do you see anything that links together? Are there stories that link together in there?
- 5.4 Then the question is, do those stories, those numbers, tell a story? Can you make a story, a piece of journalism, out of that? And this issue goes beyond statistics, goes beyond spreadsheets. We're talking about something more than that. It matters because today, you have something available that wasn't always available in the analog period, which is these great data sets, leaks, Snowden, everybody else. There are massive leaks of material out there. There are the Panama Papers. You can get into the files of the law firm whose all 11.5 million pages were let loose.
- 5.5 There are portals, there are open APIs. So there's a lot of material online. You don't have to go out and find a source. You don't have to sit down with somebody right away. You don't have to spend the money on a translator. You can go ahead and literally go into these sources and start to look for the numbers. And note that, as an overall point, there's a difference here between what I call data and database.
- 5.6 So the idea here, the end goal, is not to make charts. You're not looking to come up with an interesting chart that shows how maybe financing for an immigration issue has gone up over time from certain NGOs. That might be interesting, but that's not the goal. The goal is to try to get an understanding and insight into what the numbers are

telling you. So it's not about spreadsheets. It really is, in the end, about the proof and then trying to figure out a story from it.

- 5.7 How to find stories in numbers. I guarantee you, this is not what you need to do. So anybody that looks at this and figures, "Oh, my God, this is what I have to do to find a story in numbers?" No, this is just a mathematician doing it. I happen to like this one because it's one of those things that I know that, if I walked into that class myself, I would have to walk out and see. If that's how you have to find a story in numbers, we'd all be finished. You don't have to do that. That's the good thing.
- 5.8 The best data story often begins— and this is something from practice almost—with one statistic or one piece of data that seems wrong to you. It doesn't quite seem right. You think to yourself, "Is it really possible that they built the entire narrative around that part of the data?" And then you start to look into it in some ways. So what you're looking for, in a general sense, on these databases and that, we're talking about trends—patterns that might contradict official narratives.
- 5.9 So the government has a narrative, corporations have a narrative, NGOs have a narrative. You're looking often for statistics that might undermine that, because you're looking for the counter-narrative. You're trying to look at statistics and data, and we'll get into some examples, that are different from what the official story is.
- 5.10 Spot anomalies and red flags. I'll tell you, the scoop is often in the outlying numbers. You're going through a set of data, you're looking for statistics, let's say, on campaign financing reform, and then you find a few things that indicate two small NGOs in Oregon ended up financing a campaign for a local district attorney by running PACs, political action committees, and they provide 80% of the money. Those anomalies will take you into a story that turns out to be pretty interesting.
- 5.11 There are databases for you to use. Don't forget, the government in this great bureaucracy that we talked about, the Freedom of Information Act, the other day, and how you're going to get FOIA files, also has health, spending, crime, education, climate databases. You can use any of those. You can get into them. They're public access databases. They're messy. They're tough sometimes to navigate through. You have to have an idea of what you're looking for. But once you find the numbers that you think are unusual, you have to still find them into a story.
- 5.12 NGOs and watchdogs. NGOs are often—they do some great service, and sometimes they survive just on government funding. But what they do is, they have transparency available often for their own databases. You'll find a thing called Data Commons. If you go on to Data Commons, they'll have different databases from governments and corporations that are made available. They'll have them there available. Transparency International, another one. Google it, you'll find it. There are databases there for you to work from.

- 5.13** Leaks and whistleblowers, of course. We all love it when somebody comes and hands us the data. That's much better than having to look for it. So if a whistleblower comes up and says, "By the way, I've got the internal numbers on what's really happening here inside this government funding program," then you need to verify it and double-check it and find out that you have a verified narrative. But of course, that's the part that looks so good.
- 5.14** And finally, FOIA requests. We come back to them again. The other day, I was talking about FOIA requests just in terms of getting information, that you might find a document on a story that you're doing. But you can also do FOIA requests very specifically for public records and data, because the government agencies that answer you under FOIA have to supply what they have compiled as well for their own data.
- 5.15** So if you ask them for all of the relevant information, for instance, at the federal election commission, about funding that comes in, if they have started any civil action against political parties for foreign funding, they'll supply you a list of that with the numbers, and it'll be your starting point to do a data set number.
- 5.16** Now, here's the workflow in a general sense. Every data set tells many stories. The journalist's duty is to choose the one that's true. So, first you define the question. You start with some hypothesis, not a spreadsheet. You have an idea of a story that you want to do. You collect the data. You go to government APIs, FOIA, commercial data sets, crowdsourcing. So you have to go out and collect the data.
- 5.17** You clean it. This is a pain. I'll tell you, there's no shortcut. There might be, eventually, AI, I think, is going to help in the digital world. It will help clean the data, and there are some tools to help to do it. You have to remove the duplicates because, remember, you're getting numbers and raw data. Standardize the formats, and make sure that your assumptions are uniform across the group.
- 5.18** And then you analyze it. You're looking for rates and ratios, not raw totals. You're looking for relationships between the numbers, if that exists. I'll give you an example of this afterwards. Then, you visualize a result and charts—if you make a chart or you do a map, you see these pie graphs all the time on a story. If you make that, that's to help the reader understand it. It's also to help you understand the numbers sometimes. But it isn't the purpose of doing data journalism. It's not to end up with a fancy-looking chart that everyone is going to look at. It's to explain the data that you're picking up and doing.
- 5.19** And then, of course, we're talking journalism. You've got to add some human stories to it. I'll give you some examples of the best type of data journalism. So you've got your numbers, you think you have your story. Now you have to go out and talk to some people, to add in a human element to it, because the numbers are interesting, but they aren't interesting unless they're affecting people's lives, if that makes sense. Every story is different, but now you're adding in at the end, doing something very different here.

- 5.20** The other day—you're going through a process—we were talking about gathering information and research and how you're preparing a public record and getting data before you go off, and information before you go off and do your interviews. But you're really telling human stories from the very start. Here, you're following numbers to see if you can spot anomalies and differences and create a story. Then you're putting the human touch in at the end. You're going in for what I call the personal effect on individuals at the end, to say, "Here's the numbers. What has this done to your life?"
- 5.21** Then the easy part, publish and impact. So hopefully you find a way to accomplish it. And then the second part is, all this work that you've done has an impact. So pitfalls and framings. To see this workflow in motion, we're going to build a small, complete data project in a moment. The biggest problem for journalists who do this—and I know some journalists who are really adept at it.
- 5.22** Last night, I had seen the production of a journalist who put together numbers on a political campaign and who was financing it, and I thought it was fantastic. The chart that she had had 105 organizations supplying money to this particular candidate. That chart was an epic chart. I found out later from sending that journalist a message, "How did you create that chart?" They had the help of AI. AI was actually able to take this mass of information that they had and create a chart that was pretty fantastic.
- 5.23** But some journalists get paralyzed by the numbers, because you go into these large databases. Unless you have a very clear idea of how to pull it out, they just endlessly are erasing duplicates, cleaning it up all the time. I know some journalists that are working on some big projects that have the potential for getting headlines with data, and they can't bring themselves to complete it. They even have aid and assistance. It's what I call that data paralysis.
- 5.24** There's also a problem with— people confuse correlation and causation. If something's correlated, you have two variables, two different things, and they follow the same path, but one isn't causing the other one. If you have causation, you have two variables, and one's causing the other. What is an example? A classic one we used to talk about when I was at school was that, when ice cream sales go up, they peak over a several-month period. Crime often goes up over a several-month period in many large cities. They're correlated. Ice cream sales are up, crime is up.
- 5.25** People confuse that. They can, and say, "Oh, ice cream, therefore, must cause crime. It's causation." No, it's not at all. It's, of course, summer. They forget the third variable. Things get warm, it's hot, it's summer. People are eating more ice cream, and there's also more crime. Hours are longer, day is longer, and the crime rate is up in most cities. There's a correlation between increased ice cream sales and increased crime. They correlate, but one is not causing the other.
- 5.26** In tobacco, for a long time, Big Tobacco denied the idea that nicotine was, A, addictive, and, B, that it caused lung cancer. They said, "Oh, there's a correlation. It's true that

long-time smokers often end up with a higher rate of lung cancer." As a matter of fact, it's about eight times higher than nonsmokers. It's significantly higher. "But they're just correlated. It's not that tobacco causes it." That's absolutely false. Of course, we now know scientifically that tobacco use, long-term tobacco use, can lead to a much higher increase of lung cancer. So there, there's a causation.

- 5.27** There are some areas in which you can't quite tell the difference. We don't know yet. So, for instance, a long-time puzzle for me, and I've looked into it at times, is in Northern California. I was born and raised in San Francisco. In Marin County, just north of San Francisco, there's a significantly higher rate of breast cancer for women than there are in other parts of the state or in other parts of the country.
- 5.28** So the question is, it's not obviously living in Marin County. So what is it that's caused that higher rate of breast cancer? Is it that they're living near power centers? Is it that there's something that affected the water? Do they take different types of chemicals or drugs? Since they are financially middle to upper-middle class, do they go to the doctor more frequently? Is the detection rate earlier? There's no way to tell.
- 5.29** Nobody has figured out what the causation for that is yet. There are a lot of correlations, but that's a long-time investigation that people can statistically show but can't determine what the causation is. So you don't always get the answer. But what you don't want to do is get the numbers and stumble into thinking, "Oh, I've got numbers to track each other on this, and therefore one must be causing the other." Maybe, not necessarily so.
- 5.30** The same data, different narratives. I'm going to go through some examples of that with you afterwards. That happens all the time. You think to yourself, "Numbers don't lie." OK, well, assuming you haven't changed the numbers, rigged the game, pulled the wrong numbers up, numbers don't lie, but they can be interpreted differently. So we're going to later look at what ProPublica did this fantastic database with doctors and the money that came in from pharma.
- 5.31** So you have millions of dollars, for instance—and we'll talk about this in more detail—but millions of dollars in a general sense that came from pharmaceutical companies to physicians. And many physicians got zero. They didn't take any money from pharma companies, and some physicians took a lot of money. So how do you want to frame that narrative when you run the headline for a newspaper? You can say, "Doctors take millions from pharma." That's absolutely true. There's nothing false about that. Pharma gave millions of dollars, and doctors did take it.
- 5.32** Or you could run the headline that says, "Most doctors receive modest speaking fees," which is also true, because the many doctors who take zero bring the number down for the overall number. So you read that headline, and it depends on whether, as the outlet giving the spin on the figures, do you want to leave the public with the idea that

doctors are cashing in all the time, or do you want to give them the idea that there's some integrity, and most doctors aren't taking much money?

- 5.33** The story is in the details. But how many times— I know this from my own reporting, unfortunately—how many times do people not get past the headline? Sometimes they don't get past the subheading. That's about it. If you can get past the first paragraph, it's really fantastic. I've been guilty of it. I'm far from perfect. I read the headline, and then I think, "Wow, that's fantastic. What a great story." Of course, the story is the headline. I'm hoping that I read the right headline, and it wasn't something that was leading me down the wrong path.
- 5.34** Editorial choices shape meaning. There's no doubt about that. If you publish your own work, your name's on it, you own it, and you're going to take the heat if it's wrong. If you have somebody else publishing it and they want to give it a spin that you don't like, then it's your duty as a journalist to stand up and say no, because the worst thing they can do is not publish it. I thought about this the other day. Nobody's going to come down and send me to jail if I say, "I don't like the way you're spinning my journalism. I don't want it that way."
- 5.35** So you do have an obligation. I never like it when a journalist says, "Well, I wrote it for that newspaper," whatever else. It's true, they choose the headline. You never choose the headline as the journalist when you're doing even an opinion piece. You hope that the newspaper is going to give a headline that's a good one, but you get to see it beforehand. If it was really misleading, then you have the right to say, "I'm sorry, that's not going with my work."
- 5.36** Framing influences policy debates. There's no doubt about it. When politicians, local, state, and federal level, are talking about making changes, they get pushed by these decisions on how you frame these issues. Here's my mini data journalism project of the day. I've chosen something, you would think, with great controversy. No, I've chosen something that has no controversy, but shows you how you can work with numbers. Then, we'll get into the controversial things later.
- 5.37** Potholes. I don't know how many potholes. I haven't been in Scottsdale long enough to find out if the roads are filled with potholes, but I can tell you, living in Miami, in South Florida, you need a four-wheel, off-road vehicle often to navigate the roads. I don't know where the tens of millions of dollars of taxpayer money on road works go sometimes to fix the potholes that are really legendary. So you hear complaints that a city's potholes are out of control.
- 5.38** City officials tell you, you're working for a local paper, that they're fixing them faster than ever. So your question is, is it true? Maybe it's just an infrastructure problem. Maybe they continually—we hear this all the time in Miami. By the way, after the summer, the heat was so great, the roadways expanded, and then with cooling off a

little bit, we just naturally have had—there's no fix for them. So we try to fix them as fast as possible. OK, it's possible.

- 5.39** So you start with the question, not with the data. Are repairs faster? This is what you need to ask yourself as a journalist doing this story. Who waits the longest, and has the budget changed? That seems how I would map it out. I'd want to know, are they really doing faster repairs? Where are the changes being made, and are they spending more money on it? Now, what would I then do? I would collect five years—I would ask them for five years' FOIA requests to the local government. They have to make this material available. They all have their own public policy rules for repair logs.
- 5.40** I want what's been reported for fixed dates and location. I'm going to pull the 311 complaints, and I'm going to download the road maintenance budgets. Easy enough to do. So that's my data. I'm now getting people who've called in complaints. They said, "By the way, there's a pothole down here in the street." I'm getting the five years of what they've actually repaired, and I'm getting the budgets for the road maintenance team.
- 5.41** Now I have to clean it. When we were talking before about taking out duplicates or whatever else, I've got the data. I want to standardize the street names because this happens in Florida. I'm not sure if it happens in Arizona, but the street name changes at a certain block; it becomes something else. And so therefore, you think you're actually talking about potholes on different roads, but you're actually talking about on the same street, so that's the neighborhood that's getting it.
- 5.42** You have to parse the date, remove the duplicates. Duplicates affect your data in the sense that the 311 calls may have eight calls about one particular monster pothole at an intersection, but you only want to know that those are coming in, but you're still only talking about that one pothole. You don't want to have it as eight different potholes. You're eliminating the duplicates, and that's the cleaning up of the data as you go along.
- 5.43** Then, you get to analyze it. You compute the average repair times by year. Each year, what's the average number of repairs they're doing? They're doing 50 a year, that's fine. And then you're testing the budget versus the speed, meaning that if the budget is X amount, they're doing so many repairs, how fast are they doing them? If the budget is going up, are they doing more repairs, or are they doing them quicker? And you flag as resolved the records where there's no repair, or potentially what I call a false closeout. So cleaning the data, you're seeing what the work is being done by the city.
- 5.44** Then, you get your charts. So before when I said to you, the purpose of data journalism is not to create a chart, the chart is going to help you here, and it's also going to help the reader eventually. You chart the repair times over time, so you see how long it takes them to get in to do it. You map the delays by neighborhood, if you can do it, which you can with the data. That's the simple dashboard for the readers. The readers

are looking at something, which is showing them the average time for repairs by neighborhood.

- 5.45** Now you have that information, you can do something else: the human layer. You're going to go to the neighborhoods with the residents who have the worst pothole situations, who have it all the time. And you're going to talk to the officials on why that's the case. You're going to hit the officials with the data to find out why these particular neighborhoods are the ones that have the slowest repair times and suffer the most.
- 5.46** And then, you're going to publish transparently. Clear headlines, the method you use, the links to the clean data set. In the end, that data is bulletproof. So now, we talked the other day about assumptions. You go into a project with an assumption. It's impossible to avoid because it's part of human nature to have it. My assumption would be, if I was doing this for the Miami Herald, and this was the assignment that I was given, I'm going to pull it together. It's going to be a good story. Drivers are on the road all the time. They all have this situation. They're going to be interested to find out.
- 5.47** My bias is to think that the poorest neighborhoods are probably getting the worst service, that if you happen to live near a gated community, they don't have as many potholes as a community that happens to be underprivileged. And that if it's on a major freeway, it probably gets fixed faster than if it's on a road that maybe is being serviced just by commercial trucks going back and forth. Now, that may not be surprising, and maybe the data would indicate otherwise. So you need to follow that data to find out what it says. You go in with your own feeling, the data may or may not support it.
- 5.48** But that's what I call a bulletproof story. The headline would be, if you're able to write it, "Despite bigger budgets, city potholes repair still slowed in low-income neighborhoods." That's my biased headline, without having done the research. But that's what I would tend to think you might well find. Now, sometimes, I think one of the most, not difficult, it's the wrong word, but one of the most frustrating things for a journalist is, you do a project like this, let's say, especially if you're a local news journalist. And it takes a lot of work because you can tell, this is not easy.
- 5.49** And newspapers are cutting their staff down. So they don't give you, by the way, extra people to be able to do it for you. You're doing it on your own. And then, you publish it. And let's say that's the end result; that headline is the story. You've got all the stats and everything else. What you will hear from people, 9 out of 10 is, "Well, I'm not surprised by that. You had to do a study to figure that out? I could have told you that if you'd just asked me." So people say that all the time. Of course, journalism has to provide the evidence for it.
- 5.50** So people may have the assumption that low-income neighborhoods are getting worse service on city budgets and potholes than higher-income neighborhoods. But you've now supplied the evidence that can't be contradicted by city officials or anyone else.

But as a journalist, if you spent three weeks breaking your back to try to put this together, and everyone says, "Oh, yeah, I read your story. That was not a surprise at all. It was a nothingburger," it can be a little frustrating at times.

- 5.51** Now, let's scale that idea up to national reporting with some real significance. This is the case study that I love myself, ProPublica, Dollars for Docs. So the question is, how much money are doctors taking from pharma companies? That's what they're asking. You have to realize that the background of this, before we get to how they did it, does it influence prescriptions? In 2010, the U.S. government began requiring pharmaceutical companies to provide for public access, disclose payments to doctors for speaking fees, consulting, travel, and meals. That was it.
- 5.52** So before 2010, pharma companies had a free ride. They could have somebody that can buy their meals, they could give them consulting fees, they could have them do speaking at—the Sacklers and OxyContin and Purdue were famous for this. They had a speaker's bureau inside of Purdue, which paid doctors hefty speaking funds to come before a group of Purdue salespeople and tell them how they should sell more OxyContin. Would that therefore influence the prescribing patterns of those doctors?
- 5.53** I know the answer to that, having done the book *Pharma*, the answer is yes, but it's pretty hard to have the integrity of taking a large speaking fee from a pharmaceutical company and not feel in some ways obligated, required, or at least induced to promote their product, which is often a very expensive new drug. So in 2010, the data starts to become available.
- 5.54** That raw data, I can tell you this because I looked at it in 2011 and 2012, in the early stages of doing the book on the Vatican, there was a time in which I was thinking of doing a book still on Big Pharma. I looked at that massive data, and I remember saying to Trisha, because we were going through it, "It is a total mess," and it was, because the pharma companies were very smart. They're always smart.
- 5.55** They said, "Oh, you, the government, you're going to require us to provide the data on all the money that we're giving for this? OK, we'll do it in a data dump that really is almost impossible to figure out. We're not going to say that we paid \$15,000 to Dr. Adams over here in Tucson, and we paid \$20,000 to Dr. Best over here in New York City. We're just going to put it as a data dump of dollar figures, dollar amounts by division, and then names of doctors over here, and you'll figure it all out somehow."
- 5.56** It was as close as you could get to not complying with the directive. But they complied with the directive by—they mastered the art of figuring out how to do it, so it was a mess. It was scattered across dozens of company websites. The problem the government had when it gave this directive in 2010, it didn't consolidate it into a single database. So companies were doing it independently. They followed the lead of Pfizer and others who were doing it as a mess, and they all did the same thing.

- 5.57** So you had to go to Novartis, you had to go to Pfizer, you had to do them one by one, you had to go to Lilly, and they each had it a little bit different, and figure out if they were overplaying. Now, ProPublica, this is a public interest group of journalists, a nonprofit group, turned this into one of the best data journalism projects, in my view, of the decade. They scraped the disclosures from the pharma websites, and they later pulled the information from the open payments database, from CMS, which is the Medicare and Medicaid websites, to see what was happening.
- 5.58** They standardized the doctors' names—that was something that the pharma companies weren't doing. They matched them with the national provider identifiers, and they linked the payments to the individual doctors and drugs. So not only did you have the amounts of the payments that were going to doctors, but you had also then the amount of drugs that those doctors were also prescribing, to see if there was a correlation or causation between the two.
- 5.59** They looked for a correlation between payments and more brand name prescribing. So the more money doctors received, the more those doctors prescribed name brands. Why is that important? Pharmaceutical companies run an unusual business. I can't believe, I very, very seldom watch TV ads anymore because I'm either taping something on a DVR, pretty old school, or I'm watching something and I pay for a premium service on YouTube, so I skip commercials, so I don't see commercials.
- 5.60** But now I'm in a hotel and I get to watch news and I see ads, and I forget how many pharma ads there are, which is unbelievable. We are only one of two countries in the world that allow pharmaceutical companies to directly advertise to consumers. New Zealand—hard to imagine what's wrong with them—and the United States. We didn't do it until 1997. The FDA approved in '97, one of the biggest mistakes, in my view.
- 5.61** Think of this. It's such an unusual process because you already have a drug industry that Arthur Sackler, the senior Sackler brother, who brought Madison Avenue advertising to the drug business that we talked about the other day, who ran and created Purdue, which was the company that later put out OxyContin and brought that hard-sell technique to the business, even Arthur Sackler could never have imagined that, one day, drug companies would be allowed to sell directly to consumers.
- 5.62** They can't sell the drug to consumers. We're the consumer, we're the patients. So what they do is, when they first had this approved, in America, there's no limit on pricing. Yes, there's now a policy in which the government is negotiating the price of the 10 most expensive drugs from Medicare. That's the first time that's been done. Under Trump and Biden, they've both put that through. That's being done, it's fantastic. But otherwise in America, it's unfettered drug pricing.
- 5.63** So pharmaceutical companies in other countries, they have boards, national health boards, that they have to negotiate the price with. In America, they get to set the price at whatever the market will bear, and sometimes it's eye-popping prices. We, in the

United States, have 5% of the world's population. We have 75% of the profits for drug companies around the world. You take the top 10 drug companies, three-quarters of their profits are coming from sales in America. Why? Not because we're using more drugs, but because we're paying more for it. We pay the top dollar because drugs are patented.

- 5.64 So when they come out, company, if it's able to show that it has a therapeutic benefit, even if it's not that great, or it's easier to dispense, so you take it only once a day or twice a day, as opposed to four times a day, they can get a patent to cover that drug. There are copies of other drugs. They did this with antibiotics in the '50s. They do it all the time. Once they have a patent, they get protection for 20 years. They set the price and there's no competition. No generics, nothing else. You buy that product.
- 5.65 Now, the question is, if you're putting out an antibiotic, for instance, when you were originally in the '50s, you could get penicillin, and then companies were getting antibiotic patents on tetracycline and other drugs. Now, Valium is off of patent, but there are new anti-anxiety pills. There was Xanax and others that replaced it. If you go to a physician, does that physician prescribe the generic, off-label drug for you?
- 5.66 Remember, physicians, for the most part, have no idea of what you pay for the drug. They don't know what your insurance is. They're not quite sure if you're covered with good insurance, if you have drug insurance, if you don't. If you ask the average doctor, "How much does that pill you just prescribed cost?", they don't know. They really don't have an idea. They know just that it's the pill for you.
- 5.67 Are they going to give you the generic, or are they going to give you the latest and greatest, which might not be the latest and greatest, but certainly is the most expensive? And do they have a tendency to do that more often, which the drug company wants, that the drug company is giving them money, so it becomes a real problem? And the sales of drugs to the consumer, just so this is clear—drug companies are spending billions of dollars on these TV ads a year.
- 5.68 The very first ad they ran, there were some people in the drug industry that didn't think ads would work, because they said, "By the way, we're an odd business. Doctors have to prescribe and write the prescription. So why should we advertise to patients? Patients can't do it." And some people, like the Sacklers, said, "We can create demand. We can make patients look at the ads and say, 'Oh, I want the latest and greatest. I've got high cholesterol. I want to lose weight. I want that drug.'" And then they go and ask their doctor for it."
- 5.69 And so what happens is, under the rules that the FDA set, if you tell people what the drug is for, you have to tell them the side effects at the end. So at the end of most drug ads, there's a litany of, "Can kill you, might kill you, will cause headaches, your liver is gone," everything else. What they've determined in these focus group studies is that people tune those out. For the most part, they listen to what the sell part of the deal is:

"You're going to lower your cholesterol. It's going to be better for you if you have diabetes," whatever else. It's new and the best.

5.70 Then, when they start on the side effects, people say, "I know everything leads to death on Google," and they push that aside, and they don't really pay attention to it, so it doesn't dissuade them. In addition, if you don't tell them what the drug is about, you don't have to list the side effects. Now, you think that's weird, but one of the most successful drugs ever was the very first one ever put on television after they approved them in 1997.

5.71 It was a drug for Claritin, which now is over-the-counter, but at that time was prescription-only, was expensive, for allergies. I remember this ad. It showed two people, a couple, running through a field of flowers, just floating through this field and running through flowers and everything else. Then, it kept saying— if you can find a copy of it, you do a Google search, you'll find something on YouTube on it. It's looks very dated, more than 1997-dated. It says, "Claritin, Claritin, Claritin. Ask your doctor for Claritin."

5.72 When I saw that, I remember saying to Trisha, "That must be for an antidepressant." That's what it looks like. They're, like, a happy couple going through this field of flowers. Claritin, I said, and instead it was allergy medication. But they didn't have to tell you any side effects. So if they do that, it created its own demand, and Claritin became a multi-billion-dollar blockbuster, and everybody else said, "We're going to advertise." So that's why we get bombarded with so many drug ads, unfortunately.

5.73 Back to what ProPublica did with this. They did what I call God's work in this sense. They created a public, searchable database for patients. Now, that's when you have more than just one journalist doing it. You're able to get a group of journalists and you have the IT people and you say, "Can we take all the data we have and make it searchable? Can we do what the government should have done, when it first put out the directive that said, 'By the way, let's find out if pharma money is affecting the prescribing habits of doctors?'" So they did it.

5.74 They then went out and they did interviews, and they talked to everybody, from physicians to patients to ethicists. They put together this large story. And when this story ran, it made not just the national headlines, but it got policymakers and watchdog groups. It led to tighter regulations, and it led to transparency in doctor-pharma relationships that wouldn't have been possible. So this is what you call a home run in terms of—to use my only sports analogy of this lecture— in terms of journalism, because you're able to put together material that's really tough to master.

5.75 Nobody else is going to be able to do it as well. It takes a lot of work. Then once you do it, you can find if there's a correlation. You make it available to the public, so they can use the same tools that you used. And then, you break the story in terms of having spoken to—and they went to the doctors who took the most money. And they said, "By

the way, you're prescribing a lot of this pill. Does this affect—?" These doctors all had the same answer. "No, I'm not affected at all by the fact that I took \$29 million from a drug company and I'm prescribing their pill. Their pill is the best." They would have some denial like that.

- 5.76** But it was very interesting because, if you look over at the top 20 companies, for instance, on this list, and I don't know if you can see all of them, but some of them, and this is in 2018, doctors. So \$12 billion in disclosed payments. So pharma companies, when we say, "Hey, they're buying meals and they're providing people to come for a speaking fee or consultation or that," it adds up to \$12 billion. Now we're talking real money. This isn't half a million dollars, and half a million dollars would be enough, but \$12 billion means they're spending real money.
- 5.77** On a million doctors, 1,036,000 doctors in the whole thing, 1,250, 1,249 teaching hospitals, they're also getting it. And 2,190 companies. And some like Genentech, half a billion dollars they're spending. Some of these are small. Stryker Corporation, at 100 million. You look at the highest earning doctors. There's a doctor in there for neurological surgeon, Kevin Foley, Memphis, Tennessee, \$29 million in payments.
- 5.78** Now, that doesn't tell you that Dr. Foley has done anything wrong, but it tells you, you want to find out when he's making a recommendation, where he's getting his money from, from which companies, and is it affecting his decision? A lot of doctors are getting zero. I've looked up the doctors that I go to. Sometimes I just want to see if they're taking money. And surprisingly, or maybe not surprisingly, I'm happy to report, the doctors I go to, the one had \$75 once for a lunch that was bought for them by a pharmaceutical company, and the rest of them weren't taking any money. I like that.
- 5.79** Does it mean that they can never make a mistake? No. Does it mean they can't give me bad advice? No. But at least I don't feel as though they're in the pocket of the pharmaceutical companies. I think that's where this becomes something. They didn't just publish—remember, ProPublica did not just publish raw numbers. They didn't make it a difficult thing to go through.
- 5.80** And if you ever do a Google search and go back to their original stories when they broke, ProPublica, Dollars for Docs, you read their first story or read the first page of the first story, you'll find they get you from the beginning. Because they give you the stats that tell you this is an important story, and we're going to tell you how it happened. It's a very, very well done piece of journalism.
- 5.81** Oh, by the way, as if you didn't know, we went through this. Step one, define the question. They did what we talked about before. This is what I meant. You know when we were talking about potholes? This is it. Define the question. They knew what they wanted. How much money are doctors taking? Collect the data. They did it. Clean the data. They did it. Analyze the data. They did it. Visualize the findings. They provided all

of those. Add the human stories. They did all the interviews necessary. Publish and impact.

- 5.82** Now, there's a big difference between doing the local story for the Miami Herald on potholes and doing this story in a national sense. What my point is, you don't have to go in and try to do this type of national story. You can do a smaller story, but numbers can make a difference in telling the story. For me, this framing is perfect. You talk about how you frame it. It's accountability for big corporations and systemic health care conflicts.
- 5.83** Left versus right. This overlaps a little bit, and they're not always like this. But what I mean is that there are some large organizations that work and put together numbers and then produce studies, and it leans a little bit left of the political spectrum and some that lean right of the political spectrum. We talked before about framing, how you frame your issues. Sometimes when you get into these, you'll find the framing has not been right.
- 5.84** So left-leaning, what I call progressive examples. Panama Papers, believe it or not, we talked about it earlier, and Panama Papers had a fantastic impact, 11.5 million pages leaked from this. But most of the Panama Papers, if I had to say, did it go left or right, probably leaned a little bit left in terms of the story, and especially in the way that the news media picked it up.
- 5.85** The Washington Post did a story, Fatal Force. It was a database of police shootings, and the headlines from that was very much that police were out of control and needed more oversight. So again, they took the numbers, but they cast the story as a left story.
- 5.86** The Guardian. The Guardian, on The Counted, did a great piece of data journalism, but you had to get into the piece to understand that statistics were not quite as sensational as the headlines that tracked U.S. police killings and made it look as though people across America were being killed at a high rate. The Guardian put it into its own political context. And the same happened on climate change, visualizations and segregation mapping for The New York Times in 2019.
- 5.87** But there are also conservative and right-leaning examples as well. The Heritage Foundation. I like a lot of their work. Heritage Foundation is fantastic. They did cases of voter fraud. Their statistical base is good, but the headlines the media picked up was basically that voter fraud was happening at major and epic levels at every election from local to state. It happens at different times, but in different groups. So again, the framing is important.
- 5.88** The Cato Institute did something on welfare reform, in which it made it sound, the statistics were fairly neutral, but the framing of it came to be that welfare was a waste of government money at almost all times, which wasn't what the statistics told you, if that makes sense. So again, it gets framed in a different way.

- 5.89 Crime prevention research. John Lott analyzed FBI data to argue that concealed weapons, and if you have access to concealed weapons, if the laws are very, very liberal about concealed weapons, crime goes down. That always seemed to me to be a problem between correlation and causation. I was never necessarily sure that they had made their case for it, but it gets framed that way.
- 5.90 The Wall Street Journal, I've written it for the journal. They're great. They did what they called regulatory burden charts. Again, the data, if you go into it, is very useful, because what it does tell you is that the government, not surprisingly, state, local, and federal governments, have a maze of bureaucracy that you need to work through sometimes to get permits, and there's too much regulation. But at the same time, it was then used as a political narrative to say, "We've got to reduce regulation all the way around, streamline things so things can get built tomorrow." You don't necessarily want that.
- 5.91 I'm always looking at the way statistics, if they should be neutral in databases, you have no control. Remember I told you, you can tell your editor you don't want to have that headline, if they're taking something you like. But sometimes organizations that have the ability to do it—The Guardian, ProPublica, Panama Papers, The Cato Institute, Wall Street Journal—they have the resources to be able to do data journalism, but they'll often give it that little extra touch and spin.
- 5.92 Now, these are the neutral watchdog journalism examples, as I call them somehow. Open Secrets. It's a pretty good organization. You go through their stuff most of the time. It's a center for responsive politics. It's campaign financing, dark money, and super PACs. It's used by both liberals, corporate influence, and conservatives who use it to find union and what I call progressive spending. So they both go to Open Secrets to pick data for stories that they want to run that fits their political narrative, but they're using it for that.
- 5.93 Government Track US, free, neutral tracker. That particular tracker, I think, is used widely by journalists. It's used by students. It's used by activists. It has information on Congressional bills, votes, legislature's activities. International Consortium of Investigative Journalists, ICIJ. We talked about them before. They had done the Panama Papers. They're known for that. They do cross-border corruption. They're sometimes partisan, but for most of the time, their data is pretty good.
- 5.94 The Global Investigative Journalism Network, what I call GUN, it offers tools that you can use if you go on to their site for journalists, so they make it a little bit easier, and they promote transparency and investigative data. The International Consortium, ICIJ, we had in DataGov US. DataGov US is a federal open portal for journalists across ideologies. It is part of an international aid transparency initiative that lets you get information when you need it. If you go on there, you'll be able to find a surprising number of outlets.

- 5.95** Now, yesterday, we talked about conspiracies a little bit, vaguely, touched on them, the idea of conspiracies. Here's my conspiracy of the day. Look under Open Secrets, the very first one. If you look down a little bit, you'll see corporate "influeney" conservatives, instead of "influencing conservatives." There's a typo there. If you look under GovTrack US, the third line has students with a double S as another typo. If you look down to the next one at the International Consortium of Investigative Journalists, you'll see "non-nartisain" instead of non-partisan rating.
- 5.96** Now, this isn't a test to make sure that you were paying attention, spotting the typos. This slide I've taken, and I corrected those typos, not once, not twice, but three times. And then still here on this slide, it still has those same typos. That's a conspiracy. I have not yet found how that's responsible, but I want to know how PowerPoint has taken an old slide that had typos and not put my new slide in, time and time again. So I am shaming Microsoft and PowerPoint this morning, to the extent that they can be shamed, in this.
- 5.97** So the point is, there are some neutral watchdogs out there. Takeaway tips. So you're trying to get the truth expressed in numbers. It's data journalism, it's skepticism quantified, if you can think of it that way. So, question first, always ask that. Start with a hypothesis. Collect only what matters. Otherwise, you'll be drowning in numbers forever. Document everything.
- 5.98** Keep the raw files and the cleaning steps, because if your work has impact, then the critics are going to come out and say, "Hey, how did you clean the data? Did you tilt it? Did you put your finger on the scale, so that you would get the result you wanted, or did you really clean it correctly?" Verify, then visualize. Double-check the circulation before making the charts, the calculations. Accuracy matters more than aesthetics. I guarantee you, you can have the greatest-looking pie chart in the world, and if it's not accurate, you're going to get roasted for it.
- 5.99** Mind control to the extent possible, your own bias, your own feelings about what they're going to say. Watch out for missing data, because sometimes it's missing. Errors inside the data; you're trying to clean it up. Make sure that the project that you have done is reproducible. Somebody else could go in, do it independently. Another group inside the same newspaper could take the pothole example, redo it, and they're going to come pretty much to the same example, because I haven't done anything to change those numbers.
- 5.100** This is a sideline—ProPublica and the rest of these groups are very good about it—respect ethics and privacy. You're collecting data. Sometimes in data dumps, there is personal information that identifies people, especially on pharma material. You have to be careful. You don't want to identify ever a patient. You don't want to identify somebody.

- 5.101** Sometimes hospitals have provided, and I've seen this before, data information that provides material that actually violates HIPAA. Then they're notified about it, then they clean it up. But if you got access to it before they cleaned it up, you would have access to some patient information. You're really obligated, there's no law that says you are, but you're obligated as a journalist, as a decent person, to make sure that you're not putting any personal data on a chart or a map, doxxing anybody by putting it out.
- 5.102** Pair the numbers with people. Always take your data, do the interview, show the causes and the consequences, and then publish transparently. If you can, provide links so they can see the source of information. If somebody makes a correction, I find with data journalism, the story that I was telling you, that I was looking at last night, about the financing of a political campaign, and 105 different organizations that supplied the money, that's pulled together very quickly. It's a mass of information.
- 5.103** Is there an error in there? I don't know. I haven't had a chance to go through yet. I know that a lot of people are looking at it. Will they find an error in it? Very possibly. None of us are perfect. The smaller the operation that does it, the more likely you are at some point to have missed something that you cleaned up. The minute that's pointed out, you have to correct it instantly. The organization that puts it out has to correct it. Those things happen.
- 5.104** But what you can't do, you can't fight the numbers. You can't fight the statistics. So all it shows is, if there is a mistake, you correct it, you're not perfect, and then you make it clear that you have that as part of the reporting going on. So that's the idea of data journalism. In our next lecture, we're going to move from data to documents, as I say, how to craft investigations into this clear narrative story, a little bit away from the numbers, and we'll figure it out. But that's the story of statistics. Thank you.
- 5.105** Do you ever find after, say, a book like Big Pharma, you see that—there's more than, obviously, one variable that leads to these incentives—but do you ever find that maybe if there was, say, no 20-year patent, or maybe a shortened patent where then the companies would be forced to deal with competitors, which, would that likely have, could it be one thing or are you seeing multiple things?
- 5.106** Absolutely. I hate the idea of the protected patent monopoly that's given in pharma. In June of 2025, I went and debated for the first time ever, was invited to debate at the Oxford Union in England about pharma. I debated the side that said, there's too much of a profit quotient in pharma. We need to strip profits out to reasonable profits, not excess profits. I had a person who was debating in teams. She was a dean at Cambridge. On the other side was a former head of the FDA and the chief medical officer of Pfizer. They disagreed. They said, no, we should have as much profit.
- 5.107** We, the side that said, "Let's take profit out of health care," won that debate on a 10 or 12 to one margin, I'm glad to say, because people understand that. And my point in the debate was, in the 1960s, Senator Estes Kefauver, he was the senator who was made

famous in the '50s for investigating the Mafia. So he called these Mafia hitmen and everybody before Congress. It was the first time that Congressional hearings were televised, and the public was mesmerized. The ratings were through the roof. They loved seeing these mobsters come up.

- 5.108** So Kefauver was the guy who went, he was this Tennessee busting muckraker, went after the Mafia. Then he went after pharma in the early '60s. I write a lot about him in Pharma. He had these hearings and investigations about profits and everything else. He sent some of his research over to Europe to get ideas, and they came back and they said, "Hey, nobody has a patent like the US, this 20-year protection." And it gets gamed all the time.
- 5.109** So that in 1921, two Canadian researchers invented and found insulin, miracle drug. Fantastic. They sold the licensing rights to Lilly. Those Canadians, the Americans taught them a lesson. Don't give away the licensing rights, no less. Lilly kept the patent on those licensing rights and the exclusive rights, essentially, of penicillin, for 40 years, by re-jiggering the medicine, by doing evergreening tweaks, by having delivery pens, by doing little changes that qualified for an extension of the patent. Pharma companies know how to do it very well. So, 20 years is sort of the minimum. You get to have longer if you do it.
- 5.110** There are drugs called orphan drugs, which are drugs made for small patient populations with genetic illnesses. They were underserved. So in the early 1980s, Congress passed a law, well intentioned, called the Orphan Drug Act, to encourage drug companies to make drugs for groups of under 200,000 patients, because the companies didn't want to make it. Why would they spend all this money to go through the regulatory process and make a drug for a small group, sometimes only a few thousand patients, when they could make a cholesterol medication that is affected by tens of millions of people?
- 5.111** So they were looking at that. Then they gave an incentive. They said, "We'll give you extra time on your patent. We'll give you an instant period in which nobody can compete. We'll give you tax credits and everything else." Fantastic. Now companies got into making orphan drugs. And guess what? The top 10 most expensive drugs in the country, in terms of revenue, eight of them are orphan drugs, because they change all the time, and they do tweaks to get them approved.
- 5.112** They price them at mind-boggling fees. Literally, Novartis has a drug for \$2 million for delivery for a year. Others are \$100,000. One of the first orphan drugs was for AIDS. It got the approval, AZT, which was priced at \$10,000 a patient. Even though the government had done most of the work to create the research to do it, it was Burroughs who took the patent and then made the money off of it. It happened.
- 5.113** So time and time again, over the years since the 1930s, the National Institutes of Health have spent over \$900 billion of taxpayer money on health research and grant funds,

and led to many of the drugs that are now on the market. But the drug companies own the patent. They've even fought the government at times to keep the patent away from them. So when there was a drug put out in the 2000s, you had Truvada, which became a pre-prophylactic drug that might prevent the spread of AIDS.

5.114 And the government did the research on that. It did the work at the NIH. It was funded by the Gates Foundation. They had private money look into whether it would happen. And the company that owned the patent of that drug had never even used it, never had it on the market. The government tried to patent it, to distribute the drug inexpensively. The company, Gilead, fought them, won in court, kept the patent, and made billions of dollars. That, to me, is wrong.

5.115 So the idea of the patent—what happens if you were given an exclusive patent, you put in all the money for the drug, you get back all of your money that you spent to create the drug, the billion dollars or whatever it is that you spent up to that time, and then you make a 10% profit for three years, guaranteed, and then it's licensed to all comers. So you can license and make money for all comers at that point.

5.116 I asked that of the former medical director of Pfizer. Would that be good? She was horrified. 10% profit? You're going to limit drug companies to making only 10% on a drug that they discovered, for only three years? They didn't like that at all. So I don't like overregulation. I don't like government coming in and saying, "We're going to run the health care system." But at the same time, I'd like to see a little bit more on what I call the drug and patent end.

5.117 And the last thing on this, sorry for the long answer, but I obviously feel passionate about this. I get people that come up to me and say, "Oh, you fool. You're a journalist. You're not in the companies. We spend so much money to get drugs approved. It's so expensive with clinical trials, it's a multi-billion-dollar process. So we take this risk. Not every drug makes it. And therefore, we need to charge high prices to recoup all this." OK, that sounds good. That sounds fair.

5.118 But then I need to ask them something. Take the top 10 biggest grossing drug companies in the world, and they spend more on average every year on share buybacks and promotion than they do on research and development. So you know what? Let's cut back on the share buybacks and the promotion, and maybe you could cut prices a little bit. So, yes, I think we can have shortened patent periods, that's a short answer.

5.119 Are you aware of any contractual obligations that often compel journalists to publish stories in a framing or with a message that they disagree with or think is wrong?

5.120 Here's the contractual obligation or contractual arrangement that wouldn't make that happen. You'd work for somebody as an employee. So all the reporters, the New York Times, the Wall Street Journal, the New York Post, whatever else, they're collecting a salary. They're doing reporting, but the paper is doing the framing. Now, it's easy for me to say, as a freelancer, "I don't like the way you frame that, so I don't want that."

It's never happened, by the way. So I've never had a situation in which I've had to walk away from a finished piece because the framing was so bad or something like that.

- 5.121** But I could do that as a freelancer, and then maybe I'll lose the ability of that editor hiring me in the future to do a piece for that. That's the risk. But if you're an employee, you don't have any control over that in that sense. It's not as though they have a contractual obligation to intentionally distort the reporting of the journalist, but the journalists don't have any control over the way that's presented, if that makes sense.
- 5.122** Now, I don't think, for the most part, the— and Substack has become a great outlet for journalists who weren't happy working inside of journalism for large corporations. There's a question about this, and I write for—one of the things that I like, and I'm very old-school on this, is, I like the fact that I can write for the New York Times. I did a couple of op-eds we'll talk about later, and I can write for the New York Post. And you think, huh? I can write for the Wall Street Journal. I can write for the Washington Post.
- 5.123** Most of the time, people are splitting in this country in which we are now in these political camps on the right and left, so much in our own camps, it's only one or the other. You're either writing for outlets that are considered left of center or you're writing for outlets that are considered right of center, and then they don't want to use you. If you've gone on and you've been on Fox News, CNN doesn't want you on. And if you're on CNN, Fox News doesn't want you on.
- 5.124** I am of the belief, and I know that I'm a diminishing smaller group of this, that journalism is journalism. If I have a story like ProPublica, I should be able to go on and discuss that on Fox and MSNBC. Both should be interested in the numbers. Now, they may have a different take on it, when they do their round panels and they have their discussion and they're going to talk about it. I get that. And one may want less regulation from the government on pharma, and the other may talk about the fact that this—but the numbers are the numbers. The story is the story.
- 5.125** And in the old days, you were able to go on and talk about both. And you didn't worry about the framing, in the sense that then it would be framed by those talking heads, who would take it and discuss it afterwards. But your journalism spoke for itself. But in terms of contractual relationships, I think that journalists who work for organizations are at the mercy of the organizations that they work for. Thank you.

Lecture 6: Legal & Ethical Considerations

At a glance — Legal and ethical considerations.

- 6.1 Welcome back. Before starting lecture 6, I'm jumping back for one second. You asked me the other day: Did I ever do updates to books? I can do an addendum to the last lecture that we were talking about, which is data journalism, and how sometimes it can be used for different purposes or different narratives.
- 6.2 I did a Substack last year, maybe almost a year and a half ago, called the transgender money pipeline. So what I was interested in following was just the money, to find out why American Medical Association, the AMA, groups like the American Psychiatric Association, the American Psychological Association, and others, promoted the idea of gender-affirming care for children at a time when Europe and Nordic countries were going in the opposite direction and rolling back on what had been very permissive standards beforehand, and questioning whether those were good.
- 6.3 I did a piece for The Wall Street Journal called The Truth About Puberty Blockers. I did not call it The Truth About Puberty Blockers, but The Wall Street Journal did. The purpose of that article was to show that, with most drugs, which I know from Pharma, drugs are prescribed off-label by doctors. So, doctors are allowed, in the United States, it was passed in the 1930s, to prescribe any drug that's approved for one condition; they can use it and give it to a patient for a completely unrelated condition.
- 6.4 Because in the 1930s, when the FDA made that rule, the federal government approved it, there were 25 to 30 drugs in total. You didn't have to master them all. Now there are thousands of drugs. Doctors don't keep up outside of their own specialty, but they still have the unlimited right to prescribe drugs for whatever purpose. Drug companies like that when it happens, because they make money without having to prove to the FDA the safety concerns that are involved in clinical studies. It's a great loophole in the business.
- 6.5 So, puberty blockers, there's no drug approved as a puberty blocker for a prepubescent teenager, a boy or a girl, to stop their puberty from developing, that is approved by the FDA for that purpose. But there is a drug out, and others like it, called Lupron, which is used to chemically castrate sex offenders. It's a very powerful drug that, if given to children, will stop their puberty.
- 6.6 So the question was that, for years, and it's prescribed off-label. AbbVie, who owns the drug, they don't mind; hundreds of millions of dollars in sales for this. And the question was that the proponents of it had said, from medical associations and other, it's no cost, because if the child changes their mind, they can then start their puberty and there's nothing lost. There's no side effect.

- 6.7 I'll tell you, from having worked on Pharma, I know there's no such thing as no side effect. Aspirin has a side effect. Everything has a side effect. The question is: what are the side effects? Are they long-term or not? And on puberty blockers, they're long-term. There are 10,000 adverse impact reports sitting with the FDA about thinning bones, brittle teeth, teeth breaking, all types of hormonal problems in the future. So the point is, there's a cost to weigh. Why aren't the medical associations doing that? Why aren't the doctors advising it?
- 6.8 Is it because of what ProPublica found, that it's just money? So I wanted to look at why these associations were there. My view is, what we talked about in earlier parts of the course, follow the money. It's pretty hard to go wrong because you do get an idea of where it's going. And what I found in the transgender money pipeline is that literally hundreds of millions of dollars are being spent by a handful—when I say a handful, 10 to 12, often billionaires, people with significant money, who are activists on this particular issue, some of them having themselves been transgender and changed to a different gender, and they are now providing the money.
- 6.9 What they're doing is, they're providing money basically to hospitals, and they're saying, "By the way, I'll give you \$20 or \$25 million to build a new wing at the UCSF Hospital." That's fantastic. No hospital is going to say no to that. "But what I want as a condition to that grant is, you start a gender studies program, that you have doctors trained in gender studies, and you're to be able to do that." It comes with that attachment.
- 6.10 And so time and time again, you see what I call the ideology of gender-affirming care starts to spread into regular medical institutions, not because it's organic, but because they're taking grants of money that have attachment to create and focus on this particular issue. Now, that is just following the money. If you read my particular piece, it tells you where the money is going and who's providing it.
- 6.11 But I can assure you that that piece was taken by both the right and the left for completely different purposes in the way that it was eventually used. You can't touch the subject without having touched an important rail. But my view of it is—and I go back to what we were talking about then in data journalism and in just reporting—I'm going to follow the money, I'm going to report to you what I found, and I think that it's influenced the decisions of some of these organizations and medical groups to be able to embrace a much more permissive view on pediatric gender-affirming care, because the money is pushing them into that.
- 6.12 You can disagree with that, but then you have to come up and tell me why that's the case. I interviewed people, and I went through the whole process. Sometimes you hit a subject, and I say, "Let's go down to the basics and give me the numbers." That's what I try to do on that. Sorry for going back for a second.

- 6.13** Investigative journalism is powerful, as it says, but one careless line can trip up a whole career. Now, you would think that, as a lawyer— I never say former lawyer, because if you say former lawyer, it really means you've probably been disbarred somewhere. So, non-practicing attorney, everybody's favorite type of attorney, non-practicing—you would think I would like this area of libel and ethics and everything else. I can't stand it, because I view it as I think the way that most journalists view it, which is, it's a limitation, but it's a fair limitation on your reporting.
- 6.14** What you have to know is, I go through and do my reporting, knowing that eventually a lawyer at a newspaper or a team of lawyers or an outside law firm is going to take my manuscript, especially with a book, and they're going to go through it with a fine-tooth comb. Think about this for a second. I'm writing about Chinese gang members in triads in Hong Kong who are moving heroin to New York City. And I'm writing about members of fraternal organizations in Chinatown called Tongs that I believe may be complicit in the heroin trade.
- 6.15** Every light bulb is going off in the lawyer's head at the publisher about the possibility of a lawsuit. I'm writing about Saudis who I think might have known in the royal family about something that was going to happen on 9/11 beforehand. We'll talk about that. So all of those things they want to know immediately. Publishers, for the most part, don't say this to you. They say, "By the way, what's your evidence? Show me what you have. Tell me."
- 6.16** If I have a source—this goes back to the protecting the source part—at some point, I will have to, if push comes to shove, disclose my sources to the attorney, and then it's part of attorney-client privilege. So it falls under a different privilege. I have to hope, pray, think, that that attorney is going to be as diligent in protecting the sources as I am. I know the attorney is not going to disclose the sources; that's clear, but you're always worried once you have to give the source to somebody else. But you need to do that, because they're making a judgment.
- 6.17** What they don't tell you in publishing, but I know from having worked as a journalist for so many years, by the nature of legal reviews, which can go on for days, they don't want to just win a lawsuit. They don't want to really see that you have the reporting that shows you can prevail because truth is an absolute defense—they don't want to get sued. So that's a tougher standard. They don't want to spend \$200,000 or \$300,000 with a lawyer to defend the case, so I can walk out of court and say, "Hey, I won that case," because they're not going to sell one additional book for a libel suit.
- 6.18** That's how they think of it. The suit is not going to make the book fly off the shelves. So think of it in a commercial sense. Remember where they are. They're not there just as a nonprofit trying to do the public good, and will pay the cost to go to court if you have to. They want to make sure that somebody doesn't file the suit. When you're dealing with people like the Saudis, who are billionaires, it's a tough standard because somebody can sue you, just to tie you up in court.

- 6.19** Journalists who are writing in nonfiction are always, especially investigative nonfiction —this comes with the territory. It's part of what we do, unfortunately. The law is never there to scare me. It's there to make sure that I'm accurate, that I cross every T, I dot every I, because you're doing it. So, know the terrain if you're writing about somebody. It's libel, slander, defamation.
- 6.20** Libel is something in writing, so it has to be printed, then it's libelous about somebody else. Slander, defamation is something that can be said. It can be spread orally. So you can go out and say the same thing that then becomes the basis for a lawsuit. It doesn't have to be in writing. People think it's not actionable. They can't get sued if they don't say it in writing. But no, you can still find yourself in court. So verify and attribute. Publish only provable facts and document everything.
- 6.21** If you're really—one of the things I always do, if I'm writing something that I know is going to be explosive about people, and I know the lawyers are going to be worried about them sending a lawyer's letter, I go back to them right before publication and offer them what I call a right of reply. By the way, I don't tell them everything I'm going to say, because you don't want to disclose your story beforehand, because it gives them the opportunity to do what I call prepare their answers and come out. They've got a slick little profile to be able to answer whatever the article says.
- 6.22** But instead, you want to say, "I'm doing a piece in which I haven't been able to talk to you, and other people have spoken to me. And from the documents that I review, I'm going to draw a conclusion that you might have had some pre-knowledge of a terror attack on September 11th, 2001." That's pretty explosive on itself. When you don't hear back from them, I don't put in the book. There are some journalists who put in the book, and sometimes I'll do it, but you don't put in, "They never called back."
- 6.23** But the lawyers want to know that. They want to know that you reached out. They want to know when you reached out. Did you send an email? How did you call? Did they reach back? So you've offered that reply. Minimize the risk. So some of this is just common sense. Avoid malice. It helps if you avoid malice. The speculation in careless language. Consult counsel on sensitive claims. You don't have to ask the lawyers. If you're publishing for somebody, the lawyers will come to you.
- 6.24** Where you have a greater risk is if you're doing your own blog. You have your own blog or your own Substack. You are, in essence, the only check on it before it goes out. You have to ask yourself that question, which is, is everything that I have in this blog post about somebody, especially if you're saying something about somebody alive—there's a quirk, by the way, in the libel and defamation laws. I'll talk about them in a second. But basically, in America, you can't libel anyone who's dead. It's a strange rule.
- 6.25** If somebody's dead, I could say that this person was a child molester, and without any factual basis for it, I would have my journalism career ruined because I can't prove it, if

it somebody who just passed away. But the family can't sue me. They can't do anything about it. There's no estate rights that exist in that way.

- 6.26 There's something very interesting in terms of journalism. You also can't get a freedom of information request on somebody who's alive. So you can't do a FOIA request, I should have mentioned that the other day, on somebody who's living. It's a right of privacy. But if they're dead, no problem. You just have to show the obituary in the paper or whatever. So two things happen when a public figure dies, whether that's an artist, a politician, a mover and shaker in the corporate world, somebody who's controversial.
- 6.27 First of all, FOIA, the freedom of information departments at the different government agencies get flooded with request for files about that person, because every journalist who would like to write something about them is now sending in requests to see if there's some gold of information in FOIA. You want to do it right away, to be first in line, so you get the documents.
- 6.28 The second thing is, some of the most scandalous stories about people will run in the tabloids right after they've died. You look at it, and you just think, "Well, it's because they've died, maybe somebody's decided to finally speak out about them, who otherwise was intimidated or afraid of them." No, it's because the newspapers and the blog posts and Twitter and everything else know that, no matter what's said, nobody's going to come and sue them.
- 6.29 So the next time somebody famous and controversial dies, watch the news because somebody's going to be publishing something that was not published. And my view of that, by the way, is—and I don't say this in a sanctimonious way or a way of, I'm better than this journalist or anything else—the challenge for me, that I set for myself, is to be able to publish it while they are alive. That's the real challenge.
- 6.30 Because when I'm working on the Saudi book, or I'm working on something else, to get as close as you can to disclosure, with the lawyer signing off on it without—then it's easier when they're dead, of course. You don't have to worry about the legal check. But that, to me, is low-hanging fruit. It's not the way to do real journalism.
- 6.31 So if I said to you, by the way, I was stopped by the lawyers from publishing something that is absolutely critical, "When that person dies, I'm going to print it out myself, no matter what," but there isn't that story. I've had to change language before. At the last second, I've had to soften language, make the accusation seem less accusatory, less definite, things like that. But I've never had a story squelched for legal reasons, and I've had extensive legal reviews like that.
- 6.32 Respect the legal lines. There are other things you can cross besides libel, by the way. You can break privacy laws, you can dox somebody, you can get medical records. If somebody gives you, is a whistleblower, and you put it out, you're going to have

trouble with that. Copyright and fair use. You can quote from another person's work, but if you use too much of it, it's a copyright violation.

- 6.33 Court orders and embargoes. Sometimes I come across a court order in which something has been sealed, and I have— not a whistleblower, but a leaker inside the judicial system who is able to provide me a look at that leaked document. Now, if I publish it, there's a temptation right away. I remember the first time I ever saw a sealed filing in a court case that was taking place that I thought was of some significance.
- 6.34 You just really want to publish it and put it out for everybody to see. But you will be held in contempt of court. You'll have some problem for that. You'll be brought back. Instead, you can use it to advance your reporting. It becomes the equivalent of what I call Deep Throat on Watergate. It's your lead. It's not evidence. It's your lead to go and do other things that other people may not know about.
- 6.35 Protect yourself and your outlet. So obviously, you don't want to get into legal problems because you don't want to ruin your own career. You also don't want to cost the people who are publishing your work lots of money defending you in losses because they will tire of that very, very quickly. Going to Case Closed for a second, the book on the Kennedy assassination. There's a legal issue on this.
- 6.36 Harry Evans, who was the editor of Random House, thought there was a conspiracy in the case. Then he read the manuscript, and he became, we talk about born-again Christians. He was a born-again lone assassin enthusiast. He was convinced that Oswald had done it as a result of this. Harry ran an ad campaign.
- 6.37 Now, it's very odd in publishing. Trisha and I often talk about the fact that publishing is an antiquated business. They do almost no promotion for a book that comes out. Celebrities and Harry Potter and things like that are different. But they do very little promotion. They let reviews build up, word of mouth. And then, if the book becomes a hit, then they do some ads and other placements in bookstores because they try to accelerate sales. So they wait for the book to catch on its own.
- 6.38 Harry did something unheard of. He did pre-publication ads. What he did is, he ran ads for three weeks or four weeks—I should remember exactly, but it has been 30 years ago—in The New York Times, that said, "1963, the assassination of JFK. This August," because they were publishing a few months before the 30th anniversary, "Random House will reveal the truth." That was the teaser.
- 6.39 And then, on the publication date, he ran an ad that showed Oliver Stone, Mark Lane, who had written a book called Rush to Judgment, a number of people, David Lifton, who had written Best Evidence, a number of the most prominent conspiracy writers, and Oliver Stone, and said, "Random House will name the guilty." And then the ad ran on publication day and said, "Guilty of misleading the American public," and showed them, and then said, "Introducing Case Closed."

- 6.40 Well, guess what? Two of them sued. So you talk about that litigation. Mark Lane sued. He said, "You ruined my reputation. You're saying I'm guilty of misleading the American public? I've never misled the American public. I had the truth about the case. It's you who's misleading." Brought them to court, and Random House had to spend money to defend that.
- 6.41 So there's a case in which, thank goodness, it wasn't being spent directly on defending me on that, but they were already in the hole, in the sense that they had an aggressive ad campaign that ended up being a cause of action. So legal is around there in every possible way sometimes.
- 6.42 The standard for libel in the United States. It has to be the person that you're libeling, you name them, it's clear. But sometimes, somebody can sue you and say, "What you've written is clearly about me. It identifies somebody as only me. You're talking about the head of HR in this office in Los Angeles, and that's me. You've libeled me by saying this." So you don't have to necessarily name the person.
- 6.43 It has to be published to what they call a third party. So you can put it on your own blog. I don't care if your blog has five people who are reading it, it's published. It's the same as if it goes out to a million, so it's still going to be actionable and libelous. And this is the part that's more difficult for them in these Supreme Court decisions over time. It has to cause harm.
- 6.44 So if somebody says something about you that might be actionable and libelous, then the question is, is it so outrageous that nobody in your family, friends, or in the business you're involved with pay attention to it? Did it do you no harm? It hurt your feelings; you didn't like it. But if you can't show that some harm resulted from it, you don't have a cause of action, which is interesting. So it's fairly difficult to do.
- 6.45 Now, the standard on fault. This is where the Supreme Court, in a famous 1964 case, *New York Times versus Sullivan*, set the groundwork for the U.S. having one of the best protections for journalists. If you're writing about public figures, it has to be with actual malice. That means that I'm taking information, I know it's false, I know that it's libelous and it's going to hurt somebody, and I publish it anyway. If they can show that, then they're going to prevail, no matter if they're a public figure.
- 6.46 Or I have to have done my journalism with such a reckless disregard for the truth that I gather every salacious rumor up, I put it down, I don't distinguish between what's good and bad. When they get my notes, and they see what I've done, they're going to say, "That's such a reckless disregard for the truth, it constitutes malice," then that public figure is going to prevail. It's extremely difficult to do.
- 6.47 So it's not enough—if you're a private figure, then it's just a matter of negligence. But almost every journalist who writes about somebody will use the argument, and legally, that they are a public figure within their realm. So remember, we were talking about pothole stories? I guarantee you that the person who runs the division inside of Miami-

Dade on fixing potholes is a public figure, even though he or she may have been mentioned in the press only three times in the past, or maybe not at all, but they will be considered a public figure in terms of what they do, and they will have had enough of a public profile that they'll qualify.

- 6.48** In Britain, it's different, and in other countries, it's different. In Britain, if the statement is false, if they can prove it's false, that can be libelous. The book that I had on the Saudis and the Kingdom was published in the United States. No British publisher bought it for publication, because American lawyers were convinced that it was fine for the standards of libel in the U.S.; the British weren't as sure that they necessarily weren't going to get sued. So their choice of that is, somebody can buy the American copy if they want to on Amazon, but we're not to have a British publisher standing behind it. That was very interesting. So that's part of it.
- 6.49** The burden of proof is always on the plaintiff. So the process for suing is made even more difficult because you have to prove as the plaintiff that you were libeled, that the reporter acted with malice or with reckless disregard, and that you were harmed.
- 6.50** Now, here's my overall view of this. It's very, very difficult to lose a libel case in the U.S. as a journalist. You read about very few cases in which somebody is collecting a major judgment for libel. But as a journalist, I don't want to be at the position in which I'm worried about paying out a judgment. I'm thinking that I don't want to get sued for the following reason. It means discovery. Discovery means you have to provide all of your reporting materials.
- 6.51** So, as I go through, especially on contentious issues, I'm always thinking, just as I do in terms of trying to protect a source and keep things encrypted and not put things up on the cloud, I'm thinking of the documents that I maintain, that I keep, that I put forward. I'll talk about, near the end of this, a case in which one of the most important interviews I ever did wasn't put to tape and wasn't—I took no notes on it, because my notes are otherwise discoverable.
- 6.52** Somebody ends up suing me. They want to see: what do you have? Did you take any notes? Yes. Can I have them? You have to provide them. Did you take notes? Yes, I did, but I destroyed them. That looks pretty unusual. Did you take notes? No. I had an interview in which I didn't take notes, and I didn't have a tape. I don't have anything to produce. You're thinking about that sometimes when you go forward, because that's the legal process. It doesn't affect your journalism, but it affects sometimes the way you collect information.
- 6.53** So burden of proof and truth as defense. By the way, you don't win libel cases by being fearless. You do win them by being factual. Libel, we said, is written and published, slander is spoken and broadcast. Truth is your defense. It's always your defense. Document everything that you have. You know that as you go forward. The burden of

proof does vary in the U.S., even sometimes by states. But for the most part, it's exactly what we talked about in terms of malice.

6.54 Opinion and fair comment. Now, the courts have said, the Supreme Court, that if you're writing an opinion, you can get away with a bit more than you can if you're reporting it just as straight facts. So, if I'm writing about a public figure, I can say that I think they are a scurrilous character. I can think they don't have the best interests of the United States at heart, and I think that they have fomented divisions across the country. Then, I lay out the reasons why. None of those statements about them are libelous. I'm clearly marking it as opinion.

6.55 Now, you can't say a factual thing as your opinion. You can't say, by the way, "I think that CEO at that corporation is a child molester. That's my opinion." That's not going to get you off for being sued. But you can say other things that are rather incendiary at times. But there have been suits. That's how the Supreme Court ended up deciding it. People sued over opinion. They said, by the way, that person published an article that was absolutely an opinion piece or an op-ed that was terrible. This gets so bad.

6.56 Dan Moldea is a great investigative journalist. He's an old-school analog investigative journalist. He, years ago, wrote a book about the Teamsters and all. It was pretty well received, but he got a terrible review in The New York Times. It gave him a withering review. He sued them. I've never heard of that. We all get bad reviews at some point, but he sued them, saying it was personal and that they had hurt his career and everything else. That's remarkable.

6.57 But I tell you, if that suit had been successful, every author would be suing every newspaper over every bad review. As a matter of fact, you would only get good reviews from all the newspapers in the future. It would be terrible. Papers have to be able to give you, if they want to, a terrible review. It's opinion. You may not like it as you build your career up. Somebody may like your previous work or not like your previous work.

6.58 They may go into doing a review on your book already with their finger on the scale a little bit because they're inclined to like your work more, or they dislike it from earlier things, so they're going to give you a better review than you deserve or a worse review than you deserve. That's the nature of the business. But he sued them. The New York Times prevailed. Then he did a book a few years later on the assassination of Robert Kennedy. It's actually a very good book. It's well done.

6.59 And The Times came to me and said, "We want you to review Moldea's book." I thought, "That's fantastic. So the guy that sued you last time for a bad review, you're giving me his book to a review this time?" And there's a part of me that, of course, wanted just to give him a withering and terrible review, just to see if he'd sue again.

6.60 But I didn't because I really liked the book. So he ended up getting a good review. Then people would say to me, journalists, "Did you give him a good review because you were afraid of getting sued?" I would say, "Absolutely not. I gave him a good review because

the book earned a good review." Sometimes legal process can affect the way people look at it.

- 6.61 Other shields and mitigation. The fair report privilege for accurate accounts of official proceedings. You go to a Congressional hearing, you report on it. If two senators get into a shouting match, how many times do we see now for the cameras in Congress, on opposite sides of the aisle, two members of a Congressional committee or a Senate panel will get into a back-and-forth that becomes a shouting fest and then goes viral? And you report on that, you're allowed to have some leeway on how you report on it. That can always carry the day.
- 6.62 Fact-checking and legal vetting. Every line you verify before you publish saves you a lawyer's letter afterwards. So you build a fact grid. I do this. I have a claims matrix where I list key assertions about people that I'm making. What's my corroboration? I used to say, when I first started writing, I will flag the areas that I think the legal counsel should look at. Although I say that here, for the most part, I disagree with my own advice on this, because if you flag it, then the lawyers at a publication get really nervous.
- 6.63 They think, "Oh, the writer is worried about that. That's a bad sign." No, you're not worried about it. You're trying to point out to them the things you should look at. Let them point out the flags for you. Sometimes, there's something very interesting about this. You get so focused on the main characters. And so what I mean, let's say I'm writing the book about Saudi Arabia. I'm focused on the particular princes that I'm talking about, and I'm thinking about them.
- 6.64 I'm writing the book on the Chinese heroin traffickers, and I'm thinking about the individuals that I name who might be public figures in New York or in Hong Kong. Now, we got a lawyer's letter from the nightclub that I mentioned to you before, where I met Benny, where it was a great hangout for triad members, and I talked about it, and the owner of that club sent a lawyer's letter, and said, "You've hurt my business. You make it sound like it's a gang hangout." Well, that didn't go anywhere eventually.
- 6.65 But I want to tell you that you can sometimes run afoul of a legal issue because you're not focused on it. It seems a side issue; it's not important to the nature of the book. It's in the way you describe it, the way you put it down, the way you put it, and you have it there. So what I say, don't fall afoul of something on the less important information as it goes down.
- 6.66 Quote documents fairly. I'll tell you, you know this without me telling you. Use exact wording. Don't change the words at all. Don't cherry-pick. Don't distort it. You can get in trouble for that because that could tend to show malice. If you've taken somebody's quotes, you make them say something by the way you've truncated or edited the quotes to really paint them in a terrible light, and that's not what the context is, that can be used against you.

- 6.67** Vetting photos in multimedia. So verify the time and place, the chain of custody, and secure licenses and permissions. If there's some odd identifier, if you have to, you can blur it out. But in publishing a book, for instance, I publish something in an article in a newspaper, publish an opinion piece, there's always a photo or a graphic that goes with it. Sometimes the graphic is created by people working at the paper. Sometimes they're buying from Getty or something else, the photo.
- 6.68** If I'm putting out my own Substack, I'm trying to buy a photo from iStock photos, or I'm trying to buy a photo from something else, or finding a general permission use. For a book, it's very interesting. You have a photo insert in the middle of the book, and people don't know this, but the author ends up paying for the photo insert, essentially. The publisher will put it out, pay for it in advance, but you have to repay them by selling copies of your book. So you want to get photos that illustrate what you're talking about, but you don't want to pay a fortune for them.
- 6.69** So Trisha and I, when we lived in New York City, used to walk over to the Associated Press, and there was a fellow there, Elvis Brathwaite, a tall, lanky guy, and I remember his name because Elvis is such an unusual first name. And he would be very helpful. And he sits down with, at this time, analog days, boxes of photos of the subjects we were writing about. And we would go through them and say, "This is interesting. How much is this for world rights?"
- 6.70** At that point, you haven't had your book published. You don't know if you're going to sell the book rights beyond America. You only have a publisher for the U.S. Maybe somebody in Britain is going to buy it. Somebody will buy a foreign translation right. They all want to have the photos cleared so they can publish it without any problem. So you need to buy worldwide rights, which means you're paying a little bit more for them. It may be a waste of time, but it's that process, because you need them to show the lawyers and the contract people at the publisher that you own the rights to publish those.
- 6.71** And often, the way that those deals would be created would be that we'd sign a contract to pay \$160 for a photo for worldwide rights. And that's not such a bad price. But they would put in the contract that's only for the first 10,000 copies of the book. If the book then sells more than that, it goes up to \$300. If the book sells more than 50,000 copies, it goes up to \$800 or that.
- 6.72** They know when a book is selling, because they see it on the bestseller list, and then they'll come knocking on the door, and they want more money. But at that point, maybe even the publisher is willing to give them a little bit more. So you try to get by with the least, but you have to have the ability to have photos. Otherwise, what happens, and you'll get this, even if you're doing a blog, you're doing a blog, a Substack, whatever, doesn't have a large audience, doesn't matter. If you use a copyrighted photo, you're going to get a letter at some point, an automated letter from a law firm,

and they're going to try to charge you a statutory fee for that copyrighted photo use, for the following thing.

- 6.73** You may have heard about this. There's a scam. I shouldn't say a scam. I don't want to libel anyone, slander anyone. There's a process in which some law firms go around in different states, and they go to parking lots, commercial parking lots and that, and they look for the size of the handicapped spot that's been created. And then they measure them. And if that little parking lot hasn't done the correct measurements, it's not wide enough, it's technically a violation of the accessibility laws.
- 6.74** There's an automatic \$800 to \$1,200 penalty, depending on the state, that gets put on you. You have to do the correction and pay the price. And they find thousands of, believe it or not, those strip malls that have parking spots for the handicapped, that don't meet the official state regulations, and they collect hundreds of thousands of dollars in fees, and they've automated it. The same thing with copyright for photos, now even easier because of reverse search on Google.
- 6.75** You have a publication. They have pictures that are protected on Getty and other sites. And literally, they have created the algorithms that are doing reverse searches for them on what's available on the internet to see if those images are being used. If they find them, they will send you a notice of copyright violation. And it's a copyright violation even if you did not know that the picture was not available.
- 6.76** So I give you a picture to publish. You have a blog post coming out. I say, great. I give you a picture to publish. And I say to you, "By the way, this is copyright-free. I got it from Wiki Commons." You say, "Thanks." You published it. It turns out, I'm wrong. I got confused on the picture that I gave you. You published it in good faith. You're still going to have to pay them. You may try to get the money back from me, but that's unlikely going to happen. So be careful on any of that, because that's what I call those little things that they're looking for. More likely you'll get hit for that copyright violation on a photo than you'll ever get hit for a libel suit, if that makes sense, hopefully.
- 6.77** Attributions and permissions. Credit creators, property, confirm the license fees, you clear the footage, and just make sure you're not using other people's rights. Pre-publication check: run a defamation privacy checklist, public figure, actual malice, privileged and confidential review, and document your corrections.
- 6.78** One of the things that happens, and it goes back to what we were talking about before, I get a legal review from the legal department on a book, and they have circled everything, because they don't know the subject, that is a worry to them. And then half of the people that they've circled are dead. And I send them the obituary or the death notice, and they scratch that off the legal list. It's really remarkable to see.
- 6.79** Handling sensitive information. Sensitivity is not censorship. It's just a way of making sure that you're not stepping on the wrong thing. So minimize exposure. Publish what's necessary for your story. Strip personal identification. There's no reason to put

somebody's home address in. If you're writing about somebody that you think is even a nasty person, they're not doing the right thing, you don't need to dox them by putting in their home address. I know that's done all the time now. People are marching on the homes of the Supreme Court justices, and the legislature just passed a vote.

6.80 I went to UC Berkeley. I demonstrated against the war in Vietnam. I like public demonstration at times, but I don't think people's addresses should be doxxed and given out. So I don't do it myself, and I don't think it's a good idea. License plates. Scrub metadata from things that could otherwise put somebody out.

6.81 Obviously, protect victims and minors. You're talking about somebody who's been victimized in the Epstein story and sexual assault. Unless they're willing to come out, you don't want to identify the victims. Anonymity for them. If you're dealing with minors, you need to get a release from the guardian often, but you certainly don't want to name them.

6.82 Use redactions responsibly. I've published documents before, and I've redacted—I hate redactions from the government when they come in from FOIA—but I redact that type of personal information. If I have a document from somebody—a document's financial information was given on a firm that I wrote about recently, that I thought had bad hiring practices, but I redacted myself that personal information, so it couldn't come back to somebody else.

6.83 Assess the risk of harm. We call it the mosaic effect. You have this wonderful mosaic, you look at a wall, and it looks like a great piece of art. It's been put together with all these little tiles. Well, from a journalist's perspective, you can write about a subject, not name the person, but it's so clear from all of the facts. You didn't say the head of HR in Los Angeles to identify the position, but it's so clear from the way you describe it that they can be identified. If they can make that case, that the mosaic effect, the overall impact of your journalism, identified them, then they might have a cause of action.

6.84 Check court sealing orders, privacy statutes, and platform policy. I'm big on this. I think, don't violate court orders to the extent you don't have to. Shield laws vary by state and country. So I don't check. You'll think this is reckless. I don't check individual laws by state or by country for what I call shield laws to protect journalists. I take the strictest of the laws and apply it to myself all the time, assuming that if I can meet that, I'm safe almost everywhere.

6.85 The only time I'm going to go wrong is if somebody has passed stricter regulations in a jurisdiction, and I missed them, and I stepped into it, but otherwise, that's it. I'm always assuming that, in the end—and I'll talk about this in a moment on a particular case—that what's going to happen, the worst thing is, I'm going to be called to court, I'm going to be told to disclose my source or before a Congressional committee. If I don't, I'm going to be held in contempt, and they're going to send me to jail until I disclose the source. I don't mean that lightly. I don't say that, like, oh, it's like picking up a donut in

the morning and a cup of coffee. That's not what you want to do. But that's the worst thing that can happen to you. So shield laws do vary.

- 6.86 Make confidentiality promises carefully. Never make a promise you can't keep. But when I say to somebody, "I'm telling you now that I will go to jail before I disclose your name," I have to mean that. Because if I don't, if I'm called before a court and they say, "Identify your source," and I say, "Oh, no, yeah, I don't want to go to jail; it's so-and-so," that'll be the end of my reputation and should be the end of my reputation for the future. You only build your reputation based upon that. The source has to believe that when you tell them that, because it is true.
- 6.87 Again, we talked about secure comms and operational security, Signal, Proton. Verify safety numbers. Avoid, oh my goodness, employer devices. I forgot to mention that before. Sometimes I'm talking to somebody who comes to a meeting with their laptop or their phone that's given to them by their employer. In the next lecture, we'll talk about Faraday bags.
- 6.88 Minimize exposure and paper trails. Keep them offline and to the extent possible. And whistleblowers need extra care. I don't think anybody's surprised about that, but they get treated with a great deal of respect by those of us in journalism. Often it's not cut and dry. What I mean by that is, it's not so simple where you know you've crossed the line, and you haven't crossed the line. You have to balance public interest versus the harm that you might be doing.
- 6.89 It's never nice. None of us, I don't think anybody, who is a journalist, even those of us who write sometimes with a very hard pen and expose wrongdoing, we take no pleasure in that. But the point is, you're doing it because, although the people that you're writing about are going to be infuriated, there is a larger public good from it. That's what you're hoping the weighing the balance is. That's why publishers do publish books of investigative journalism. They aren't the biggest-selling books often, but sometimes they do have a public benefit.
- 6.90 Decide when to publish, you know that. You offer fully a right of reply, clear legal review. Handle the editorial pressure. The editorial pressure will come sometimes from lawyers. I've never had it in a situation in which they've tried to kill something, but I do document every disagreement I have with them.
- 6.91 No pre-publication approval or payments. I'll tell you. I cannot recount, I wish I had a dollar for every time I've gone to try to interview somebody, and I say, "By the way, I'm doing a book on this. Will you sit down and talk to me?" And they say, "Sure. What are you going to give me? How much money? Can I get \$500 or something like that or whatever?" And I say, "I don't pay for interviews." And they say, "Well, you're making money off the story. Why shouldn't I?"
- 6.92 I say, "This is my business. This is how I pay my mortgage. This is how I pay my bills. I write for a living." This is journalism. I'm writing a story about it. It's not like I'm

parachuting in on a tabloid to do something and make money off of it, and I never pay for sources. And I have lost people as a result of that.

- 6.93** So, in the book on the children of the Nazis, the second generation, Edda Göring, her father, Göring, was one of the top Nazis. He crushed a cyanide pill and killed himself with suicide before they took him to the hangman's noose. But Hermann Göring was a big deal. He had one daughter, Edda Göring, and I went to see her in Munich, and she had agreed to talk to me.
- 6.94** Then, when I got there in Munich, thank goodness, I was seeing other people in Germany at the same time, she said, "How much money?" I said, "No money." I went through it. We went back and forth, and she argued with me. In the end, I didn't do the interview. I included her in the book and told why I didn't do the interview because she asked for money. That's it. But you're never paying for anything.
- 6.95** Plan for corrections. If anything happens, you have to publish corrections quickly. One of the things that I don't like about some online journalism, I liked the day and age when, if there was a correction to a story, it was published in the newspaper a few days later, and it said, "correction." Now, I agree, the story is inflammatory, and then you have a little correction over here, and people always complain about the fact that correction, no one sees it. As journalists, and on the record, it's there; the paper has it.
- 6.96** Now, what a lot of people do online, even some of the big news organizations, is, they correct the article, but you don't actually know it's been corrected. They don't have a correction anymore listed. So you read the new article. If you read the old article, you might have seen more inflammatory material. Now you read the new article, it's been corrected. I always think that corrections should be noted. They should be there for people to see that you had a history of it, but not many people are keeping that anymore.
- 6.97** Two very quick things—when to publish, when to hold back. So the Butler is a chapter in *God's Bankers*. And that was a chapter in which we, Trisha and I, were in Rome doing research. We met a number of people, and we finally met somebody who was a lay advisor, worker inside the Vatican, to Pope Benedict, the previous Pope, the German Pope. Very, very close to him. And this person, we were told by several people, knew the inside story of why Pope Benedict had resigned, and it was explosive, and it had our attention.
- 6.98** We met this person, met his wife, went to their place in Rome, and over a period of time, tried our best to convince him to tell this story to us. At one point, he said, "I'll tell you, but if I change my mind and say, 'Don't publish it,' you can't publish it." OK, agreed. Nothing in writing, nothing else. That's it. Because you're hoping, why would I agree to that? Why would I agree to somebody to tell me something explosive, and then they can yank it back if they want to?

- 6.99** Because I'm convinced that they're at that stage where they're about to open up. They're feeling comfortable enough to tell the story to somebody who they know is writing a book. And then, maybe once they've told that story, it's cathartic, it's out there, they feel more comfortable about it, and they will definitely allow me to publish it.
- 6.100** So we sat down, heard this story, a first-person story, much of it, that was really quite something, and it was pretty explosive. And then, we went away, and before we published, not long after that, he actually got in touch and said, "I've changed my mind. I don't want it out." We obviously kept trying to get him to change his mind again, so we had the story.
- 6.101** When the book was published, it relates to this chapter called The Butler; it's a very difficult process. Think of this as a journalist. You're writing a book that you're telling a story about this institution, the Vatican and money. You're hoping to attract some attention and news coverage because that gets it on people's radar. You're hoping that people will talk about it and say, "Oh, my God, did you see that book that said X, Y, and Z?" That type of thing.
- 6.102** As you're writing some chapters about Pope Benedict's resignation, you're writing what's available from your other interviews and on the public record, but not writing what you know the real story is, because we were never able to independently corroborate it. We were never able—we took that source as the equivalent of a deep source then. So once he said, "Don't publish," OK, then he becomes the Deep Throat of Watergate. That's fantastic. Now you have to go out and prove it.
- 6.103** But guess what? Proving it inside the Vatican with a handful of lay advisors and a bunch of cardinals around the formerly resigned Pope is not as easy to do as it might seem. And so we were never able to confirm that. And as a result, we didn't publish it. Never published it to this day.
- 6.104** That's the nature of journalism, occasionally. When not to publish and when to publish—there are people who would violate their word. I'm sure British tabloids, The Daily Mail, The National Enquirer. He's lucky it wasn't a reporter from them because they still would have had it on the front page of the paper and would have tried to say it was from somebody else. So that's what I call the integrity of journalism. And that's when to hold back.
- 6.105** The Interrogation is the last chapter, chapter 19, of the book, Why America Slept. That chapter may be one of the most explosive chapters, to use that word again, that I used a second ago in the Vatican, but to use it in this case, that I've ever had, because I had information from, in the end, three sources, one key source that I was able to corroborate to the extent of publishing it, that said that, after 9/11, in March of 2002, we had picked up an Al-Qaeda terrorist named Abu Zubaydah. At that time, he was the paymaster, they thought, for Al-Qaeda.

- 6.106** And he was wounded in a shootout in Pakistan when he was taken prisoner. The Saudis wanted him because he had committed an act of terror there, and they had a death penalty sitting for him in Saudi Arabia. So he's in this semi-coma. He recovers. But while he's sick, the Americans say, "Let's move him to a safe site inside,"— at first, in Afghanistan; they moved him around—"and let's do a false flag operation." Let's pretend.
- 6.107** We'll get some special forces who are Saudis, who can speak to him as though they're Saudis, and we're going to pretend, when he wakes up from this drug-induced coma in his pain and we'll hold some pain medication back, that he is in Saudi custody, that we turned him over to the Saudis, and he's going to say, "Oh, my God, no. They're going to execute me. They're going to torture me. I know what this is like in a Saudi prison. Please, what do I have to do to get back to the Americans?"
- 6.108** He wakes up, and he sees them. And in essence, I'm summarizing here, the chapter is a little bit longer, and he says, "Oh, you guys, Saudis, thank goodness. Call this telephone number. Call this number." It's the private cell phone number of a prince inside of Saudi Arabia who is a nephew of the then-king, who runs the biggest media empire in all of Saudi Arabia, who also invested in racehorses and owned War Emblem, which ran the Kentucky Derby. A very Westernized prince, who was in America on 9/11. I mean, the last guy you would think of as being a radical prince, Western suits, London townhouse, the whole bit.
- 6.109** So the Americans don't know what to do with it. And they go back to him and say, "You're a liar. There's nothing to do with it. You're just trying to buy time." He gives them three other cell phone numbers, two to two other Saudi princes, and one to the head of Pakistan's Air Force, Mushaf Ali Mir. And he said, "They'll tell you what to do." Americans aren't sure what to do. And eventually, the CIA decides to share the information with the Saudis and Pakistanis.
- 6.110** When he realizes, Zubaydah, that he's been faked, he's in American custody, he says, "I made it all up. These are numbers I store in my head. I'm, like, a number geek, and I just gave them out to buy some time." Pretty interesting. You know the four private cell phone numbers of these Saudi princes and the head of Pakistan's Air Force. But that was his excuse. "I lied. There's nothing to it, nothing at all." He even had told the Americans when he thought that they were Saudis, he said that they knew about, some of them knew about the operation on 9/11 before it happened.
- 6.111** Now, when we then tell the Saudis and Pakistanis, I'm a skeptic of conspiracies. You understand that? So I report the facts as they are. The head of the largest media empire, the nephew of the king, goes into the hospital, some say for liposuction, but he ends up dying a day later of an infection. The second prince, named by Zubaydah, is driving to his funeral, and in a one-car accident, 41 years old, dies the next day.

- 6.112** The third Saudi prince, named by Zubaydah, dies a couple of weeks later. This is my personal favorite, not because of his death, but because of the description of it. The Royal Palace issued a statement that he died, he's 25 years old, of thirst outside of Riyadh. He didn't take Evian in his Rolls-Royce. He somehow died of thirst outside of Riyadh, the third.
- 6.113** And Mushaf Ali Mir, the head of Pakistan's Air Force, gets in a military jet with his aide-de-camp and his top aides and his wife, and the plane takes off and blows up, and the Pakistanis say, "We will look into it," and they've never released a report on it.
- 6.114** So the four people named by Zubaydah, as possibly having some foreknowledge of an operation on 9/11, not knowing the details of it, end up dying of accidents, of infections, of thirst, of blown-up planes. Could it be a coincidence? Could be. Is it unlikely it's a coincidence? Yes.
- 6.115** Now, when that story came out, the CIA, behind the scenes in journalism, said, "Oh, that's garbage. That's terrible. Posner has been fed bad news." I know the sources, and I know how good they were, and I know this was accurate information. What did I do to protect that source when I went to interview that source? I'm thinking the entire time, this is 2003, that book is published. I'm interviewing the source in 2002 before I'm opened up to other people. I know the government is going to want to know who that source is.
- 6.116** There's very likely that they're going to be looking at my computers. They're going to be taking a look remotely, not coming in physically and looking at it. I'm not going to know they're inside that information. And it's going to be based upon national security, which means there's going to be no limits as to what they could do. So I met that particular source on a small boat a little over 20 miles off the coast of the U.S. So I was in, technically, international waters, as opposed to U.S. territory, which I thought was important.
- 6.117** Trisha did not go to that interview. It's the only interview, I believe, I mentioned this yesterday in passing, quickly, that she did not do with me. It's a major interview because I did not want her there. If I'm called into court under a national security guise and they say, "Disclose your source," and I say no, and I go to prison until I do disclose the source, which is going to be never, somebody's got to earn the money to pay the bills, and that's going to be Trisha.
- 6.118** If they call her in, because in every book before *Why America Slept*, I'm thanking her, I'm talking about how she does interviews with me, it doesn't take a rocket scientist to figure out, "Hey, get his wife into court. She'll know who it is." I wanted her, if she was sworn under oath to say who's the source, that she could look them in the eye and say, "I don't know. I wasn't there," and not commit perjury. So that was critical. So I was thinking all the way down to this level of where can it go?

- 6.119** Instead of calling me into court, they just started to denigrate it behind the scenes. They were telling other journalists and other review things. They said, "It's just not true. It's not true. I don't know where he got that story. Somebody fed him a great tale," type of thing. So my answer to that was, all right. I got taken. Why don't we get to the best evidence? Release the Zubaydah interrogations. Let's see. He's, by the way, in Guantanamo. Let me talk to Zubaydah, or release the interrogation tapes, because the interrogation tapes will show either I'm wrong, somebody fed me a great fairy tale, and I fell for it, or I'm right, in which case there are some answers to be had about these Saudis and this Pakistani air marshal.
- 6.120** Of course, they waited, and they waited, and they waited, and in 2009, despite public calls and everything else for it, the then-head of the CIA announced that in their own record-keeping and keeping of materials, they had destroyed sets of files in the early days of two of the interrogations, Abu Zubaydah and Khalid Sheikh Mohammed. So Zubaydah's interrogation tapes were destroyed as part of what the CIA did.
- 6.121** I wrote about that extensively, so they weren't there available. I don't know today, 23 years later, because he's still not on trial. He's never been placed on trial. If Abu Zubaydah, he lost an eye when he was down there, it's been a whole thing. If he— how valuable a witness he would be to what had happened then, I have no idea. But I know that that story was based upon a source that led me to two others, that we did everything in our power to protect.
- 6.122** And by the way, the last thing as I wrap this up with you, as a result of the sensitivity of that subject, even though I had developed a good relationship with that source at that time to get that information, I never, ever, after publication of the book, reached out to that source for any reason to say, "Merry Christmas, how are you doing? What's going on? Did you get a copy of the book?" Because it's the follow-up that's going to disclose your source. They're still looking at you. They're still trying to find out who it was. Then you send a book out and you say, "By the way, you're great in chapter 19," and you've just given up all of your secrecy. So as a result, I stayed away from any contact at all.
- 6.123** Overall, in your experience with the research going on with *Why America Slept*, how would you describe your experience with the Saudis and the Kingdom? And are you invited to Saudi Arabia still?
- 6.124** When I finished *Why America Slept*, I thought I'd like to jump to completely different subjects. We were talking, actually, about doing the pharma book way back then. Oh, my god. And then the 9/11 report came out from the government, and it, to my view, gave a pass from what I knew to the Saudis in the United States on 9/11.
- 6.125** In fact, and I'm not saying, forget for a second, put aside the question of whether any Saudi royal had any inkling that there might have been an attack that was taking place. Put all that aside. There were Saudi royals in the United States on 9/11. There was a horse auction. There were other things. They were doing things that they come

regularly to the U.S. for. It wasn't unusual. Those royals were sent out. According to the 9/11 report, they were allowed to fly back to Saudi Arabia once air traffic was allowed back in the air.

6.126 That's absolutely not true. I go through it line by line by line. I got all of the records. The 9/11 Commission had to know that was wrong. There were no commercial jets in the air at all. There were military jets in the air. Went down through the process. These jets that were allowed out by with the Saudis was a special dispensation. It was extraordinary.

6.127 Now, that being said, what it prompted me to want to look at is the nature of this special relationship. So sometimes I say, people say, who's to blame for high drug prices or pharma getting away with murder? And I say, it depends on which party is in control. Democrats do it sometimes, Republicans do it sometimes. Pharma is smart. They buy key people on both sides of the aisle, and they have power no matter who's present; they're never really out of power.

6.128 The Saudis get every administration since they've discovered oil on their side. Democrats and Republicans all sort of kowtow to the Saudis over time. So I wanted to look at this relationship and determine the extent to which we were beholden to them. And that was the result of that Saudi book.

6.129 Now, I write a lot in *Secrets of the Kingdom* about Wahhabism, which is their particular form of Islam. It was Wahhabism that Al-Qaeda and Osama bin Laden were Wahhabists. The Kingdom, one of the disclosures I have in the book, is the head of Saudi intelligence, who had been the head for 25 years, was very well regarded and also had a townhouse in London and was very Westernized. He had met with bin Laden in 1990 and '91.

6.130 This is before the Iraq war, and had said to him, in essence, not that the royal family supported his form of terrorism, but that they didn't want him playing terrorist in the Kingdom. So what they said is—he came from a wealthy family anyway—we'll provide you a safe haven, and we'll give you some money, but go and play jihad elsewhere. And so he was in Sudan, he was in Pakistan, he was in Afghanistan. He hated, at times, the royal family because they represented to him this obstruction, real Wahhabi Islamic faith. But they made sure that he stayed away from raising an insurrection inside the Kingdom by paying him to do it elsewhere. That eventually comes back as a boomerang on 9/11 to them in many ways. Wahhabism is an extreme form in which Westerners are apostates. We are people not just to be—it's not like Christianity, where you go out, and you try to convert somebody. I was talking earlier to somebody about this. For the most part—the Inquisition might be an exception—we don't say to people, as Christians, "By the way, convert, or we'll kill you." Jews, for the most part, don't proselytize at all. They don't go out and try to convert somebody over to Judaism.

- 6.131** In Wahhabism, at least, a true non-believer isn't somebody you try to convert to Islam, but it's somebody who's viewed as an infidel of the faith, and you try to eliminate or move out. No Westerner is allowed in Mecca. One of the greatest things the royal family did that worked against them in terms of bin Laden and the real jihadists was to allow American troops in after Saddam Hussein had invaded Kuwait.
- 6.132** The Saudis, who had bought more military weapons in the Middle East behind Israel, were right behind Israel. They were fully stocked with military gear, but they weren't able to protect themselves. Bin Laden went to them and said, "I'll bring in my mujahideen. I'll bring in the Islamic army that fought in Afghanistan and defeated the Soviets in the '80s to defend you against Saddam Hussein. And he will never attack the Kingdom because he'll never attack fellow Muslims." And the royal family said, "Thanks for the offer, but we're having the U.S. come in." And we sent in troops. That was unbelievably upsetting to the jihadists because Americans were on the land where Mecca, the Holy Land, is.
- 6.133** So Wahhabism, to me, was an extreme form of Islam that was incendiary. And at the time that I wrote that book in 2005, the Saudi Arabia that I saw was inflexible. It has changed. I will say that. Sauder MBS, Muhammad Sheikh, he has made some differences as small as allowing women to drive. I know that may not seem like a big deal, but you're talking about a country that literally was the last Islamic country not to allow women to drive because they viewed that as a violation of the Quran.
- 6.134** And that that is allowed, that the country is opening up a little bit more, that it's talking about having international football games, that it might become part of the Abraham Accords with Israel, would have been unthinkable 15 years ago. It would have been a reason for the Saudi royals themselves to have been executed. So they do see themselves in a more expansive future. They haven't given up.
- 6.135** They've cleaned the schools up of a lot of the anti-Western, anti-Jewish, anti-colonial rhetoric; that's only really available now at American universities. They've taken it out of the Saudi universities. But they have moderated the extremism at a faster pace than I would have expected. It's not a completely open member of the international community yet, but I just put this in your mind.
- 6.136** It is a place that, before the 1930s, if it had stayed like this, there'd be documentaries on National Geographic about falcon hunting and nomads and the beautiful skylines of the desert and that. And then Standard Oil is over there looking for oil, because they figured the sand, and this is how geology works. There should be oil here. And they find it. And that big hit is what turns the kingdom around.
- 6.137** For a long time, the kingdom—by the way, they fought for hundreds of years. There were other tribes. I know this from Afghanistan; it's very hard to feel as though you're Afghan, you feel like you belong to that tribe. Popal tribe, you belong to, they're different tribes. You're loyal to your tribe, not necessary to a nationality. Same in Saudi

Arabia, the tribes fought each other until shortly before oil was discovered, the 1920s. One tribe, the Saud family, prevailed on all of the tribes and unified the peninsula for the first time in its history.

6.138 And that fighter decided to name, much like Trump names many things after Trump, he named the country after himself. He's the house of Saud. He called it Saudi Arabia. It used to be just the Arabian Peninsula. So it became Saudi Arabia. And he was so enamored with the British royals, he named himself King, which is fantastic. So he became the first king of Saudi Arabia, and all his sons afterwards became princes. There are over 4,000 princes now.

6.139 And so the creation of this monarchy, this kingdom, and then it gets oil on top of it. And then for a long time, it sells oil at a controlled price with American oil companies, \$1.50, \$1 a barrel. It looks great. And then in 1967, you have the Six-Day War. And in 1973, you have a war, the Yom Kippur War. And the Saudis tell the Americans, it's Nixon in power, "Don't rearm Israel in the Yom Kippur War," in '73, because Israel was on the defensive. They were unprepared when they got attacked.

6.140 And so Nixon has to decide whether he's going to send over these jet fighters. And he does. And when he does, the Saudi king says, "Hey, you know what?" Faisal at the time, very smart. He says, "We have some leverage. We've got oil. Oil embargo. We're not selling you oil." I'm old enough to remember in San Francisco lines of cars down the street to get into a gas station because the oil embargo was causing gas lines here.

6.141 And the Saudis also realized something else. Not only do we have the power to keep oil from you, we've got pricing power. The end of these \$1.50 a barrel things, they went to \$10, it went to \$20, it went to \$30. And the Kingdom was awash in tens of billions of dollars, and it never went back. So from the '70s and on, they realized the power of the pricing, and they became not just royals by their own decree, but they had the money to do it wherever they went in the world. So it's an unusual creation. It's a very modern country with very little what I call modern history. But when you realize the start of it, it's oil that's made it special.

6.142 In your opinion, what changes should be made to the American legal system concerning protections for journalists and publishers?

6.143 The worst person to ask is a journalist, right? They would say, eliminate libel laws. No one can sue. I think we're very lucky in this country to have the Sullivan law from 1964, because it's difficult to libel somebody under that standard. That's not to say you can't. There are successful cases. If you go and Google successful libel cases, you'll see journalists who cross that line.

6.144 But if you're a decent journalist, you're never operating with actual malice or malice of forethought. It's not how you operate. It's not on my MO. It's not how I do business. I can't imagine. If there was a change in the law, it would be, if I had a magic wand, that if you—and this is difficult because I can see the counterargument as I'm saying it. I was

going to say, if you sue for libel, because some people use the threat of a lawsuit or a suit to harass you.

- 6.145** That was the question, you know. Would somebody with a lot of money go ahead and sue you anyway, just to tie you up in court, to ruin your day, to ruin your next six months, so you had to deal with litigation discovery, even if at the end you were going to walk away all right? I'd like to see them pay for the cost of that suit on both sides.
- 6.146** But then, if you do that, when I say the counterargument, that might dissuade somebody who is a small public figure, who doesn't have a lot of money, from really pursuing an action that could be—maybe somebody did something terrible about them. And now they're thinking, if I lose that case, I'm going to have to pay for the other side's legal costs as well. So it's a very tough area.
- 6.147** I think that I don't have a fundamental change. I just want to protect the Sullivan doctrine. I do dislike attempts occasionally where public figures, basically in Congress, who feel as though they are being libeled constantly by the opposition press, want to restrict the Sullivan doctrine to say we want to be like England.
- 6.148** We don't want to have malice or reckless disregard that constitutes malice as a standard. We want England's standard, which is, if it's false, it's actionable. That is a much lower standard. Are reporters always right? You hope so, but the British standard would be a much tougher standard to fill. Thank you very much.

Lecture 7: Technology in Journalism

At a glance — Technology in journalism.

- 7.1** Welcome back. The good news about the beginning of this course, lecture one, lecture two, is that we're just getting going on information, and I don't go back and add anything in. Now, before I started a new lecture and said, "Oh, by the way, I'm going to go back and add one other thing in," I'd like to do that on top of this lecture as well on two additional points that I remembered in talking to Trisha.
- 7.2** One goes back to when we were talking about witnesses, people that you interview, personal interviews. I talked about the problem with people's memories changing over time. They give you a different account than what they originally said in a statement to the police, or to investigators, or on the record. They've expanded their account. That happens often. Then you need to know why. Why is it different today than it was before? They have a good reason: "I was afraid to say this before when I first gave my statement because I was worried about retribution inside the workplace or somebody coming after me." Maybe they have a reason for that.
- 7.3** But the overall thing that I didn't tell you before, that many of you may already know, but this especially comes home as a reporter, is that eyewitnesses to the actual event are unreliable at best. We tend to think that eyewitnesses are the best. It's a bit of what I asked you the other day, "What were the colors of the shirt that I was wearing?" You're all eyewitnesses to those changes of shirts over a period of time, but you have to then think of it, and your mind is trying to recall it.
- 7.4** I know as an attorney that if you have an accident on a street with a car that is speeding and there are seven or eight eyewitnesses to that event, you take them aside as an investigator or as the police, and you ask them what happened, you'll get different descriptions about who was speeding, how fast the car was going, some will describe the car a different color, not because they're lying, but because they remembered in that flash of that moment in an unpredictable way. Memory is really unusual. There are study after study that show the lack of reliability of eyewitnesses.
- 7.5** And yet, journalists and the public in general tend to put great weight on eyewitnesses. They carry the day often in the courtroom. There's nothing more dramatic in a criminal trial than when a person who has been attacked or has been assaulted, points the finger at the defendant and says, "That's the person." And then, when cross-examined, they say, "Do you have any doubt at all that that's the person?" "No, I have no doubt at all." "It was night, it was a little bit dark, and they first were wearing a hoodie, and you can't be sure." "I'm sure that's the person." That convinces jurors.
- 7.6** Often, the witness may be right, and sometimes the witness may not be right, but it carries great weight. It does with reporters as well. I'm always a skeptic, not that I don't

think eyewitnesses are important. They are very important when they've been in an event. But I try to take the extent of the information that I can about a meeting.

- 7.7 This even comes down to a meeting. Somebody relates to you a meeting that they were in with three or four other people. You're going to try to confirm what was said from the others. You may or may not be able to do it, but you're getting their recollection of that meeting. So the underlying fact of what happened, if that meeting ended up giving a directive that said, "We're going to fire everybody in the department because we're going to clean out because we want to save extra money for profits down the road." If that directive was given, maybe you found the result of what happened. But you have to be careful on relying on eyewitnesses. So it's just an additional overall caveat.
- 7.8 The other quick point goes back to legal, what we were talking about in the last lecture. In 1992, I had sent— remember we talked about this: never fail to ask anyone for an interview. I told you about how I asked Jacquelyn Kennedy, she never responded. I tried to get Marietta Sackler, she wouldn't do it. But then there was another case in which there was a person who was a defector from the Soviet Union called Yuri Nosenko, maybe the most famous defector of the 1960s to come into America.
- 7.9 He had run the Oswald file when he was in the KGB. When he came into America, the head of counterintelligence in the CIA, James Jesus Angleton, thought that he was a fake defector. They locked him up in a safe house in Virginia. For seven to eight years, Yuri Nosenko was a prisoner of the CIA. He lost his hearing. He was treated terribly. In the end, the CIA said, "Oh, he's a real defector." They let him out, and he went to an undisclosed location in America. Nobody had ever interviewed him. I wanted to interview him about Oswald and what happened in the Soviet Union.
- 7.10 So what did I do? I sent a letter to the Freedom of Information Office, the public affairs officer, Peter Ernest, at the CIA. That's on the record. You send a letter—and at that point, it was snail mail, but you could do it today; you'd be doing it by email—that letter, anybody can do a public access request, and they can see it. I said that I'd like to interview Yuri Nosenko. I have no idea where he is, but maybe you could pass this letter on to him. Now, I will tell you, you talk about a Hail Mary pass, the idea that it's going to come true, that's the lowest thing on my totem pole that is going to happen, that they're ever going to even look at it, much less pass it onto him.
- 7.11 Three months later, we got a notice from the Public Affairs Office at the CIA that said, "Yuri Nosenko is willing to meet with you. You'll have to pay for his travel to Washington, where he'll meet with you in Washington." I said before that you never pay for anybody, right? You don't pay them money. But in a situation like that, they're going to be out of pocket. So I said, "I'd be willing to pay for it." Then, they came back, and they said, "Actually, if you pay for his travel, you can figure out from what the travel payment would be, pretty much where he's coming in from. So instead, he'll

come in on his own. But he'll meet you at CIA headquarters." So I said, "All right." That was the legal part.

7.12 Then, I told the publisher that I was meeting with Yuri Nosenko that this was a big get. The publisher said, "Oh, maybe we should have a legal document drawn up. What if, in the process of talking to him, you later disclose where he is, or you disclose his identity? The KGB will be wanting to kill him for all these years." It would be like meeting somebody from a Witness Protection Program. So you're meeting with a Mafia person who's turned information against the Mafia. Now they're in Witness Protection. Now they agree to talk to you, and your publisher is worried.

7.13 They're happy that you're getting the interview, but they're worried that, somehow, in handling the information in a conversation with him, you may, in fact, disclose the whereabouts. So they were thinking about coming up, and they did have a draft of a rather long legal document that I would present to him to be able to show that I was going to do everything the safe way.

7.14 I didn't take it along when Trisha and I went to Washington because I figured it was going to be hard enough to sit down with him at first, much less giving him a twelve-page document and saying, "By the way, would you like to read this first?" That morning, when I went to CIA headquarters—true story. I'm a little forgetful at times. I have a good memory for things like dates and figures and what happened, and then I leave my glasses behind, I leave my phone behind, I leave a raincoat behind. That morning, I went to CIA headquarters. I left my wallet in the hotel room with my license, brought another wallet with me that didn't have my license.

7.15 I get to the CIA headquarters, and they said, "Okay, identification?" I said, "Yeah, I have a meeting with Peter Ernest, Gerald Posner." "Can we see your ID?" I said, "I don't actually have one, but I do have a Visa card with my picture on it." That's true. That's what I had. I gave them that. They said, "Forget about it." They pulled me into the security office, where they then called up to the main office, and they said essentially to Yuri Nosenko, "This guy who's meeting with you doesn't have an ID, but he has a Visa card with his picture on it." I thought I had lost the interview entirely, but they had patience.

7.16 When I met with Nosenko, it turned out that all the fears about doxxing him and releasing where he was, they were out the window because the first thing I asked him is, "Why are you agreeing to talk to me? Why haven't you talked to journalists beforehand?" He said, "You're the first journalist to ask me." This was '92. "I've been asked before. I've had requests come through the CIA. You're the first person to ask me since the fall of the Soviet Union." Since the fall of the Soviet Union, the KGB is gone, he thought. He said, "I'm no longer worried about my life."

7.17 So not only did he interview with me that day, he went to dinner with his wife and with Trisha and me to a Turkish restaurant in Virginia, where he would have been an

otherwise open target. He went on 20/20, the news channel, afterwards, when they did a piece. So Yuri Nosenko came out from the cold as it was, back into the real world, and you didn't know that was happening. But the lawyers at Random House could have almost killed that interview by being overly protective. They were worried about what might be, and that's what lawyers do. I get it; they're thinking worst-case scenario. Sometimes you just let the human nature of it play out. I would suggest taking your license if you're meeting somebody at a security facility, but otherwise, things are a bit of serendipity. They play out all right.

- 7.18** Lecture 7: The role of technology and the promise—and it is a promise—of AI. Look, mastering technology isn't optional. It's the requirement for literacy in this day and age. Those of us who were analog and have gone digital, we can't do it kicking and screaming. We have to do it enthusiastically because these are great tools. They don't report, in this sense, replace reporting, but they do supplement it, I think. So they speed up the investigation. There's no question about that. You do more.
- 7.19** The problem is you tend to get more information, so you have more information to deal with because it's easier to access. It definitely expands investigations beyond national borders. It's easier to do international research all the time. What I love about archives that are online is they're open 24 hours. There's never a time you have to worry about it. You can go in any time. It does introduce the risk of hacking. Okay, I get it. So, I view it both as a weapon and a vulnerability, but it is a great weapon. It does enhance what you're doing. There's a digital toolkit, as I view it, in a sense.
- 7.20** Databases, online archives—we've talked about those. They're great resources for you to be able to go into. They're advanced search engines. Use Google. Use Safari, people use different browsers. There's Bing. But there's also AI-dedicated browsers now and search engines. Comet, for instance, which is by Perplexity. Perplexity, Anthropic with Claude, OpenAI with Chat, those big AI monster companies have the biggest products out right now. Comet is at the edge of what the others will soon be doing.
- 7.21** You download Comet, it's on your computer or your phone, and it serves, therefore, as your search engine. Now, it's bolstered and built around Perplexity's AI muscle, so it's very interesting to do a search for something that you're looking for in what I call old school Google, and you get the Gemini AI summary at the top, which saves you sometimes from looking at actual sites, versus doing it in something like Comet. To me, I use both. I use Google still a lot, but Comet often seems to me a more muscular version of what a simple Google search does. I think that in the future, Google is not going to be left behind. You're talking about a trillion-dollar company, and they're going to be advancing very, very fast.
- 7.22** But that competition isn't just in terms of AI search engines. You go on, and you do a ChatGPT request. I think we're going to see it in terms of those specialized search engines. Specialized investigation software, Spiderfoot, and that, I'll tell you, one of the things that's fascinating is that increasingly, there are apps and there are AI-formulated

apps built for industries. So, for lawyers, there are tools that will allow you to build your briefs faster. For doctors, there are easier AI answers coming for things like medical conditions.

7.23 Those are specialized for the following reason: they could be available to all of us, but there's more money to be made by the companies if they can specialize and break off a product and charge doctors or lawyers or whatever else \$1,000 a month or \$2,000 a month for access, versus the \$20 a month they make for ChatGPT. So they're specializing those products, but they are making them expensive at the same time.

7.24 You know about encrypting email and burner phones—I'll talk about that after. Messaging, protecting the notes and files with encryption all the time. I repeat it, but it can never be said enough. Use secure communication channels.

7.25 I love this last one that I have: avoid surveillance and data theft. Well, of course, you want to avoid surveillance and data theft. It's the best you can do, but I remind myself of this as much as possible. I call it cyber hygiene. If you're practicing good hygiene in terms of cybersecurity, it helps you across the board, and it is a better thing. A good reporter today has to think not just like a detective and not just bring in librarians and archivists as their allies, but at times it requires you to almost think like a coder. It's hard to imagine. You don't have to do the coding yourself, but you want to think of what you need to do in order to secure the information and keep it good.

7.26 Data storage and cyber hygiene. Why are there so many breaches? I know this, and they're not often—some make the news. I know that there are breaches of security inside newsrooms. It happens regularly because if you're, let's say, the Russians, and you know that a newsroom is doing a story about whether sanctions on Russian oil companies will cripple the Russian economy, Putin might well want his intelligence service to find out what that newspaper outlet who has a number of reporters on the subject, are learning and finding out and who's talking to them. So they may well get hacked.

7.27 Cybersecurity at newsrooms, where you think it would be fantastic, it would be like getting into Fort Knox, it would be an iron grid, is remarkably lax. Part of the reason for that is, the biggest thing is, that people get lazy. You take a shortcut. I've got a long 25-digit passcode that I have to put into my air-gapped computer, and I don't feel like doing it then, so I'm just going to pull it up on my phone. It's that moment that you make yourself vulnerable. It's that laziness. It's that last thing. It happens all the time in newsrooms.

7.28 Tiered storage. What I'm laying out here for you on this slide is what I call the dream scenario. You're not going to follow it all the time, but if you follow it a little bit, it might be of some help. Tiered storage is a secure server for routine work. I get it. I have my own server that I have encrypted, and that's connected to the Internet. And then, air-gapped devices, I talked to you about before, are for leaks or sources. That's my

computer that is not connected to anything. It has never been connected to anything, and is rather old by now, but can still be booted up and has a version of a software program that will get it up and running.

- 7.29** What's the problem with an air-gapped device? If you really, truly are worried about a source being out, there's no way to protect it. Eventually, if somebody breaks into your office or your home and steals your computer. If they know that you have your most sensitive information on that notebook that's sitting in the corner that's never been connected to the internet, hell, they don't even have to hack into your stuff. They just have to break into your apartment, stage it as a robbery, and leave with your computer. We, knock on wood, never had a break-in, so I've never had that risk that somebody's done that.
- 7.30** Better yet, if they were really good, they would break into your apartment or your office, and they would just use a USB disk to copy your hard drive, and you would never even know they were there. That would be the worst. Your air-gapped computer would then be completely available to somebody else. I will tell you, I've said this before to Trisha, if somebody does that to us on our devices, I will know that will be the confirmation, I'm on a really big story. There will be no confirmation better than that, that they are trying to get that information.
- 7.31** Encrypt by default. Full disk and file-level encryption, separate keys, strong passphrases, and hardware keys. I have those in place, and then there's the moment in which you get lazy, and you just want to go pass something. You don't want to go through the whole process, and you say, "Oh, I'll just do one search online."
- 7.32** Access control. I use multi-factor authorization everywhere. I have a number of different authorization codes. There are times that I go to get into a set of files that I'm working on that are important for a story, and I've set them up so that I have to go and get a second-level authorization, normally by an app like Authy or something else. That means I have to go onto my phone and I have to open up the app. I have to then look at the numbers that are presented because they change every 30 seconds or every 60 seconds, depending on how you set it. Go back to the sign-in that I'm doing on the computer, put those numbers in, and then I'm in.
- 7.33** There's sometimes when you're working late, it's 11 o'clock or midnight or whatever else, and you just want to look at one last thing, and you hate doing that, but you remind yourself that there's a reason why you have those files that are secure in that place there.
- 7.34** Resilient backups, 3-2-1 rule: three copies, two media—I don't care if it's on a USB drive or now USB drives can be a gig. They're fantastic. They can hold real space. USB drive, hard drive—done offline somewhere. Test monthly to make sure they're in place.
- 7.35** Anybody who tells you that and emphasizes backups like that, speaking from personal experience, has been somebody who has lost files before by not backing them up. I

have done that early in my career. I cannot tell you the times when I would be cursing and screaming and wanting to kill myself because not only did I lose the files that I was working on, because in one case, a real magnificent thunderstorm in Miami caused a brownout in our building that fried the hard disk, but I thought I had a backup. Of course, I thought I had a backup. Everyone thinks they have a backup. Gee, I said to Trisha, "I thought I was backing up to this drive. I'm sure I was backing up online. I'm sure there's a backup somewhere. There's got to be a copy." You recreate the work from ground zero once, you'll do a 3-2-1 backup. Sometimes, you need to lose it to really have that incentive.

- 7.36** Chain of custody, hash originals, cryptographic hash-like software. This is a really unusual, off-kind bit of journalism, but it shows you the level of skepticism that I have sometimes about files and how I want to have them. So a hash original: you take a document, a PDF, something that you've received from somebody or that you created, it doesn't matter, as long as it's on digital format, and there are a number of different apps online. You look for these cryptographic hash algorithmic software machines, and they will run code on that document, and it produces a hash code, which is a specific line of numbers and figures that is the equivalent of a digital fingerprint to that document. That's what you have. You have a long line that makes no sense at all, except you now have the hash original. That's the document.
- 7.37** If that document comes back to you at any point, if you come across that document in somebody else's file, if you come across that document in an archive release, you can then run that hash software again and see if it's the same number. It always will be the same. You can't change it. It's like your DNA. No matter where that file is, it's going to have the same—it's like the equivalent, as I put it, of putting a document into a digital blender. The digital blender then comes out with this drink. That drink stays the same all the time.
- 7.38** If the hash code is ever different by one number, the document has been altered. It's been changed. Something in there. You don't know what. It doesn't point you to where. You don't know if they've changed a word, if they've taken out a page, if they've blocked something over. You don't even know if the document that has been altered is the one you have and that the other one with a different hash code might have been the original. But you know that you now have two different documents.
- 7.39** If you're publishing something based upon, your reporting relies on that document being authentic, you have to know if people have other copies of the document. They do sometimes, if it's been altered. The only way you do that is what I call a hash original. It's an unusual little bit of software. It doesn't take a lot of time. It's just a way of making sure that you have that fingerprint and you know if it's been changed.
- 7.40** Of course, you know me well enough now to know that I've tested that because I took a document and then I literally just edited one part of a 300-word PDF, and then I changed it and ran that hash software again. And of course, it came up with different

figures. So I wanted to make sure that even if you make what I call a minor nuance change, nothing at all, would it pick that up? And it does, in fact.

- 7.41** So, what are the risks in all of this when we're dealing with technology? Modern hazards of digital evidence. Metadata spill identity is different now. Remember, before we were talking in an early thing about getting research, how you would do it? EXIF or other, you would scrape metadata yourself from websites, documents, PDFs, and that. That will give you some information about who created it, how it was changed when it was done.
- 7.42** Now, I'm worried about people getting information from us, from the reporters, from those of you who are doing investigations. If you don't strip your own sources, they can expose your sources and locations, even if you've done redactions. I always strip out of a PDF all the identifying metadata before I send it on to anyone else. Because if I don't, I'm passing along all my information about when it was created, when it was changed, how it was done. Sometimes, if they have clever software, they can even get underneath the redactions.
- 7.43** Hacked leaks carry legal and ethical issues. Somebody comes to me—this happened in 2025. Somebody came to me with information, financial information, about a company and possible wrongdoing. They had hacked the information from the company servers. It was good that they told me that because that raises a whole host of legal issues. Have they broken the law, depending on where they were? Almost certainly so. Am I breaking the law by going on and republishing information that, if I give the company a chance to respond to, they're going to immediately clamp down? The possibility of the company being able to trace back that hack to the hacker was fairly high.
- 7.44** So, what I did is approach a couple of publishers, newspapers, and said, "Here's the information. Here's the source of it in terms of how it was. They ran it up the flagpole of legal, and they came back, and they said, "We won't publish. We won't publish. We won't publish." You want to publish it in your Substack, you're welcome to, but we're not going to publish it." So I am still now—this isn't time sensitive. It's not like tomorrow they're going to set off a nuke and blow up New York City. It's the type of story that would be nice if it comes out. So we are working diligently, the two of us, to track down corroboration outside of the leaked file, the hacked file, to see if we can build the story without relying just on that. So that's the challenge always. And so it's great.
- 7.45** In some ways, somebody might say to me, if you're not in journalism, you might say, "Don't you wish that the person who came to you didn't tell you that they hacked it?" No, not at all. Because the worst would be for them to come to me and say, "By the way, this was passed around in a communications meeting recently. It's really explosive. You might like it." And then, I publish it, or it's published by the Wall Street Journal or whatever else, and it turns out it's hacked, and the company comes in and says that it's stolen information. As a matter of fact, it's a criminal violation, and you

publish it without— That would be disastrous. So, when I promise a source that I will protect them, I want the source also to be honest with me about where the information was gathered from. They have to be.

- 7.46** Manipulating selected dumps. Boy, adversaries, time releases and omitting context happens all the time. You get information from one company or from one part of the government, and they're competing with another company, and they want you to publish that story in order to hurt their competitor, and they're hoping for that. So they are giving you some really interesting information, but it's out of context. It's only part of the story.
- 7.47** It's your obligation to fill it in and make sure you are not serving—remember this, you're reporters; you are not the public relations team. So you don't want somebody to give you information that they want their PR team to turn out. What they're looking for is the stamp of approval on the information that has a journalist's byline that people trust. So now they get the information out there, and it's not just put out by their PR team. "We have a journalist publishing it in a reputable newspaper. That must be true," and it really hurts the competitor. So you have to be careful of that, and try to get the full context on that. In the beginning, you rush into a story, you don't want to. There's a lot of digital noise out there, and you have to try, to the extent possible, to keep it at a minimum.
- 7.48** Deep fakes and voice clones. I love these. I don't know if any of you remember early cell phones, the bricks, what they looked like. Oh my God. I mean, I used to have a pager. Imagine that. News could break at any moment. I had to have a pager. What if news broke? I could check my pager. I never thought those would go out of business. BlackBerry was fantastic. But the bricks, that was generation 1.0 of cell phones, and look where we are. That's how I feel we are on synthetic media and highly believable, original—fakes. We're in 1.0. They're going to continue to get better and better and better.
- 7.49** Any of you use Sora? It's a video app. Sora is a lot of fun. ChatGPT has an app, Sora. It creates 10-second videos. You put your face into the camera for 15, 20 seconds. You say three numbers that come on the screen. Turn your head to the left or to the right. Of course, you follow the commands of Sora to the letter because you're afraid, otherwise it's not going to get your full image. Sometimes it might have you look down. Then it creates this little image for yourself. It knows it. Then you put it down and you say you want to do whatever, and it creates a fun video.
- 7.50** I've been trying—I'll talk to you at another point about how many years I've been trying to get the secret archives out of the Vatican. So, I created a 10-second video in which I have a handcart filled with boxes, and I'm walking out of the Vatican. I put myself in the Vatican, saying, "Boy, it was tough to get these files, but I'm finally glad I did." Yeah, it's fantastic. It should be so simple, right? So that's the fun part of it. But we're going to get fakes that will be tough to distinguish.

- 7.51** It used to be, if somebody provided me a video file, an undercover meeting—think about this: sometimes you have undercover exposure, reporters who will find something sensational. You don't even have to do it anymore. You can create it if you wanted to. That's the danger. So I'm thinking that my general skepticism is going to be tested time and time again with deep fakes and voice clones.
- 7.52** Chain of custody. I keep originals. I try to keep them as read-only because I don't want somebody to get them and write on them. I record hashes and handling steps, and I try to make it as transparent as possible. So technology can be a danger, but can also accelerate discovery if you use it wisely.
- 7.53** The pros and cons of AI as a research assistant. You probably all have your own great stories and horror stories of AI, but it's fantastic. It is going to change the way that we think of— I'm doing a project right now that may or may not get published. It's a very small project: AI, an autobiography by AI. Essentially, the machine telling its own early history in an almost human voice. I think to myself that we are in the early days. So as good as it is now, it's only going to continue to get better. That's both pro and con. It has both.
- 7.54** But I've learned from AI that not everything that sounds authoritative is true. I love that in this process of AI autobiography, I'm asking it queries all the time so it can say in its own voice. I ask about hallucinations—I'll talk about in a second—"What about this?" And it says—essentially, this is Chat who's doing this—" I lie. But that's not my fault because I've been programmed to give an immediate answer as fast as I can. I can't answer by saying I can't answer or I don't know. I develop an answer immediately that, based upon all my information, sounds authoritative and right, and sometimes it's wrong." I'm thinking, "Well, that is not as reliable as I would like it." I'm sure that over time, we'll get a little bit better on that.
- 7.55** There are stories, by the way, and some of you may have seen them. It's embarrassing for journalists. The Washington Post on a syndicated story, picked the five best books to read for the summer of 2025. Obviously, somebody just put it in. The writer, the cultural writer for The Post, put it into Chat and said, or Perplexity or Claude and said, "Tell me the five books of the summer to read." All the authors were real authors, but the books didn't exist, and they published it. You went online and nobody had even done the fact checking to see that the books didn't exist, but they sounded great. They had plot lines and everything. That's embarrassing.
- 7.56** Speed and scale, that's a pro. It can scan and summarize vast archives very, very quickly, so quickly. And maybe this is my analog bias, I think to myself, "I wonder if it got everything. I wonder if that's really right." It seems almost a little too fast sometimes. It's a remarkable amount of information. The con is it can misread or hallucinate, and that is a real con.

- 7.57** Idea generation. It can deliver angles and leads and questions, but it can also—and that's what we talked about with The Washington Post—invent sources and quotes. So every claim needs verification. Now, I like the idea sometimes of saying to it— I have a Substack. I put out articles on a whole bunch of different subjects, and I pick a headline that I think is good. And then, I ask AI, "Here's the subject." I'll even run it through my Substack that I'm about to publish, and it will come up with three or four headlines. Two or three of them are always better than the headline I chose. I'll tell you, I'm not a headline writer, and I'm impressed sometimes. It's good. Occasionally, it misses it. Occasionally, it's too sensational. I tend to be more just the facts. So I'm laying it out. It gives you a headline that's a little bit pithier. So it has its little things.
- 7.58** But I am very, very careful that if it provides everything, and Perplexity is very good at this, if you use different AI models, Perplexity provides a lot of sources. So you say to any of them, whether it's Chat, or Perplexity or Claude, "I'd like to know the number of times that pharmaceutical companies have given money to political campaigns in terms of forming political action committees over \$500,000 since 2010 and on with citations." It will come up with something. It will give you citations. But the citations don't always match what is the sentence right before it. The citation has something general. So it's fast, it's quick, but if—
- 7.59** I'm sure that students across the world are relying on AI to do their full final reports, unfortunately. They're learning nothing, and it's probably filled with errors. But I know that as a journalist, if you rely on it as being accurate without double-checking it yourself, it can give you the first draft of something in terms of sources, but you've got to go to those sources yourself. Has it caught everything? I just don't believe it has.
- 7.60** Pattern spotting. I do think it's very good in spotting what I call clusters, entities, these timelines and themes. The downside, in my view, is that— okay, here's my bias. We talked before about how we all have bias going into something. My bias is that we, humans, still have some talent that AI can't do better than we can. That is the nuance, the subtlety, opaqueness, putting together things that it be too literal to see. I'd like to think that's the case. And so, therefore, I continue to believe that it's flat in a way. It reproduces it without the reasoning to understand it.
- 7.61** I say all the time to Trisha that I am not worried now—ask me in two years—about AI replacing investigative journalists because the one thing it cannot do is it cannot form the human relationships with a potential source to make them feel comfortable enough to spill their secrets that put their livelihoods at risk and put their careers at risk. That is a very human part of this process of reporting, and that I do think might keep investigative reporters safe for a while.
- 7.62** Drafting aid: cleans notes, builds outlines, compares documents. So what do I do in my free time? You're right. Oh, my God. Instead of watching sports or catching up on the latest—binging on Netflix series, I'm taking the two copies of the PDF that I put through the process of the hash originals to see that they were different by just changing a

word. Then I put both of those, uploaded both of those to all three AI engines: Claude, Perplexity and Chat, and said, "What's the difference between these documents?" All three found it in instant time. The time it would take to pick up a cup of coffee, they said, "A word changed on page 32. Change, edit, change on page 32." That was pretty impressive. That I thought was fantastic.

- 7.63** So now you do your hash original, you get a document that's different, you don't know what's changed? If you trust AI, you can upload the document. It depends on how much you trust it because now it's up in the cloud. Everything that we've said about not uploading in the cloud. Again, the con: it flattens nuance and misses context that a human might catch.
- 7.64** Automation. It does integrate with spreadsheets very well. So on data, it's fantastic. The person that I told you about who I just read their great deep dive on following money and putting together all the funders for a political campaign, 105 different companies, that graph that was created, she created it by putting it into AI, and it came up with the graph. The graph is a fantastic overload of information. It's great, and it would have been not impossible to do for us, but it would have been incredibly time-consuming, and I'm not sure we would have been able to do something better. That's fantastic.
- 7.65** What's the con? Of course, privacy, security, and risk with handling sensitive material. Look, I think that speed without accuracy isn't very helpful. That's the thing. We all want to be faster, but we also want to—I think that AI augments our best instincts, but it never replaces them. I'm still of the belief—this may be old-school—but that you have to independently verify what AI is telling you.
- 7.66** One of my favorite things— do any of you heard ever of Faraday bags? Ah, one person. Okay, this is great. You're excused; you can leave. The rest of you may or may not like this, but this is an old-school way of protecting information. Faraday bags have been around for a long time. This is a version of them, and there's no company you have to buy. This one's called GoDark. They all have some name for themselves. What they do is very interesting. They make devices. You can have a Faraday bag that's large or small. This one has my cell phone in. The cell phone is on. Once I put it into this bag, I do this to it. The cell phone is on, but it has gone dead to the electronic world.
- 7.67** So if somebody is trying to hack my cell phone, they want information. I'm meeting with the source. I'm meeting with a source that's very important. I'm meeting with the source from chapter 19, and I want my cell phone with me because when that interview is over on that boat 20 miles offshore, I'd like to go on my phone and be able to say, "Hey, Trisha, I'm coming home," or whatever else, but I don't want somebody hacking in and following it. I don't want somebody using my phone.
- 7.68** You'll know this: intelligence agencies and very expensive corporate espionage units can turn your own phone into a recording device, and you don't know that. You may

know that, but you don't know it's happening. Your phone has been turned on, activated as a recording device, essentially acting as a transmitter back to them. You think you've met in a secure location. You've taken all the precautions. You haven't put your source's name on any piece of paper. You're absolutely fine. And little would you know that the entire conversation is being recorded by your own telephone or their telephone, which is there. So now you want to make sure that that can't happen.

- 7.69** So you think to yourself, I also don't want my phone pinging so that it hits cell towers. Somebody comes back, and they follow my cell phone history, and then they think, "Okay, you know what? That guy, Posner, he must have spoken to one—chapter 19, a perfect example. Somebody is telling me about what happened in a highly secure interrogation of an Al-Qaeda suspect, the highest-ranking Al-Qaeda suspect at the time after 9/11.
- 7.70** Well, I'll tell you, the circle of people who know that is not that large. It's not a football stadium full of people. Some may have physically been there. Some may know by receiving reports back at CIA headquarters or at comm stations in Afghanistan. There's a number of people. If the government says, "Here's the entire universe of people that might have known that. Let's narrow it down. Let's see what their phones were pinging at and then match up with Posner's," and they find the two are at the same cell location, they've got their source. They know it.
- 7.71** Now, you say, "Why don't you just turn your phone off instead of going through all this thing with Faraday bags this and that? Just turn the phone off, and then you're fine." So you meet your source, you say, "Hey, turn your phone off," and you're fine. But I can see you're shaking your head, and you already know turning your phone off is not enough because your phone, especially iPhones, I have an iPhone, but iPhones, they're never really off. They still are at a low-power grade. Sometimes phones, even Android phones, are meant for a fast reboot, so they're at that state. But iPhones, even when they're off, occasionally are pinging a nearby cell tower. I love this, that criminals occasionally get caught because they are dumb enough to think if they turn their cell phone off and commit a crime, nobody will know where they were. But in fact, you can still trace where they were at a slower rate.
- 7.72** So what this does, you can have your cell phone on. I can take Trisha's phone or anybody else and do "find my phone" and I'll see it and I can ping it. Then, I put it in here and you look and it says, "When the phone is back on"—because it thinks it's off—"it will notify you where the phone's location is." It goes dark; it doesn't get any electronic signal at all.
- 7.73** One of the things that's good about this is that I do two things with it. When I go to meet a source that's confidential, I want to protect them, I bring two cell phone bags and two iPad bags. I don't bring a notebook bag because nobody has ever shown up for a confidential interview with a notebook. That would be a bit much. They have shown up at times with an iPad. I want to put electronics into these bags.

- 7.74** I go the extra step of you can have your phone on. Some people like to have their phone on in the Faraday bag, and then they can take it out. They don't have to turn it back on. I like to turn the device off, put in the Faraday bag, and then I do one last step, which shows you the level of my paranoia about losing sources or information. I put it away from where we are talking because you can— let's say that you're the source. You're meeting with me, but you're set up to find out somebody else that I know. So you give me your phone, but your phone can still be used even when it's off to record a conversation. It can still record and pick up recording.
- 7.75** Inside the Faraday bag, it can't do anything. The Faraday bag keeps all electronic signals away from it, but doesn't keep sound out of it. So if you have a conversation and it's recording, it will pick up the entire interview and conversation. The minute the Faraday bag is opened up and the phone is out, it reconnects to the internet, that conversation, if it's already programmed, will go straight up to the cloud or to whomever it's supposed to go to. You won't be able to stop it. So I want to make sure that the Faraday bag is out of earshot. So we put it away.
- 7.76** Once in a very sensitive conversation with a former government official dealing with the 9/11 book, but not chapter 19, in a very small hotel room, we ended up putting the Faraday bags inside the small little refrigerator in the room. I figured, there was enough noise in that, with the ongoing fan and whatever else, it would probably ruin any recording possibility. So my point is, these are like \$30, \$40. I've had them for a long time. Maybe they've gone up in price. They're \$80. I'm not sure now.
- 7.77** These are also, by the way, used by criminals and hackers and everybody else. So if you look up Faraday bags, you'll see a bad history for them as well. People prevent location tracking who aren't always doing the right thing. They're trying to foil where they are because they're hiding, not like I am, to hide a source, but because they don't want to be tracked. So Faraday bags are also used by hackers and others.
- 7.78** But I do think that if you show up at a meeting with somebody who's a confidential source, you have a Faraday bag and you say, "I'd like to put your phone in there." They will sometimes say, "Why?" You explain to them, you don't have to tell them anything else about your bona fides of how you're going to protect their reputation. They're convinced you are. If you're crazy enough to be worried about somebody hacking and picking up the phone conversations, they're ready to trust their future to you in many ways.
- 7.79** Social media is a tool. In the digital world, it can verify your story without a doubt or reveal your source. I'm on Twitter, I'm on Facebook, I'm on LinkedIn. I build lists sometimes of people that I want to talk to on a specific subject. I use search engines to find others, and then I set alerts by words to pop up. If subjects come up, it'll send me information on it. That's a mixed blessing because if your search term that you're looking for updates on is too broad, you will get inundated with materials, and too much so. You've got to be fairly specific in the way you approach that.

- 7.80** Reverse image and video checks. Cross-platform anything that you get from social media before you publish. Make sure it hasn't already been on social media before. Beware information traps, bots, bots and bots. I can't tell you how many times bots are the engine, it seems sometimes on Twitter and on TikTok. They are clever. They are created. They're machine-created applications to get some movement by other people. They're created by pranksters. They're created by hackers. They engage with you as though they're human. There would be nothing quite as embarrassing as to fall for information provided by a bot, and it turns out that it wasn't even a bad source; it was a machine-created source.
- 7.81** Map networks and timing. If I find a story on Twitter, for instance, it's news to me, I haven't seen it, it's not yet in the paper, but somebody's got a piece of news, I want to find out who put it up first. So I try to track back to see who that was. Is the first source real? It's going viral. Where did it come from first? And then you try to find out and you see if it's somebody that you think might be reliable or might not.
- 7.82** Screenshots, timestamps. I do that all the time, and that's why I can't find anything on my phone because I have too many screenshots, and then I fail to delete them after I'm done with the project. But that's a different problem. That's just housekeeping.
- 7.83** Protecting sources online. Not very different. I do use burner phones very occasionally. I encrypt chats. I anonymize my source identities.
- 7.84** On opportunities and threats. I really do believe that we are in an era with new digital tools that empower what we can do as reporters. The risk of surveillance in that has grown as a result, and so have hackers and deep fakes. But in the end, I embrace the technologies as a tool to be able to use to do more, to do it faster, and do it a little bit better.
- 7.85** I think that technology will not save journalism, but journalists who master technology are the wave of the future. So I hope to be one of those journalists, and I hope that if you're doing reporting, you embrace technology, but you don't rely on it as the final and authoritative word. That has to come from you and your own reporting. Thank you very much.

Lecture 8: Secret Ingredients

At a glance — The 'secret ingredients' of great reporting.

- 8.1** Good to see you all again. Just before starting lecture 8, somebody asked as we finished lecture 7 and we're wrapping it up, "Hey, you're a skeptical person. How do you know that bag actually works, that it does what it's supposed to say?" And of course, I was thinking that when I bought it, because there are a lot of companies, if you do a Google [search] on Faraday bags, that are offering them, the same way that some Asian countries produce fakes of very expensive clothing items like Louis Vuitton and others, and they're sold on Canal Street in New York City, you think somebody, if it was a big enough market, could make a fake variety bag that cost them 26 cents and sell it for \$40 or \$50 or \$80 under the guise it's giving you protection.
- 8.2** So of course, when I got it, Trisha and I went to test it every way we could: turn the phone off, turn the phone on, find the phone, ring the phone, see the messages. To the extent that we road tested it, it worked. But there was that level of skepticism. "All I'm buying is just a fancy cover for the phone. I'm going to use it, and everything's going to be exposed." So again, a bit of skepticism always helps.
- 8.3** Lecture 8: The secret ingredient. If you're waiting for some real magic and you think this, "This is it. I'm going to tell you the one thing that turns it all around." I am, but it's not going to be as easy as just having one thing that turns the trick, because I do believe in the end, the real difference between good reporting and great reporting is the mindset, that part of it—on and off for nine years on God's Bankers, part of it is having the endurance, going through periods of self-doubt.
- 8.4** You don't know, you don't have the finished product, you're not sure what you're going to find. You're still trying to talk to other people. A lot of leads end up in dead ends. Some people don't want to talk to you. You're at a point when you just want to throw your arms up. You think you bit off too much—I go through that often because they're ambitious projects. And then you get through it. It's great to have the motivation that you know you need to pay the bills, so you're not a trust fund baby that can say, "Well, I'm just going to throw my hands in. Forget that project." You need to finish it for your own reputation so you can do the next project after that, and so you can finish this one well.
- 8.5** That endurance, that ability to go through those uncomfortable moments, that makes the difference in many ways. Trisha has a line that she says that I like, so I'll take it as my own for this. She says, "You don't find the truth. You outlast the lies until all that's left is the truth." That's almost it. You do persevere on this, and it's this bit of what I call stamina, combined with the mindset. It's not taught in a manual. I can't give you that. I can give it to you on a checklist, but I can't give it to you in terms of function. You only discover that in yourself when you do it.

- 8.6** I do think there's a part of that. It's me going down to Argentina to find the Mengele files or hitting the comptroller at the government agency with a Freedom of Information request because other people lose interest and they're off to something else. And I keep thinking that I'm going to get a nugget of gold, and it's going to be good. Perseverance isn't moral. It's constitutional in some ways.
- 8.7** So when we were doing God's Bankers, we went to Rome. Our last research trip was in 2013. You do what you always do: get the least expensive tickets that you can to make your way over to Rome. You find some place to stay that isn't an arm and leg, and then you try to pack in to the time that you're there as much as possible. We would literally run from early in the morning—there'd be somebody, people are morning people or night people, for the sources you're talking to, and when you're doing the interviewing, you have to be both. So if somebody wants to meet you at 6:00 AM for an early coffee before they go to the office, you're going to meet them at 6:00. Somebody else wants to meet you at 11:00 PM because that's when they eat dinner, you're going to meet them at 11:00 PM, and then you're going to worry about sleep later.
- 8.8** I love the fact that we went to meet one of the most important people in the entire book project. He was the head of financial enforcement. He was a Swiss-German financial officer who had been brought in by the Vatican to help clean it up, René Brülhart. They did a story on him before the book was published in the British papers. They called him the James Bond of Financial Integrity or that. He was a great character. He was hard to get to. He had finally set up the interview for us late in the day, near the Vatican, in this old Italian hotel.
- 8.9** We had gotten like two hours of sleep the night before, and I took a picture of Trisha right before he arrived. That was Trisha catching up on the sleep that we had been deprived of for the entire time. She didn't fall over, but she had those eyes closed. I kept that always to say, "At some point, we're going to say this was worth it." It was worth it in the end, and she did wake up before he arrived, but that was her catching up on a little bit of sleep. It is tenacity, it is stamina, and you just have to push through it at a certain point.
- 8.10** Everybody has the same tools. We went through a whole series of lectures about how you get access to databases, how you get information, how you can do data journalism, what you look for, how you protect sources. Guess what? It's not unique to me. It's not unique to what you've picked up in this course. Every journalist ends up having those same tools. They can go to the same databases. They can do the same protections. They can look for the same data journalism. So what separates it? Why do some journalists have a little bit more?
- 8.11** I'm convinced that it's a combination of curiosity and judgment that keeps you out of court and keeps you digging for the information. So mindset over mechanics. Tools matter. They are important. But judgment, curiosity, and discipline make the

difference. Those are the human traits that you can't replace. You can't pick them up on a package and just put them out.

- 8.12** The skepticism, if I'm testing my own Faraday bags, I'm skeptical. I try not to be cynical. The difference is cynicism just crosses into that line where you never believe anything. I do question everything. I don't presume bad faith, but I do let the evidence decide if it's real or not. I like being a skeptic in that sense.
- 8.13** Humility. I'll tell you, here I am talking to you about journalism 101 and what makes a person think like an investigative reporter, and I know that the biggest recognition you need as a reporter is to admit what you don't know. You like to be confident about your subject, but even when you're well into it, there's plenty you don't know. Somebody who has lived it can teach you something new. New facts can change your mind and put you on a different path. If you ever get to the point where you're overconfident, where you think, "I know it, that's it." Then, you're in real trouble because that's why I believe you stopped learning, and as a reporter, you're always learning. You're always open to where the evidence takes you.
- 8.14** Endurance is a skill. I think that is true. Fatigue breaks stories faster than bias. Yes, sometimes. I do think that it helps. One of the things that I like about AI—and we were talking about AI to the extent that AI is there—it never gets tired. It never needs a nap. It doesn't ask for a cup of coffee at 4:00 PM because it's getting the afternoon dragging. It never complains about being asked 30 questions at 2:00 in the morning, and it's fantastic. So it can feed your best compulsive reporting—that's the good news—in a way different than databases. It's different than you logging on and looking through information and trying to find it. Yes, you can do that at 1:00 or 2:00 in the morning.
- 8.15** One of the things that I have found with AI as a research assistant, if you think of it as a research assistant, is that it has no sense of time. If you want to do your own little experiment on it, if you go to AI and you ask it to produce a draft of something that you need as a talk, say, "I'd like to see a draft of what it is that I would have to do if I was doing a story for the Miami Herald on potholes in the city. Deliver that to me,"—you're doing this at night, 11:00 PM your time—"deliver it to me in the morning." When you wake up, you will not have it. It has no idea what morning is. If you say, "Where is it?" It'll say, "Oh, sorry, here it is. It's right here." It'll provide it to you right away. It doesn't have the sense of—
- 8.16** What would be fantastic, what I'm hoping the coders who make AI can do is have it have a sense of time so that you can say to it, "Please work overnight on this incredibly difficult staunch of documents that I'm about to do and give me some ideas of what connects on this and this and this," and then it could do it. Sometimes, I don't want it to provide a dump of information instantly because I don't quite trust it. On the other hand, I can't get it to slow up enough to give me what might be more reason.

- 8.17** Now, of course, what would really punk me and take me down the rabbit hole would be if it learned to delay its response because someone like me preferred a slower response, thinking that was more accurate when it still had the answer in 30 seconds, and it just held it back for three hours. That is possible that the coders could do it for those of us who like a little bit of the old-school working harder.
- 8.18** Relentless pursuit. Follow code leads. I get it. They do end up as dead ends. Sometimes it's frustrating, but you have to do it. Revisit dead ends. I do that all the time. Somebody that didn't work out, I think, is going to change their mind. And never let go of the trail. So one of the things you hear people say all the time is that insanity is trying to do the same thing time and time again, expecting a different answer, and that may be. Well, going back to dead ends is part of journalism. You've been told no, somebody closed the door, and you know what? In a year or two, it might be different. Maybe they've moved on to a different job. Maybe they've moved on to a different company. They have a different perspective on it. They've moved away from it.
- 8.19** One of the things that happens—and you'll see this in political reporting. I don't do daily beat political reporting. But political reporters, like I said, if somebody dies, there's a whole series of Freedom of Information Requests that go into the government. When a new administration comes into Washington, as the old administration leaves, the political reporters who cover that beat are reaching out to everybody in the old administration to see if they will now tell some salacious story that they couldn't tell when they were actually on the government payroll.
- 8.20** Sometimes you see—what's happened is good old beat reporting in getting those stories, even the things like Watergate, have not faded away, but they have become more difficult to get. Not that people don't talk, but that more people who leave public service write their own books. So there was a great time when they didn't write their own books, and then they would talk to reporters. They would tell you the stories, and you could break the stories. Today, Deep Throat would probably write his own book as opposed to giving it to Woodward and Bernstein. So it becomes more difficult when everybody who's left the office seems to have a book deal shortly thereafter.
- 8.21** Curiosity. So It's not daydreaming. It's the art of asking one more question that everybody else has gone there before. So curiosity finds the story, and then your persistence gets there. So relentless questioning. Who benefits? What's changed? What's missing? These types of things you're asking yourself as you're getting evidence, as you're collecting it, as you're doing your own reporting.
- 8.22** Follow hunches. I love doing this. We all have instincts. You have a feeling about something. It's worth pursuing, on a story if you think, "You know what? I think I know what's really happening here." I'll say that sometimes, Trisha. I'll say, "You know what? They're not telling us, but I think it's this." Now, that's okay to have that instinct. You got to get evidence for it. So you chase it, you see if you can get it. Sometimes you can fill it out, sometimes you can't. The only person you have to blame if your instinct ends

up at a dead end is yourself. But that's just human nature. You get a sense of who's telling you the truth and who's not.

- 8.23** Reject easy answers. Push past the first statement of the tidy narrative. Well, I'll tell you, you know enough about my skepticism now to know that if somebody comes to me with a neatly tied package and says, "This is it. You've got the story here." I think to myself, I've got the starting point for the story here. I never want to accept somebody else's idea of what the story is.
- 8.24** By the way, what you end up doing, I get a lot of things over the transom, as I say. Things are sent to me. I have a website, so people send things through a submission form. Sometimes, I take a long time to get back to them, but I eventually get back to everybody. The thing that's interesting is that people send in not just story ideas, but their own personal stories of things that they've gone through. It's triage. I'm doing triage all the time in the sense that I can't do them all. I would like to do them all.
- 8.25** If I had a news team, if I was a news producer with 30 reporters, I might assign a whole bunch of different stories. The hard part, as a journalist, is you're picking the stories that set you on fire, and you can't do every story that comes your way. There are some good stories out there, and somebody else is going to have to find them and do them. And eventually, I try to steer them to another reporter that I think will do them.
- 8.26** Spot anomalies and absences. I'm looking always for the odd fact out. As I say, the dog that didn't bark. I'm looking for something a little bit different as opposed to following everybody else doing the same type of story.
- 8.27** Make curiosity a habit. I don't know if it works for you. I don't need a "why" list because I'm asking why a lot all the time, so much so that it can become aggravating at a certain point. So you don't have to ask why to the point where it's aggravating, but you need to ask why often enough. As we talked about the other day, if you have kids, you know how it is. They will ask why. You need to be the person to ask why.
- 8.28** Courage. When I say courage, we talked the other day about the fact that we talked earlier about libel, and there's a courage of your own conviction. I'm talking about physical courage, necessarily. Courage of your own conviction to tell a story. So you stand up, you report about governments and corporations, and you have to do it straightforward without worrying about what the ramifications are for the fallout that you'll have to put up with. What I mean by that is you do worry about litigation. You worry about not libeling somebody. You worry about getting it right. But then you can't worry about the fact that you're going to get a barrage of criticism.
- 8.29** Nowadays, if you write about some authority, some power, some corporation, part of the government, they don't just take an article in an exposé and accept it as the final word and not answer it. They answer back. They have PR departments. They've got people to do spin. So they come back in a dozen different ways to try to undermine

what's just been printed. And then, you have to answer that if you do. But you have to be ready for that criticism.

- 8.30** So I think that any journalist who approaches this business of journalism, and as a business in the end, and tries to become an investigative reporter who doesn't have a thick skin, you're in the wrong arena because you have to have a thick skin because people will come back, they will push back, and you have to be ready to push back.
- 8.31** Sometimes you have to rely on the backing of who you're writing for. If it's The Washington Post or The LA Times or that, and you're getting pushback on the piece that you're working on because the sources that you're talking to—you've gone now, you've finished doing your reporting. In the wrap up to your reporting, one of the things that you need to do is you need to go ahead and then make the on the record calls for more comments from everybody.
- 8.32** Let's say, today, you were doing an article on Elon Musk, you're doing an article on Bill Gates or anybody who's a significant public figure. When you're finally ready to do that article, you've put together everything. You've got all the sources. They're talking about their management style. They're talking about whatever. You need to get comments from the person you're writing about. You can't do it like the old days, which is just send a simple letter off. It lands on their desk and they're going to get back to you at some point. It is through the bureaucracy of the media machinery at a company. You're contacting somebody there, and they're not sending it right up to Bill Gates or to Elon Musk for an immediate comment. They're massaging through it at that level and figuring out what they're doing. They're already planning, sometimes what I call the counter narrative to what they think the article will be.
- 8.33** Occasionally, I've written about companies or organizations that push back to the publisher. So I go in, and I say, "I'm writing this for The Wall Street Journal," or, "I'm writing this for The New Yorker." Then, they know somebody at The New Yorker because all of these large publicity media outlets, both the professional independent ones outside and the large ones inside big companies, have friends at every one of the media outlets, which makes sense. They know people. They place stories there themselves. They help people. They provide people for interviews.
- 8.34** So they call up and they say, "Hey, what is this? This article that's being done by Posner, it just seems like he listened to a couple of people who had gripes, and it's not right. You're going to be embarrassed if you publish it." So the company that then has assigned the article, they have to stand behind you. They have to be ready to publish it. I've never had an article killed because of the fact that somebody pushed against it. I've had people push against it before publication, but the editors always stand with it. You deliver the goods, they will stand with you.
- 8.35** There's a thing, by the way, inside of publishing contracts for books—if you have never had a book contract with a traditional publisher, there's no reason you would know

this, but you sign a book contract. I told you earlier in one of the lectures, they give you a little bit of money up front as an advance so you can pay your bills, and then you go off and you do your research, you find the story.

- 8.36** Every traditional book contract—and I say this without having reviewed every traditional book contract ever made in history, but I know that this is the standard language they all include— it says that you must turn in your manuscript. They pay you a little bit more money when you turn in your manuscript, a little bit more when they publish the book. When you turn in your full manuscript, it has to be to their satisfaction. It's a unilateral decision. It's up to their judgment. If they don't like the manuscript that you spent a couple of years on, they can cancel the contract, and you have no say about it.
- 8.37** There are a lot of people that say, "Why would you ever want to have that type of situation?" I've never had in 13 books, and Trisha has done three, we've never had a situation, we've turned in a manuscript and the publisher didn't like it. So I'm confident, not overconfident, but I'm confident I will return with a story and a manuscript good enough for them to be able to put out.
- 8.38** Now, if you were putting out a story and the book was built around something and then all of a sudden an event took place that changed the entire narrative, maybe you would be in trouble. But the publisher has the absolute right to say, "No, it's not the story that we want. Give us our money back." That would be rather devastating. It's an odd way to make a business, but that's how we've done it for the last 40 years, under the assumption that we will always turn in a manuscript that they will say yes.
- 8.39** Unpublished popular truth. So Case Closed on JFK. Why would that be unpopular? Because 95% of the country, when I published it, believed there was a conspiracy in the assassination of the President. So to say you didn't think there was, that it could be Oswald alone, made you a fairly unpopular person. So if you're seeking popularity, that's not necessarily the way to go about it. I understand that.
- 8.40** A Talk investigation on Princess Diana. Talk magazine existed for a short while. It was the brainchild of Tina Brown, who had been the editor at first Vanity Fair, and then The New Yorker. She had been at The New Yorker. She brought the subscriptions up to a million people. Then, she went on. I wrote for her there in Vanity Fair. And then, she went into partnership with the Weinstein Brothers, Harvey Weinstein, before all of his problems that put him in jail. The Weinsteins were actually successful Hollywood producers. And they started Talk magazine, which was a general interest magazine.
- 8.41** Tina wanted something for the premiere issue in 1999 and said, "I think there's something in the death of Princess Diana, who died in a car accident two years ago. There's foul play. I think she got murdered. I'd like you to go out and investigate it and find out if there was foul play." So I said, "Gee, I'm the person that thinks Oswald killed Kennedy. I'm the wrong person, maybe, to look for a murder on Princess Di." And she

said, "No, you're the right person, because if you come back with the evidence that it was a murder, everyone will believe it, because you don't easily buy conspiracy theories." So I said, "Okay."

- 8.42** We set off. We did a few months of research. Trish traveled with me. We interviewed every. We went through the police files. We got the police. I ended up with all types of things that were wrong in the French investigation: how they bungled it, how they let the doctor who arrived at the scene leave, how Diana could have been saved, but they took her to the hospital, how they left the bloodwork of the driver, Henri Paul, out of a refrigerator, and it could have been contaminated, how they didn't take the bloodwork for a long time.
- 8.43** I found that the NSA had tapes that they had picked up on Princess Di when she was having conversations with the wife of the Brazilian ambassador in Washington. The NSA was spying on the Brazilian embassy over a security investigation, and they picked up conversations with Princess Diana and the wife of Luiz F Fletcher de Lima. That was big news. The family sued to get the tapes back.
- 8.44** But in the end, it was a car accident. When I went back and told Tina Brown before the first issue, "It was just a car accident, but I've got all this other news," she was so disappointed because the thing was to have a premiere issue that said in this magazine: "Princess Di, murdered, delivered by Gerald Posner. This is the final investigation." I knew it was not popular to come back with, "She died in a car wreck," but that was what the evidence said, so you had to do it.
- 8.45** When I say unpopular truths about Pete Rose, years ago, I ended up doing a story on Pete Rose just as the scandal broke, and I got the interview with Paul Jansen, who was one of those who he was gambling with. And I will tell you that Pete Rose should still probably be in the Hall of Fame. He was an amazing baseball player, more hits than anybody else. I get it. But he had a problem with gambling. In his defense, he used to say, "I only bet on the red to win." That was true. He said, "They can't win every game," but still, you shouldn't be betting on your team at all. So there was a problem.
- 8.46** That exposé made me one of the most unpopular people ever in Cincinnati. I will tell you that I have been to Cincinnati before. I had not gone to Cincinnati in a long time. The hate mail, the threats, the vindictive response, you would think, I didn't realize the extent to which Pete Rose was golden in Cincinnati. When you report what happened, it's as though you're the one who's done the wrong thing. So you realize this. It's successful reporting. I get it. People are fans. They're supporters of somebody. But the Pete Rose exposé, as it was, was one of those where you had to grit your teeth and wait and hope that it was going to turn out all right.
- 8.47** Independent groupthink. Resist partisan pressure and watch out for your own confirmation bias. I've always been very good at thinking of things in a contrarian way.

- 8.48** Go where the facts are. I like to say that risk is calculated, never reckless. When I went to Afghanistan in the middle of the war, I had arranged and was meeting with the brother of President Karzai of the country and the Afghan security people. Trisha wasn't able to go on that because they said to us, "She will stand out like a sore thumb, even if she wears hijab, even if she's covered in a niqab. She's just going to stand out. It's not the time. It's a lot of violence going on." So she didn't make that trip.
- 8.49** She said to me before I left, she said, "Are you safe?" Because I wasn't going to the Americans. I wasn't going to the military end. I wasn't staying with the Americans. I wasn't going in with the allies. I was going in with the Afghans and the fighting forces on that end. I said, "Of course, I'm safe because I'm with the people who are running the Karzai government." And she said, "That's exactly the people the Taliban are trying to kill." I said, "Don't worry, it'll be fine. They have a lot of security." They didn't have that much security, but they had enough. I was surprised at how little security they had.
- 8.50** As a matter of fact, they said, when I took a plane, I flew into Dubai and then flew on to Kabul. It was Pamir Airlines. It no longer exists. It was an Afghan private airline. They brought the tickets out by hand. It was fantastic. They misspelled your name. There's no security at all. You got on the plane, you flew in, and they said to me, "There'll be somebody on the tarmac to meet you and make sure that you hook up with our security person, and you'll be fine."
- 8.51** I got off the plane. Everybody gets off the plane. I look around, I don't see anybody. We get onto these minibuses. The minibuses are packed. They take us to the terminal, Hamid Karzai Terminal. I get off, I see nobody. I'm standing inside the terminal for 20 or 25 minutes with people looking at me. You're clearly a Westerner who has arrived. I had missed, and the security person had missed me, when I got off the plane. How? I don't know, because I was the only person who looked like this. And somehow they missed me. Maybe I was too short. Everybody else was very tall. I was hidden by the crowd.
- 8.52** They said to me afterwards, "The only time you were at real risk on this trip is the time that you were standing alone inside that terminal," because it's a travel point. People watch it. Taliban watch it. They want to know who's arriving, who's not. And you have a value to them, even if they don't know who you are because you're a Westerner. They know that you either work for a company, you might work for a provider, you might work for somebody who does security, you might work for one of the companies providing food at Bagram Air Force Base. But there's somebody who's going to pay 20, 25,000, 30,000, 50,000 to release you if you're kidnapped.
- 8.53** It's like grabbing an iPhone on the street. You just grabbed somebody's \$1,000 phone and then you run off and you hear about iPhone thefts. It's like grabbing a Westerner because there's some money that you can be had. I didn't realize that at the time, but after that, it was fine. You calculate your risk, you take it, and you try to minimize to the extent possible.

- 8.54** Trisha did later on another trip when the Afghans decided it was safer to meet in Dubai because things had become so chaotic in Kandahar and in Kabul. So Dubai was a safer meeting spot. And they said, "We'd like to meet this person you talk about all the time, Trisha." So we brought her over. Trisha wears Dr. Martens—you may know them, these English boots. She's originally from London. And one of the Afghans said to her, the fellow who was running security on Highway One in Urdu, [said] to one of the translators something, and the translator looked at us, and he said, "It looks like combat boots. He likes them." So, immediately, we were in. They figured anybody who showed up as a Western woman with combat boots had to be all right.
- 8.55** Empathy, I do think you can't replace this in this sense that if you are sensitive about what you're doing, you're going to make connections with the people that you talk to. Especially if you're doing stories about wrongdoing, you're trying to—not right or wrong, it's the wrong way to do it. But if I'm trying to expose in Pharma the degree to which the Sackler family, who I still believe got a get-out-of-jail free card in the sense that no State Attorney General ever launched a criminal investigation into them. Whether they would have proven anything or not, I don't know, but they didn't even launch it. When you're trying to show what the Sackler family did, which I believe was over the top, having ignited and then fueled the opioid crisis, you talk to victims, relatives who've lost children, brothers, sisters, spouses to OxyContin, it's heart-wrenching and moving at different times.
- 8.56** The same when we're doing books on World War II, and we're talking to Holocaust survivors. Empathy gets you close enough to hear what's sane and to relate to people, but you still have to see it clearly. What I mean by that—that picture, by the way, of me, you see our name tag for that, the Lost Voices of Fentanyl. The last five years, they've had a rally in Washington, DC, that they go down to, in which there are mothers who show up, who have lost children to fentanyl, and they appear, and they have people come who are trying to rally and do something and write about it. In that particular year that we were down there, two years ago, it was raining.
- 8.57** You cannot help. I talked about the other day, you have to be passionate about what you do. You have to have a fire about it. Well, one of the things that gets the fire going is talking to the people who have been affected by it personally. That rekindles that fire. If there's ever a point that's slow, nobody's paying your way to go down there. You're making your way to Washington on your own. You're peering with them. You're talking to them. They're the ones who have suffered. You're trying to do the best thing that you can. That makes me realize, when I'm talking about them in a book or something else, I don't want them to just give one line or two lines. I try to portray more of the full value of the person, not take the reader off on a completely different tangent, but to make them real people so you understand it.
- 8.58** The other day, we talked about having silence. You go through a period in which "don't talk on top of somebody else giving an answer." I used to be bad at doing that, so now I

give silence. It's especially important when you're talking to people who have been affected, hurt, victimized; they're telling their story often from positions, even if it's years ago, of some level of trauma, and that takes a different mindset to get through. They're explaining it to you in a way that makes sense for them, and you need to give them the space to be able to do it.

- 8.59** I am very good on this. So some things I'll castigate myself, but I'm very good at not over-sensationalizing. The story is dramatic enough. You don't need to make it graphic detail. You don't need to make it voyeuristic, as I say. People go through pain, but you then don't need to go to the next level, which is to make it a Geraldo Rivera, Children of Infamy episode.
- 8.60** Trauma-informed practices. I learned a little bit about this myself. I'll let people choose their own time or place. If they want to take a break, I'll do it. No hard questioning. Now, they choose a place that they feel comfortable, and sometimes it's a noisy environment. We talked about that. Unfortunately, you're going to get a noisy, taped interview. But if they feel more comfortable, that seems to me to be the most important part.
- 8.61** Now, empathy without capture. I'll tell you, there's a fine line between being empathetic and then being an advocate for them. In my books, I take my voice out of it. You read *Pharma*, and I trust that by the end of *Pharma* or halfway through *Pharma*, or three-quarters of the way through *Pharma*, your blood is boiling. You will be enraged, and you'll be angry at the Sacklers. I don't need to editorialize. I don't need to come in and say to you, "Isn't this outrageous," as some writers do. "This is just horrendous. Wow, wait till you see what I tell you next."
- 8.62** No, the reader is smart enough in the accumulation of facts that you have gathered in your reporting to come to their own conclusion, and everybody processes it differently. So, in some ways, I am an advocate for those victims because that's the way that I'm presenting the information, but not an advocate for them in terms of standing up and holding a banner and going out. Now, I'll go and talk at *Lost Voices of Fentanyl*, and there very much I'm an advocate, and I'm castigating the government for not doing more and what could be done. That's different.
- 8.63** But remember, before I talked about the opinion side of the paper versus the reporting side of the paper. There is the opinion side of being an advocate, which is going to a rally like that, and I don't mind anybody knowing it, versus the other. So politically, you try not to be an advocate to the extent that you can. That's why I'm a registered independent. I like to criticize at different times both political parties, an equal opportunity castigator. That's the way that you do best. So there are people that love me in previous years when I'm going after the Democrats and people that love me when I'm going after the Republicans and only independents who like me when I'm going after both. So it's a smaller and smaller number all the time.

- 8.64** Your unique voice. So I don't think readers follow style. They follow trust. What I mean by that is, yeah, I have a particular style in writing. You get used to it after a while. You're reading one of my books, and you get the idea for another book, but it's different by the subject matter. If you read a novelist, you love a novelist, you follow them all the time, James Patterson, whoever else, they have a particular style. You know that style, you stick to it, it's different. But non-fiction, really, it's about, for me, believability and trust.
- 8.65** You're reading the book, and you have to trust that's authentic. Because one of the things that is the oddest thing in journalism—there are many odd things in journalism, but one the odd things in journalism is that people tend to put more faith in books than they do in newspaper articles or magazine articles. And yet magazine articles, by good media, are vetted by fact checkers.
- 8.66** You put something through at The New Yorker or Vanity Fair, fact-checkers are coming at you all the time, saying, "What's the backup for that? What's the backup for that? Who's the source? Where did you get that?" They're double-checking your information. A book, nobody's doing that. Your editors at the company will give you advice on what they think makes it too long or too short, or whether you should cut something down, but they don't come back with fact-checkers. Nobody's doing that. You're on your own. Yet it has the stamp of approval from Simon & Schuster or Random House. It's 500, 800 pages long. People see it with a lot of source notes. They think that must be right.
- 8.67** I'll tell you, I know a lot of books, for instance, on the Kennedy assassination that are very long and have a lot of endnotes, and they're not worth much more than the paper they're printed on because the information is wrong. That's a different point. You can argue that all day long, but that's the nature of publishing. Books, which carry a lot of authority, you either have trust in the writer or not.
- 8.68** Develop a clear, clean style. Simple sentences, verbs, concrete details. Let your reporting be the star. Not too much flourish. Let facts do the heavy lifting. I use documents, and data, and scenes to show. I really reserve the first person. I've only used it a few times, once in the book on the Chinese heroin dealers, but otherwise, I try to limit that and take myself out of the story. I always want the reporter to be a witness. I'm reporting what I've collected, what I've heard, what I've picked up in interviews, but I'm not there as the star reporter. I'm not Woodward and Bernstein. I'm not coming out to get an award. I'm just reporting to you what the story is.
- 8.69** Earn trust with restraint. I tell you, this is a buy mark for a good journalist, in my view. People do grandstanding all the time. They do moral grandstanding They do grandstanding about what they've just discovered. They take facts and they mix it in with gossip. I'm on Twitter, and I see some accounts that are influencers that have big followings, and they do a lot of grandstanding and a lot of mixing of facts and gossip and everything else. Great, it works for them. I would not cite any of them as a

reputable source of information, but they have a large following, and it works for them on Twitter. So you just have to be careful the way that you approach it.

- 8.70** Be consistent. A reliable tone, sourcing, rigor, and fair framing, that's your reputation, more or less. The to-do list of the journalists you've never heard about? Mainly procrastination. That's it. I will tell you that I know a lot of talented people. There is nothing that separates me from somebody else who has been at this craft just as long and has turned out one book as opposed to 13 books.
- 8.71** The difference is I don't allow myself to have writer's block. I don't allow myself to sit there and say, "I'll do it next week." I don't say, "Gee, we have a long time on that deadline. That's great. It's not until next year. Why don't we go on holiday or go trekking somewhere off the grid?" I'm always trying to keep things going and working. Unfortunately, if you're looking for an easy job at which you can cut corners all the time, you could do it in journalism, you just may not be very productive on doing it.
- 8.72** How to find your topics. Everybody's looking for the same thing. How do I find what I'm going to write on next? Follow your obsession. We talked about that before. Follow what gets you up. Choose stories that you can't stop thinking about. I like unbroken sleep, but sometimes, at the beginning of a project, when I wake up at 2:00 or 3:00 in the morning and I'm thinking about what I just had as a series of interviews that day, even though Trisha will say, "Get back to sleep," that's a good sign because it means it's under my skin and it's working, and I know that I'm on a topic that's going to be good.
- 8.73** Let one story line tag another. You saw how that worked before. Doing Mengele led me to meet the Corsicans, who then told me about Chinese and Southeast Asian traffickers. And then, when Random House didn't want to do a book on JFK, I went back to do the book on the children of the second generation. JFK opened up the door in many ways to do the Martin Luther King assassination years later, with Perot sandwiched in between. 9/11 comes as a result of 9/11 itself. The Saudi book comes as a result of that. Miami, Babylon, the history of Miami comes from moving to Miami. Pharma is this long-term project that we wanted to do, and that had an interruption of God's Banker, the Vatican book, which came in first. So sometimes books find you, but topics often lead from one to the other to the other.
- 8.74** Court serendipity. I'll tell you, show up, take the meeting, walk the stacks, be in the room where accidents happen. I only got to the files in Argentina because I was there and asked for them and was naïve enough to think that I could get there, and then I did. You only get sometimes to other things because you have that serendipity of being at the right place at the right time. I got the interview with Yuri Nosenko because I was crazy enough to send a letter to the CIA that said, "Please send this on to him."
- 8.75** Luck doesn't find you. You make it by being there at the right opportunity. Now, some of that just has to happen for you. I get it. But you can make it happen. I don't think anything's given to you on a platter on this.

- 8.76** Run toward the hard stuff. That'll be the end of me one day, but I do like running toward the hard stuff. So complex, controversial, document-heavy topics, I learned that from the time that I was a lawyer. When I went into the case, and they had a million pages of the file on the IBM litigation, and I had to learn that file to be useful to the partners, that was fine for me. I like that. So if people say, "Oh, my God, you don't want to do that topic, that is just filled. There are so many documents, there's so many archives. You'll never get through it." I say, "Bring it on," because I know that means that other journalists are avoiding it.
- 8.77** People don't want to do the back-breaking work many times. They don't want to give up three years of their lives. So that's the topic for me to go to. When I finished the book on Southeast Asian heroin trafficking gangs, done the novel, a friend of mine, Ralph Blumenthal, who I told you before, published a book on the Mafia and did so many of the transcripts that have been picked up by the FBI and didn't turn out to be as interesting because the transcripts were boring. He said to me, "You know what you need to do? Just do a murder case. Find a great murder. People love true crime."
- 8.78** Ralph was ahead of his time. This is back in '90, '91. He said, "Get a murder. Investigate it. Tell the inside story of that murder, what happened, and it's great." I remember going back to Ralph, and it's maybe three months later, and I said, "I'm going to do it." I said, "I've got to deal with Brandon House." He said, "Great, what is it?" I said, "I'm looking at the JFK assassination." He said, "No, I meant a simple murder. What's the matter with you?"
- 8.79** Now, the problem is—and you'll understand this—by running toward complexity, that's the reputation you build. So now I built a reputation for doing a 200-year investigation of the Vatican finances. Okay, that's great. So what do you do next? I'll do the pharmaceutical industry, the drug industry. I'll do that exposé. So then what's next? They don't want you to come back now with the simple crime book—"I'll do a murder out in Idaho and tell you what really happened." They want you to do an industry-wide exposé. So not everything that you propose gets accepted.
- 8.80** You'd think that all I have to do is send in a very good proposal because that's how you make the pitch to a publisher. Our proposal essentially is anywhere from 20 to 50 pages describing what the book is about, your overview. And then, the good news is: not a sample chapter. You would have to give a sample chapter if you were doing your first book because they want to see what your writing style is like. It's really telling them what the book's about, who you intend to go out and try to find an interview, and when you think you're going to bring the project back.
- 8.81** I always say that the proposals that I submit—if you were able to go back in time and take every book proposal I've sent in to finally get a book deal, and compare it with my final book, the book proposal looks nothing like the final book. That's good in my view, because if it looked like the final book, it means I didn't do my reporting. If I knew in the beginning what my story was going to be, if I could say in my proposal, "By the way, this

is what I'm doing," and I knew everything that I had, and I had all the big gets and the information and the news, what did I do for the next two or three years? Nothing? I just went in and filled it in, and did some reporting, and made it into a book that they could put out on the market?

8.82 What you come back with has to be completely different. The publisher is committed to your proposal, so you're coming back now with a manuscript that they haven't seen that often is radically different than what you thought you'd find. That's where you have to hope that the satisfactory manuscript works because they're getting a manuscript quite different than what they thought they were getting, but they have to like it. If you deliver the goods, that works.

8.83 What have I proposed recently? I proposed, through an agent, what I thought was a great book. Trisha, four years ago, had breast cancer. It runs in the women in her family. She had breast cancer. She's fine now. She went through it. You can imagine that we were the worst possible patients, not in our attitude, but in terms of doing work and investigation. They'd say, "You'd want to do this next as the treatment." We'd say, "Well, what about this? What about that? How about these side effects? What about this?" We were the type of people that could drive oncologists a little crazy, but she went through her treatment. She's fine, and cancer is in her rear-view mirror.

8.84 But of course, it set my pilot light on for my obsession. So my proposal was, 40 years ago, a writer who was not a bad writer; he did a book called *The Politics of Cancer*. It's not about cancer care. It's about the funding of cancer, and the research, and the companies that do it and what happens in terms of the American Cancer Society and the fundraising. It's the politics, the machinery of the disease. No matter what you say about it, doctors save your lives, but at the same time, it is a machine. So, I have a proposal I call *The Malignant Empire*, which may not be the best word for everybody, but that's my working title—titles change as you go along—and it is about the politics of cancer.

8.85 I have proposed that to a number of publishers. Nobody at this point is enthusiastic about it. I may find one yet, that is, but they said, "No one wants to read that." But I said, "Well, you don't know. It's not a book about anything but following the money in cancer care." So maybe one day it will end up. If not, what ends up happening is you take an idea for a book proposal—and we've done this before—that doesn't get picked up, and you turn it into an article. It becomes a 7,000-word article in *The Atlantic* or someplace like that. So if you eventually see the *Malignant Empire* as an article, you'll know that no publisher took that story.

8.86 Be unmistakably authentic. You cannot—maybe somebody can; I can't do it. You can't fake passion. You can't fake it. You're either enthusiastic, you're into it or not. You can sit down with somebody and talk to them. If you're not interested in what they're telling you, they can pick up on it. If you are into the subject, they know it as well. It doesn't mean that if you're going to do the best, that they're all going to love your

work, but they know that at least you're delivering what you believe to be the best possible element of truth.

- 8.87** Very quickly, sometimes, I'll tell you how this works: you never give up on a story. I ended up doing a story in *God's Bankers* about—we talked about it earlier—how the Vatican made money in World War II from investing in Nazis and fascists, as well as investing in American and British companies. So I was asking, as a Catholic, I got the bishop in Miami to vouch for me, never knew me, but figured, he's a good former altar boy, how can I go wrong? The bishop vouched for me to the Secret Archives—that's what they're called. You know you're in trouble when the Pope calls something the Secret Archives. It sounds bad.
- 8.88** The Secret Archives—what do you want to see if you go to any institution? The Secret Archives. Those are the ones I want to see. So the Pope, the Bishop, gave me a recommendation and sent it on to the nuncio in Washington, who's like the equivalent of the Vatican ambassador to Washington. And that nuncio said, "Oh, this guy, Posner, is a great guy," and he sent it on to the bishop who was running the Secret Archives. That bishop in Rome said, "Come on, the biographer of Lee Harvey Oswald and James Earl Ray, and he writes about the Chinese Mafia, and you want him in the Secret Archives? No way. Get lost." So that bishop was smart. He said no. So they wouldn't give me any access to the Secret Archives. They wouldn't release them.
- 8.89** So what did I do? I wrote a piece first in *The L.A. Times*. After I published the book, it's high time for Pope Francis to open the Vatican Bank's files. Sometimes, you remember when I had the piece on the Bormann file, we were able to do that piece on Martin Bormann, the Argentine President was visiting. Great. They're embarrassed. They open up the Nazi files. So we figured maybe Pope Francis, who is very attuned to press coverage, *The L.A. Times* would move him to release the files. They ignored it.
- 8.90** So then I end up doing a story—this is later in September in *The Washington Post*, "Open the Vatican's Holocaust Era Archives," and this one was in *The New York Times* in July: "How the Vatican Can Shed Light on the Holocaust." That one in *The New York Times* was timed so that Pope Francis was visiting America. Fantastic. At that point, we have a President who's Catholic. We have a Speaker of the House, Nancy Pelosi, who's Catholic. So I figured this is fantastic. We run it in *The Times*. We have two Catholic government officials meeting with the Pope. All they have to do is ask the question, "Hey, how about that *New York Times* piece, those Secret Archives? Maybe we could get them out, and it would be good for them as well." But nobody did it. So this time, that didn't work.
- 8.91** I will tell you, if you ever end up writing opinion pieces for newspapers, everybody, everybody wants to be first. So if you have something that you have as an idea, they like it, they'll take it. When I ran that in *The L.A. Times*, first of all, and said for the Pope to open up the archives, when I went back to *The New York Times* and then said, "I'd like to run the same article, but different"—obviously, I didn't say the same article. I

said, "I'd like to run this article." They know The L.A. Times. It's different. It reads a little bit different, but they ran it.

- 8.92** By the time you go to The Washington Post as well, you're getting three major newspapers to let you take up what I call the most valuable real estate in journalism, the opinion pages of those big circulation newspapers that are read by world leaders and people around the world and in corporations. Because even though we denigrate legacy media and how it's fallen, it still has an impact. It's the most valuable real estate in the sense that you don't pay for it.
- 8.93** They pay you \$400 for your op-ed—1,000 words, 600 words, whatever it is, whether you are the Secretary of State or somebody else, you get the same \$400. It's a nominal amount because it's the honor or the prestige of appearing in there. You can't buy that real estate, but you can, if they accept and take the article, you can get it in. For three of them to run this on the same theme was really remarkable. It's the first time that happened, and it did not move. The Secret Archives of the Vatican Bank remain sealed to this day, unfortunately.
- 8.94** The same thing happens in the Sackler Empire in a different way. I do the book. I got a lot of exposés on the Sacklers, and at that point, Purdue Pharma has filed for bankruptcy, and the Sacklers are trying to—so if your corporation, think about this, you're Purdue, you go to the American courts for bankruptcy protection, and you say to the court, "Discharge all my debts," which means all the litigation against Purdue. Everybody who sued them, all the suits are frozen, they're thrown out. That's what you do.
- 8.95** The Sacklers own Purdue. It's not a public company. It's not a traded stock. They own it. They went before the court, and they said, "Oh, by the way, we aren't filing for bankruptcy because we aren't bankrupt. We have a lot of money. But we would like to have all the lawsuits against us discharged as well, and we will contribute some money to the bankruptcy proceedings with Purdue so people get paid out." So that was the question: was it right to do?
- 8.96** And again, I was able, this time, to do the stories on how to hold Purdue Pharma accountable for its role in the opioid epidemic. I ended up doing a piece in The New York Times on it. I wrote a piece with a bankruptcy professor, co-wrote it: "The Sacklers could get away with it. The family behind Purdue Pharma made a fortune on the opioid epidemic. Will they truly face justice?" And then, "The Sacklers' Last Poison Pill"—written with another bankruptcy professor—"A trapdoor in the Justice Department's deal with the family's company might enable them to escape a full accounting of their part in the opioid epidemic."
- 8.97** Those articles in those journals made a difference. They affected the proceedings in the court in some ways, so much so that the bankruptcy judge, who later retired from the bench and went to work for one of the law firms that had defended Purdue—that's

another issue. The bankruptcy judge called me a knucklehead in court about the article. Somebody had asked him about the op-ed that ran, and he said, "I don't listen to knucklehead reporters," or that. I haven't been called a knucklehead since I was in grammar school, much less by a federal judge. So, you know that it's getting under somebody's skin. That's what you're doing in terms of reporting often. You're trying to do that.

8.98 That's what I call the follow-up. You do your reporting. You do your book. You think the book is over, you're on to another project, but there's still a fire in you about the things that you didn't get on the last project. So I didn't get the Secret Archives. I'm still pushing at that. I'm still trying to get that out in some way and to push the Vatican on it. The Sacklers, I think they got away with it a little bit. So I don't want them to get an out-of-jail free card. So I'm pushing on it in terms of the public.

8.99 There's no incentive in it for me. Yes, I get to write, and I get a \$400 check, but the incentive is that I'm still on fire about the subject. And part of that is the empathy that you get with the victims, with the families, with the relatives who have suffered because they're still in touch with you, and therefore you feel like you still have to do something on that particular subject.

8.100 What I have is a final slide in here. It's two things that you'll feel will be hackneyed expressions, and they are, but they're the basic underlying parts in some ways.

8.101 Believe in yourself. If you don't believe in yourself, if you don't think you can do it, you can't do it. How many times somebody's self-doubt stops them from doing it? If I had approached something like doing the idea of Chinese syndicates and the heroin trading, "Oh, I can never do that. I'll never be able to uncover anything." Then, I won't be able to uncover anything. I have to have enough confidence in myself to think I can do it. And then, sometimes, you can get there and do it. It always seems impossible until it's done.

8.102 I will tell you, there's no doubt that's the underlying theme in so much of our work. If I had a dollar for every time I've said, "I can't finish this. I can't do it. I bit off too complex a project." Then you do work through it and get to it, and it's finally done. It can be done, but it takes a lot of time and a lot of effort.

8.103 I hope that for you, good journalism is not just about breaking news. We think it is. If you're not breaking news, it's getting some humanity done and making a difference. If you do journalism, you try to pick it up, if you're doing some reporting and you make an impact on somebody's life, if you make a little bit of a difference, that's all that matters. You don't need to be Watergate. You don't need to be in the headlines. I do stories that very few people hear about sometimes, but I know that I've made a change in some company and have affected some people that were badly affected. That's all right.

- 8.104** Each day, you're doing your own bit to report on the truth, find it as you do, give the facts out, and hopefully make this planet of ours, which sometimes seems as though it's upside down, a little bit clearer and a little bit more transparent.
- 8.105** You said that you make sure to hide your sources online, but how do you make sure you don't accidentally reveal sensitive information in person or your sources in person?
- 8.106** You could reveal a source in person just by being careless, by having a conversation. One of the ways that I think is most dangerous is if you're doing, let's say, a source that was a former government official, and then you end up meeting other people who worked with that official, they were in that same department, and that person who's your source told you about an event that took place. You have it. You can get into a conversation with the other people, and that event comes up. You're going to say, "And by the way, when this happened in the department, weren't you shocked?" They either didn't know about it or they know about it, and they know only two or three people know about it, and you've exposed your source by not necessarily saying their name, but having a conversation about the information they gave you with other people that you think know the same thing, but they don't necessarily.
- 8.107** My view is you've got to keep yourself as disciplined as possible in conversations. I try, when I'm talking about a source, as you can tell, I never say "him, her." I don't disclose. If I say "him" or "her," I brought it down to 50% of the population one way or the other. If I say the opposite of what they really were in an effort to cover them, then I've put other people under scrutiny.
- 8.108** So if it was a guy who told me the story, but I say, "She told me a fantastic story" in order to lead them away from all the men in that department, they're still going to be looking at every woman who works in that department to see if they were the source of the leak. I'm going to cause them unnecessary headaches. Therefore, I try to keep it away from that.
- 8.109** You're always thinking about the ramifications of what you do. The main thing that I try to avoid is sources that are still in the employment of a company. They're whistleblowers. They're really brave to do it because what's at risk is their job.
- 8.110** Now, I had somebody last year sending me information about a financial firm, which I ended up using in an article. I said to them, "Please go to Proton email to send me any of this because it will keep you safe from your company looking." They just used Gmail all the time. I would send them something from Proton mail. Proton mail only is encrypted if the other person has a Proton account, then you're sending things back within that system. It's encrypted. If I send you something from my Proton account and you are using Gmail, it's open. They still are employed at that firm, but I tell you there was a risk in that. You can only do as much as you can to protect the source. Sometimes they're not as worried as I think they should be.

- 8.111** This type of work takes a lot of being on. You're constantly protecting and constantly thinking. How do you, in your everyday life, turn that off and humanize yourself in a way?
- 8.112** It's condensed. You listen to eight hours of this, and you think, "Oh, my God, that's all they do. They must worry all the time about somebody hacking into their equipment or whatever." No. We have it on autopilot. Oh, that sounds dangerous because autopilot is definitely when you get in trouble. But I mean, the tough part is setting it up and establishing it, and then, when you're in the middle of a story, and you're actually—
- 8.113** Remember, these types of great sources that you talk to, who are the sources, who help you pull a story together, they're unfortunately far and in between. They don't come all the time. You don't get them all the time. Often, people on the record want to stay anonymous or that. But it's only in that heightened period in which you have one of those sources, and then everything becomes that 24/7. Otherwise, we're going off to the gym. We're taking time to watch some Netflix series. We're now on slow—we're way behind, so we're on slow horses, catching up on it, and there will be mindless things that we can catch up on. So that's the complete break from it. We're very good at balancing our time.
- 8.114** It also helps because we do it as a team. Trisha is fantastic at saying, "Let's stop working," and it's in the evening. I say—and she knows this after all these years—I say, "Just one more call. I'm just making one more call." She would just go into the other room and start to watch TV because she knows one more call leads to one more call. And then, "Maybe I should call that person. And what about that?" Or I remember that file I have to look at, and the next thing you know, it's midnight. So you do have to make your time very, very well.
- 8.115** Look, when we're in a project, we're in a deep dive. I love that because I'm immersed in the world. So I go from knowing very little about a subject to knowing a lot about a subject. That deep dive is authentic to the people you're dealing with. Now, on Pharma, it meant that for the first eight or nine months of the book, I essentially put myself through the equivalent of a medical science class because I wanted to know enough about drugs, their discovery, their molecular set up, and everything else. So that when I had conversations with people in the pharmaceutical industry and they talked to me about things that were technical, I didn't say, "Oh, what does that mean? Pardon me, I am not following you." So they would then leave that interview and say, "That guy's writing a book about the business of the pharmaceutical industry, and he didn't know what that was?"
- 8.116** So I had to catch up to being—I actually thought that that was a mistake doing the pharmaceutical book because I thought, "Oh, my God, in everything else, I've had a basis that I could start with." Pharma required an additional amount of catching up to speed. Thank you very much. Thank you very much. Thank you.

